

FRAMEWORK FOR STANDARDIZATION

RERA PORTAL
ACROSS ALL STATES

- ANALYSIS
- FORMULATION
- FRAMEWORK
- RECOMMENDATIONS

Gujarat RERA, Maharashtra RERA, Uttar Pradesh RERA, Chhattisgarh RERA



Highlight of the Act

BRIEF OVERVIEW

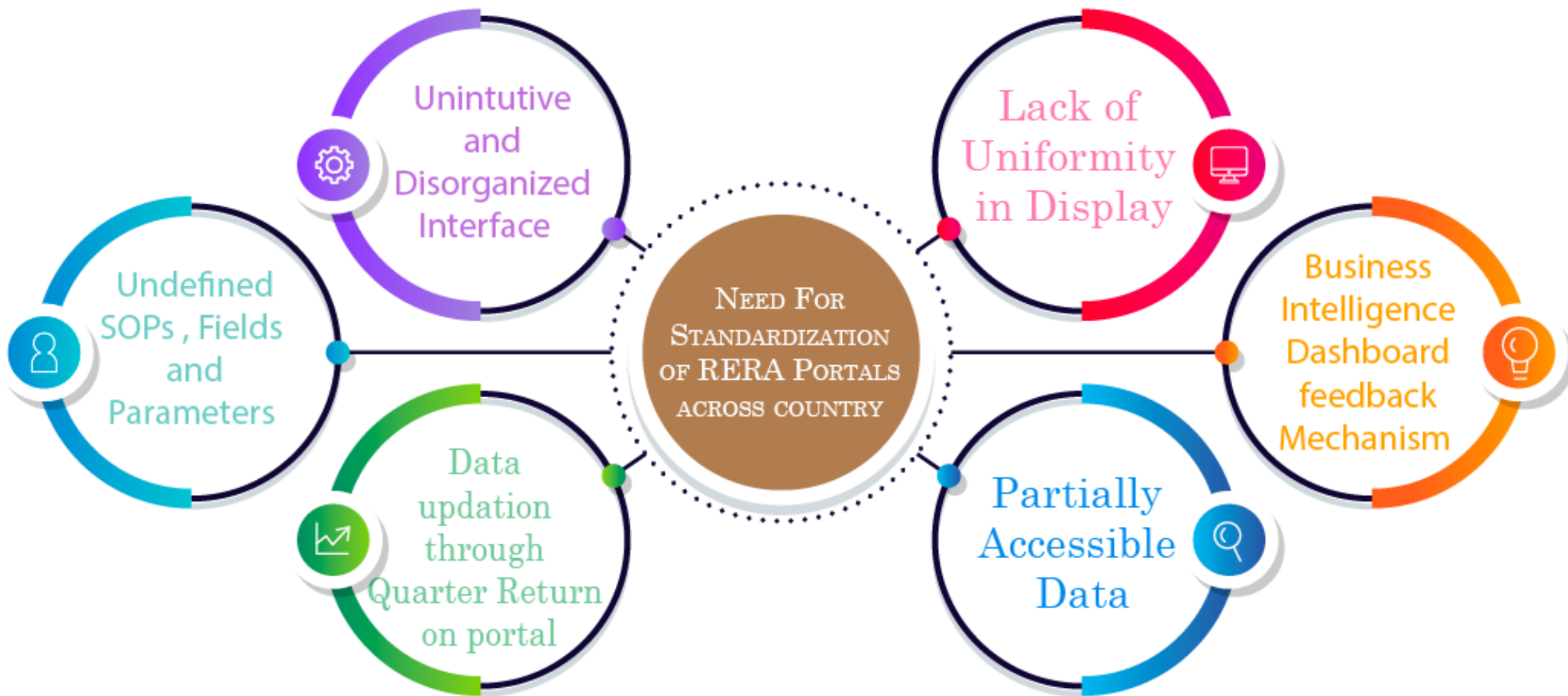
Comparative Analysis Matrix

Gap Assessment Framework

Findings and Analytical
Remarks

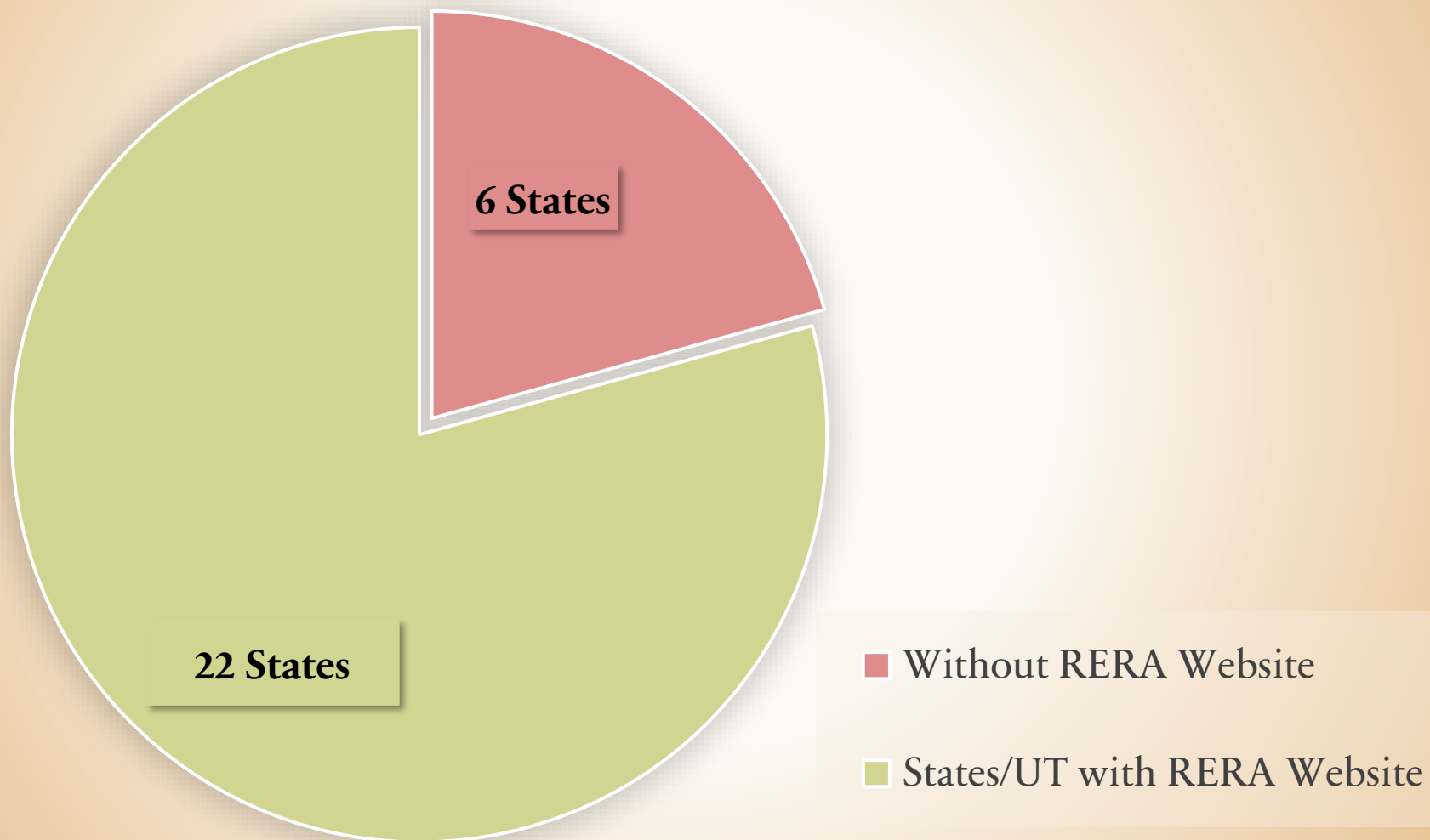
Recommendations and
Suggestions

Need for Standardization



PROVIDING THE OVERVIEW - COUNTRYWIDE PORTAL STATUS

Overview of Portal Establishment across Country.



**States without
website
namely:**

Arunachal Pradesh,
Manipur,
Meghalaya,
Mizoram,
Nagaland,
Sikkim

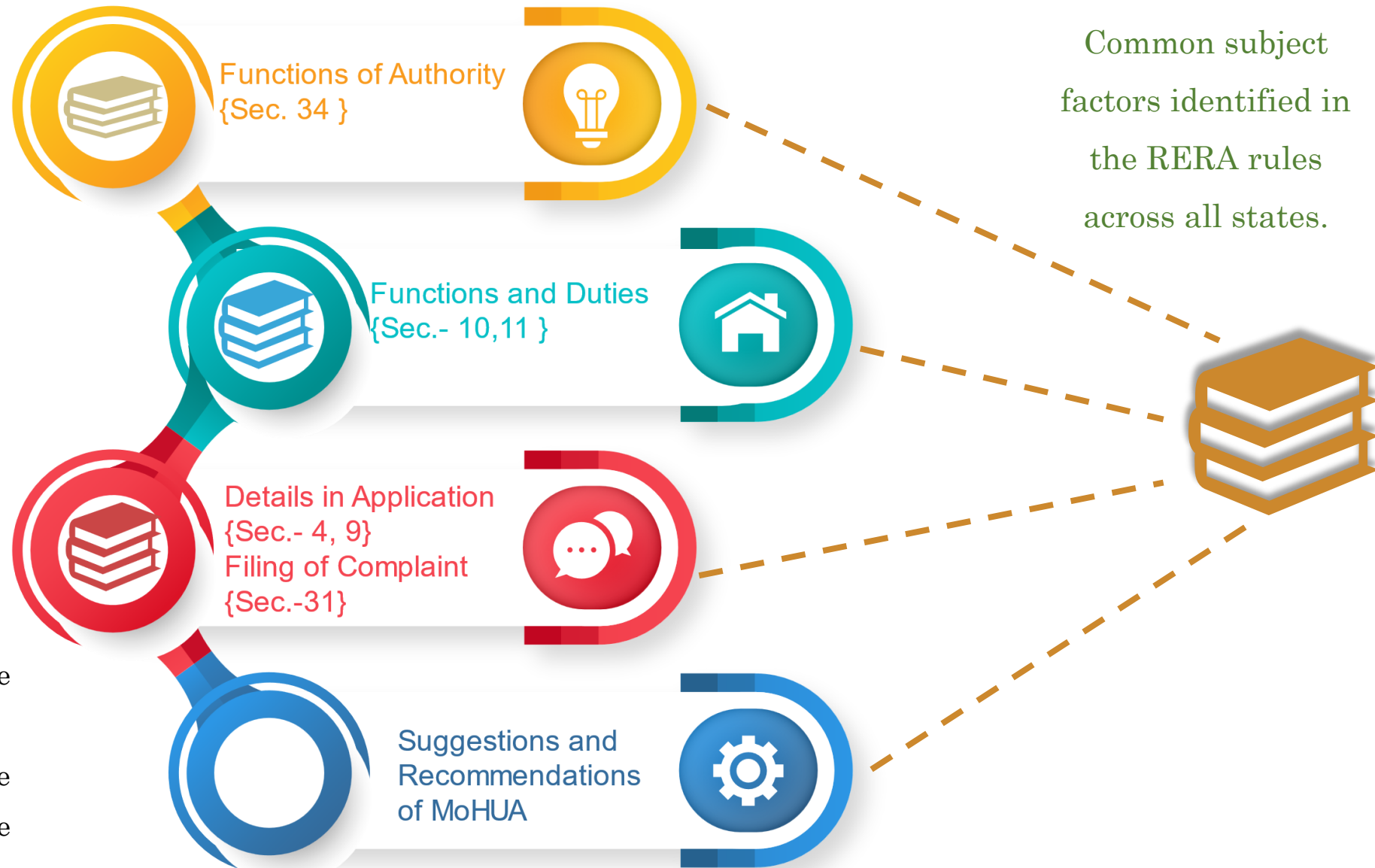
OVERVIEW - PORTAL

- Status of the RERA portal and establishment across 28 states and 8 UTs of the country

Status	States and UTs
a) States without Regulatory Authority	32 States/UTs have set up Real Estate Regulatory Authority (Regular - 27, Interim – 05). Ladakh, Meghalaya, Nagaland and Sikkim are yet to establish Real Estate Regulatory Authority
b) States with Regulatory Authority	Regulatory Authorities of 30 States/UTs have operationalized their websites under the provisions of RERA. Arunachal Pradesh and Manipur are yet to operationalize.
c) Websites without records	Tripura RERA , Jammu & Kashmir RERA

Highlight of the Act

- Establish the online portal/website of records
- Disclosure of projects
- Registration of real estate project
- Registration of real estate agents
- Establish efficient Complaints redressal system
- Under the jurisdiction the standard fees to be levied
- Ensuring the compliance of the obligations cast upon the promoters, agents



COMPARATIVE ANALYSIS MATRIX WITH GAP ASSESSMENT

Comparative analysis matrix with GAP Assessment



Analysis of portals based on data available in public domain with respect to the provisions of **Section – 4** of the Act (Clause – a to f)

CLAUSE		PARTICULARS	STATE-WISE STATUS			
			Maha	Guj	UP	CG
(a)	A Brief Details of the Enterprise	Name	Y	Y	Y	Y
		Registered Address	Y	Y	Y	Y
		Type of Enterprise	Y	Y	Y	Y
		Particulars of Registration	N	N	N	N
		Name of Promoters	Y	Y	Y	N
		Photographs of Promoters	Y	Y	Y	N
(b)	A Brief Details of the Projects Launched by Promoter	List of Projects completed in Past 5 Years	Y	Y	N	N
		Current Status of the said projects (Completion Status, details of cases pending, payment pending)	Y	Y	Y	Y
(c)	Authenticated Copies	Approvals and Commencement Certificates	Y	Y	Y	Y
(d)	Approved Plans	Sanctioned Plan	Y	Y	Y	Y
		Layout Plan	Y	Y	Y	Y
		Specifications	N	Y	Y	Y
(e)	The Plan of Development Works	Scheduling of Activities	N	Y	N	Y
(f)	Location Details of the Project	Demarcation of Land and Boundary including Latitude and Longitude	N	Y	Y	Y

Comparative analysis matrix with GAP Assessment



Analysis of portals based on data available in public domain with respect to the provisions of **Section – 4** of the Act (Clause – g to j)

CLAUSE		PARTICULARS	STATE-WISE STATUS			
			Maha	Guj	UP	CG
(g)	Legal Proforma to be Proposed	Allotment Letter	Y	Y	Y	N
		Agreement for Sale	Y	Y	Y	N
		Conveyance Deed	N	Y	Y	N
(h)	Inventory Details	Number of Units for Sale	Y	Y	Y	Y
		Type of Units for Sale	Y	Y	Y	Y
		Carpet Area of Units for Sale	Y	Y	Y	Y
		Exclusive Balcony or Verandah Areas of Units	N	Y	Y	N
		Exclusive Open Terrace Areas of Units	N	Y	Y	N
(i)	Garage Details	Number of Garage for Sale	Y	N	Y	Y
		Areas of Garage for Sale	N	N	Y	Y
(j)	Real Estate Agent	Name of Real Estate Agent	Y	Y	Y	Y
		Address of Real Estate Agent	Y	N	N	N

Comparative analysis matrix with GAP Assessment



Analysis of portals based on data available in public domain with respect to the provisions of **Section – 4** of the Act (Clause – k & l)

CLAUSE		PARTICULARS	STATE-WISE STATUS			
			Maha	Guj	UP	CG
(k)	Details of Professionals	Name of the Contractors	Y	Y	Y	Y
		Address of the Contractors	N	N	Y	Y
		Name of the Architect	Y	Y	Y	Y
		Address of the Architect	N	N	Y	Y
		Name of the Structural Engineer	Y	Y	Y	Y
		Address of the Structural Engineer	N	N	Y	Y
		Name of Other Concerned Persons (if any)	Y	N	Y	Y
		Address of Other Concerned Persons (if any)	N	N	Y	Y
(l)	Declarations/Affidavits	(A) That firm has a legal title to the land	Y	Y	Y	Y
		(B) Mention details of the encumbrances on such land (if any)	Y	Y	Y	Y
		(C) The time period needed to Complete the Project	Y	Y	Y	Y
		(D) That 70% of the amounts realised from the allottees shall be deposited in a separate account	Y	Y	Y	Y
		(E) That he shall take all the pending approvals on time, from the competent authorities	Y	Y	Y	Y
		(F) Other documents as may be prescribed	Y	Y	Y	Y

Comparative analysis matrix with GAP Assessment



Analysis of portals based on data available in public domain with respect to the provisions of **Section – 11** of the Act)

SUB - SECTION		CLAUSE		STATE-WISE STATUS			
				Maha	Guj	UP	CG
1	- Promoter to receive login ID & password - Create at webpage for project - Fields & documents for public viewing	(a)	Details of the registration granted by the Authority;	Y	Y	Y	Y
		(b)	Quarterly up-to-date the list of number and types of Units booked & unbooked	Y	Y	N	Y
		(c)	Quarterly up-to-date the list of number of garages booked & unbooked	Y	Y	N	Y
		(d)	Quarterly up-to-date the list of approvals taken and the approvals which are pending subsequent to commencement certificate	Y	Y	N	Y
		(e)	Quarterly up-to-date status of the project	Y	Y	Y	Y
		(f)	Such other information and documents as may be specified	Y	Y	Y	Y
2	- Advertisement/Prospectus to contain website url of the authority and registration number granted.	-	-	N	Y	N	Y



Important Provisions as duty of Promoter

For Extended tabular view of comparative analysis of all States status w.r.t. all Parameters- [Click on the link below](#)

Comparative analysis matrix with GAP Assessment

Analysis of portals based on data available in public domain with respect to the provisions of **Section – 34** of the Act)

CLAUSE		STATE-WISE STATUS			
		Maha	Guj	UP	CG
(a)	Register and regulate real estate projects and real estate agents registered under this Act	Y	Y	Y	Y
(b)	Publish and maintain a website of records, for public viewing, of all real estate projects for which registration has been granted	Y	Y	Y	Y
(c)	Maintain a database, for public viewing, of promoters as defaulters for project which has been revoked or penalised with reasons therefor	N	N	N	Y
(d)	Maintain a database, for public viewing, with details of real estate agents who have applied, registered, rejected or revoked	Y	Y	Y	Y



Important mandate for the Regulatory Authority

For Extended tabular view of comparative analysis of all States status w.r.t. all Parameters- [Click on the link below](#)

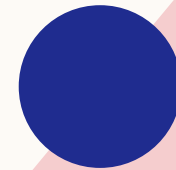
MOHUA Recommendations

(a)	In case of revocation of said registration the promoter shall be debarred from accessing the Website for that project and include name of such promoter in the list of defaulters and display his photograph on the website of concerned Regulatory Authority.
(b)	Information in respect of such revocation or registration shall also be provided to the other Real Estate Regulatory Authorities. (Create a Common Portal where each RERA can share/exchange details).
(c)	Quarterly Updates - Content of Section 11 should be strictly enforced.
(d)	Brochure (has to mention the website address of Authority along with project registration number).
(e)	User Friendly Website - Develop Parameters to define the user friendly Website.
(f)	System Generated Flagging Mechanism to showcase QPR defaulters in Public.
(g)	Uniformity in the formats and parameters of Data Collection/Application and Further in Public Display to create Data Bank for Business Intelligence to the authority.
(h)	Annual Report year wise on Website.

MOHUA Recommendations

(i)	List of Defaulter Promoters along with photograph on the homepage.
(j)	List of Defaulter Agents along with photograph on the homepage.
(k)	Indicate red and orange-flagged projects who has Discrepancy between Quarters in their Physical and Financial Progress.
(l)	AIFORERA may take the initiative to develop a dashboard to allow the homeowner to look into the promoter's activities in other States/UTs. This dashboard may also cover to quickly grasp the following: A) Status of a project, B) Including information on compliance with certification, C) Percentage of funds accessed, D) Project size, E) Other relevant details.
(m)	The dashboard should indicate red and orange-flagged projects (that are determined through the monitoring processes) based on potential discrepancies A) Over-drawing of funds from escrow, B) Certificates not sought or uploaded, C) Mismatch in stated usage of material and actual usage of material, etc...

FINDINGS AND ANALYTICAL REMARKS





Findings and Analytical Remarks

Sr. No.	State	Registered Projects	Registered Agents	Registered Complaints	Disposed Complaints	View All Projects on Map
1	Andhra Pradesh	Y	Y	Y	Y	Y
2	Arunachal Pradesh	No Website				
3	Assam	N	N	N	N	N
4	Bihar	N	N	N	N	N
5	Chhattisgarh	Y	Y	N	Y	Y
6	Delhi	N	N	N	N	N
7	Goa	N	N	N	N	N
8	Gujarat	Y	Y	N	Y	Y
9	Haryana	N	N	N	N	N
10	Himachal Pradesh	Y	Y	Y	Y	Y
11	Jharkhand	Y	Y	N	Y	N
12	Karnataka	N	N	Y	N	N
13	Kerala	Y	Y	Y	N	Y
14	Madhya Pradesh	Y	Y	N	Y	N
15	Maharashtra	Y	Y	Y	Y	Y
16	Manipur	No Website				
17	Meghalaya	No Website				
18	Mizoram	No Website				
19	Nagaland	No Website				
20	Odisha	N	N	N	N	N
21	Punjab	Y	Y	N	Y	N
22	Rajasthan	Y	Y	N	Y	N
23	Sikkim	No Website				
24	Tamil Nadu	N	N	N	N	N
25	Telangana	Y	Y	Y	Y	Y
26	Tripura	N	N	N	N	N
27	Uttar Pradesh	Y	Y	Y	N	N
28	Uttarakhand	N	N	N	N	N
29	West Bengal	N	N	N	N	N



Findings and Analytical Remarks

State Wise Comparison of Annual Reports Being Displayed on Website

Sr. No.	State	2017-18	2018-19	2019-20	2020-21	2021-22	2022-23	2023-24
1	Andhra Pradesh	N	N	N	N	N	N	N
2	Arunachal Pradesh	No Website						
3	Assam	N	N	Y	Y	Y	Y	N
4	Bihar	N	Y	N	N	N	N	N
5	Chhattisgarh	N	Y	Y	Y	Y	N	N
6	Delhi	N	N	N	N	N	N	N
7	Goa	N	N	N	N	N	N	N
8	Gujarat	Y	Y	Y	Y	Y	Y	N
9	Haryana	Y	Y	Y	Y	N	N	N
10	Himachal Pradesh	N	N	N	N	Y	Y	N
11	Jharkhand	N	N	N	N	N	N	N
12	Karnataka	N	N	N	N	N	N	N
13	Kerala	N	N	Y	N	N	N	N
14	Madhya Pradesh	N	Y	Y	Y	Y	N	N
15	Maharashtra	Y	Y	Y	N	N	N	N
16	Manipur	No Website						
17	Meghalaya	No Website						
18	Mizoram	No Website						
19	Nagaland	No Website						
20	Odisha	Y	Y	Y	Y	N	N	N
21	Punjab	Y	Y	Y	Y	N	N	N
22	Rajasthan	N	N	N	N	N	N	N
23	Sikkim	No Website						
24	Tamil Nadu	N	N	N	N	N	N	N
25	Telangana	N	N	N	N	N	N	N
26	Tripura	N	N	N	N	N	N	N
27	Uttar Pradesh	N	Y	Y	N	N	N	N
28	Uttarakhand	N	N	N	N	N	N	N
29	West Bengal	N	N	N	N	N	N	N



Findings and Analytical Remarks

Sr. No.	State	Project Registration Number	Agent Registration Number
1	Andhra Pradesh	P03280080001	A31011800001
2	Arunachal Pradesh	No Website	
3	Assam	RERAA BJ 158 OF 2023-2024	19 OF 2023-24
4	Bihar	RERAP01022021134226-1	U74140DL1999PTC100244
5	Chhattisgarh	PCGRERA080318000004	CGRERA311219A000449
6	Delhi	DLRERA2024P0002	DLRERA2024A0189
7	Goa	PRGO06221657	AGGO11221070
8	Gujarat	PR/GJ/AHMEDABAD/AHMEDABAD CITY/Ahmedabad Municipal Corporation/RAA13586/240524/130428	AG/GJ/GANDHINAGAR/GANDHINAGAR/AA04960/220329R1
9	Haryana - Panchkula	HRERA-PKL-JJR-554-2024	HRERA-PKL-REA-2604-2024
10	Haryana - Gurugram	GGM/748/480/2023/92	RC/HARERA/GGM/2459/2054/2024/172
11	Himachal Pradesh	RERAHPSHP01190048	AGR0320230001
12	Jharkhand	JHARERA/PROJECT/1201/2020	JHARERA/AGENT/REG/14/2021
13	Karnataka	PRM/KA/RERA/1251/446/PR/311222/005594	PRM/KA/RERA/1251/446/AG/230321/003513
14	Kerala	K-RERA/PRJ/TVM/088/2024	K-RERA/AG/0053/2024
15	Madhya Pradesh	P-BNG-24-4738	A-IND-24-1746
16	Maharashtra	# P51700000659	A52100000018
17	Manipur	No Website	
18	Meghalaya	No Website	
19	Mizoram	No Website	
20	Nagaland	No Website	
21	Odisha	RP/19/2023/00884	ORA/0205/2024
22	Punjab	PBRERA-ASR02PR0774	PBRERA-SAS80-REA2530
23	Rajasthan	RAJ/P/2024/3096	RAJ/A/2024/10670
24	Sikkim	No Website	
25	Tamil Nadu	TN/08/Layout/0003/2024	TN/Agent/0241/2020
26	Telangana	P02200000054	A02000000020
27	Tripura	-	-
28	Uttar Pradesh	UPRERAPRJ12524	UPRERAAGT16166
29	Uttarakhand	UKREP08180000276	UKREA02180000190
30	West Bengal	WBRERA/NPR-001797	WBRERA/R-000465

Findings and Analytical Remarks

No. of fields and List of Documents



Project - 1

Sl. No.	Document Description	Date of Document Upload	View Documents
1	LETTER OF AUTHORIZATION FOR AUTHORIZED SIGNATORY	01-11-2023	View Document
2	BANK MANAGER'S LETTER MENTIONING THAT THE ACCOUNT HAS BEEN OPENED IN COMPLIANCE WITH THE SECTION 4(2)(L)(D) OF REAL ESTATE (REGULATION AND DEVELOPMENT) ACT, 2016	01-11-2023	View Document
3	LATEST JAMABANDI COPY OF THE PROPOSED PROJECT LAND	01-11-2023	View Document
4	POWER OF ATTORNEY	01-11-2023	View Document
5	DEVELOPMENT AGREEMENT OR DEED OF AGREEMENT	01-11-2023	View Document
6	LATEST NON ENCUMBRANCE CERTIFICATE	01-11-2023	View Document
7	NO OBJECTION CERTIFICATE FROM THE COMPETENT AUTHORITY	01-11-2023	View Document
8	DRAFT ALLOTMENT LETTER	01-11-2023	View Document
9	FIRE NOC	01-11-2023	View Document
10	ARCHITECT, STRUCTURAL ENGINEER AND CONTRACTOR DETAILS WITH NAME AND ADDRESS AS THE CASE MAY BE	01-11-2023	View Document
11	PAN CARD OF THE ENTITY	01-11-2023	View Document
12	NO LITIGATION CERTIFICATE AGAINST THE PROPOSED PROJECT LAND	01-11-2023	View Document
13	COMMENCEMENT CERTIFICATE OF THE PROJECT	01-11-2023	View Document
14	DRAFT FOR AGREEMENT FOR SALE	01-11-2023	View Document
15	CARPET AREA AND PARKING AREA DETAILS	01-11-2023	View Document
16	REGISTRATION CERTIFICATE OF THE ENTITY	01-11-2023	View Document
17	PLAN OF DEVELOPMENT WORKS	01-11-2023	View Document
18	DRAFT CONVEYANCE DEED	01-11-2023	View Document
19	DEED OF PARTNERSHIP	01-11-2023	View Document
20	APPROVED DRAWING FROM COMPETENT AUTHORITY	01-11-2023	View Document
21	LOCATIONAL MAP INCLUDING LATITUDE AND LONGITUDE	01-11-2023	View Document
22	FORM B, DULY NOTARIZED	17-11-2023	View Document
23	PHOTOCOPY OF BANK DRAFT	17-11-2023	View Document
24	COST ESTIMATION OF THE PROJECT	04-01-2024	View Document
25	PLANNING PERMIT FROM COMPETENT AUTHORITY	04-01-2024	View Document
26	UPDATED JAMABANDI	04-01-2024	View Document

It has been observed that due to lack of uniformity and the undefined SOPs ; in some state the application project view page (Details/No. of Field vary from project to project)

Project - 2

Sl. No.	Document Description	Date of Document Upload	View Documents
1	LATEST JAMABANDI COPY OF THE PROPOSED PROJECT LAND	14-07-2023	View Document
2	POWER OF ATTORNEY	14-07-2023	View Document
3	DEVELOPMENT AGREEMENT OR DEED OF AGREEMENT	14-07-2023	View Document
4	LATEST NON ENCUMBRANCE CERTIFICATE	14-07-2023	View Document
5	NO OBJECTION CERTIFICATE FROM THE COMPETENT AUTHORITY	14-07-2023	View Document
6	PLANNING PERMIT FROM COMPETENT AUTHORITY	14-07-2023	View Document
7	TRACE MAP SHOWING NEARBY BY STREAMS, PONDS ETC.	14-07-2023	View Document
8	DRAFT CONVEYANCE DEED	14-07-2023	View Document
9	APPROVED DRAWING FROM COMPETENT AUTHORITY	14-07-2023	View Document
10	COMMENCEMENT CERTIFICATE OF THE PROJECT	14-07-2023	View Document
11	PAN CARD OF THE ENTITY	14-07-2023	View Document
12	LOCATIONAL MAP INCLUDING LATITUDE AND LONGITUDE	14-07-2023	View Document
13	FIRE NOC	14-07-2023	View Document
14	PHOTOCOPY OF BANK DRAFT	14-07-2023	View Document
15	REGISTRATION CERTIFICATE OF THE ENTITY	14-07-2023	View Document
16	LETTER OF AUTHORIZATION FOR AUTHORIZED SIGNATORY	15-07-2023	View Document
17	DRAFT ALLOTMENT LETTER	15-07-2023	View Document
18	ENVIRONMENTAL CLEARANCE CERTIFICATE	15-07-2023	View Document
19	HEIGHT CLEARANCE FROM AIRPORT AUTHORITY OF INDIA	15-07-2023	View Document
20	ARCHITECT, STRUCTURAL ENGINEER AND CONTRACTOR DETAILS WITH NAME AND ADDRESS AS THE CASE MAY BE	15-07-2023	View Document
21	OCCUPANCY CERTIFICATE (IF APPLICABLE)	12-10-2023	View Document
22	CLEARANCE FROM ASSAM GROUND WATER CONTROL AND REGULATION AUTHORITY	12-10-2023	View Document
23	NOC FROM ASSAM POLLUTION CONTROL BOARD	12-10-2023	View Document
24	REAL ESTATE MARKETING AGENT	12-10-2023	View Document
25	BANK MANAGER'S LETTER MENTIONING THAT THE ACCOUNT HAS BEEN OPENED IN COMPLIANCE WITH THE SECTION 4(2)(L)(D) OF REAL ESTATE (REGULATION AND DEVELOPMENT) ACT, 2016	12-10-2023	View Document
26	INCOME TAX RETURN OF THE PROMOTER FOR THE IMMEDIATELY PRECEDING THREE (3) FINANCIAL YEARS	12-10-2023	View Document
27	AUDITED BALANCE SHEET OF THE PROMOTER FOR THE IMMEDIATELY PRECEDING THREE (3) FINANCIAL YEARS	12-10-2023	View Document
28	DRAFT FOR AGREEMENT FOR SALE	12-10-2023	View Document
29	FORM B, DULY NOTARIZED	12-10-2023	View Document
30	PLAN OF DEVELOPMENT WORKS	12-10-2023	View Document
31	CARPET AREA AND PARKING AREA DETAILS	12-10-2023	View Document
32	PROJECT ESTIMATE	12-10-2023	View Document
33	NO LITIGATION CERTIFICATE AGAINST THE PROPOSED PROJECT LAND	12-10-2023	View Document
34	MUTATION ORDER	12-10-2023	View Document
35	CASHFLOW STATEMENT	12-10-2023	View Document

Findings and Analytical Remarks



Important common parameter identified from general rules analysed across all states



Roughly **280 +** field indicators have been identified from the Rules.

#	Parameters	Act	Rule	Ideal	Total
A	Details of the promoter	8	18	4	30
B	Details of the real estate project	18	2	42	62
C	Download of Project Documents	15	21	2	38
D	Project Professionals	10	8	4	22
E	Project Periodical Updates	9	0	16	25
F	Details of the Agent	2	0	21	23
G	Statistical Information	8	0	22	30
H	Complaints Related	4	0	20	24
I	Pro-Active Feature and Information Display	0	0	28	28
	Total	74	49	159	282

For Extended tabular view of all parameters across all states with comparative analysis- (Details has been shared separately in excel format)

Details linked to Project Specific Project Documents
Important Information linked to promoter



Details of associated Professionals

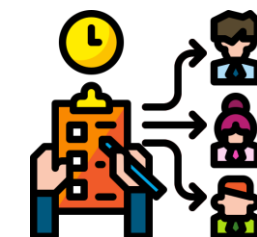


Project Specific Updates

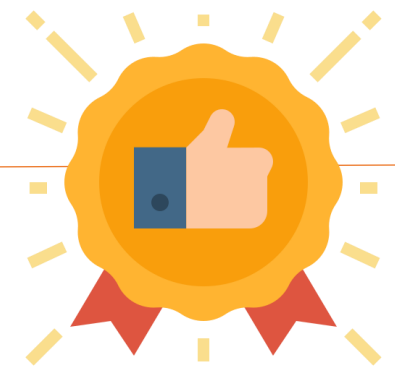


Complaints Section Overview

Associated Realtors details
Real Estate Scenario – Projects & Stakeholders



Findings and Analytical Remarks



Crucial Issues identified after analysing all the RERA Portals

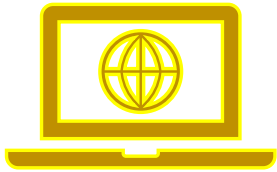
- Lack of Uniformity In Display
- Unavailability of list of Completed / Extended / Altered Projects
- Unavailability of list of Project Under Section-3 Violation
- No list of Lapsed / Revoked / Deregistered / Withdrawal Projects
- Difficulty in search of project QPRs on Public Domain
- Unable to search project Annual Reports on all states website
- Undefined list of Data Collection / Capturing of Fields in project view page
- No regular Data Updation on Portal

RECOMMENDATIONS AND SUGGESTIONS

BEST PRACTICES, OBSERVATIONS,
CITIZEN – CENTRIC APPROACH

Recommendations and Suggestions (Best Practices, observations, Citizen – Centric approach)

Parameters have been identified while keeping in the view of the **important aspects and points discussed** in letter of Central Advisory Council which are of **crucial subject for Public information on home page** with respect to the provisions of the Act and General Rules.



User Friendly Interface



Centralized Integrated Portal of all states
Total Project –
Revoked, Registration, Investments, Units stock



Important Weblinks



List of Defaulters
Projects, Promoters, Agents, QPR



Project Details Transparency-
Litigation, Delays, Pending Approvals



RERA Awareness Measures
Social Media Handles



Authenticated Copies
Technical, Financial, Legal Documents



Standardized Template
Quarterly Updates

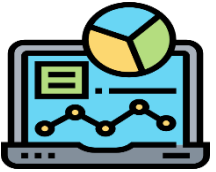


Timely Publications
Information , Orders, Annual Reports

Recommendations and Suggestions (Best Practices, observations, Citizen – Centric approach)

STATE	BEST PRACTICES – REMARKS
Maharashtra	Details of the projects under NCLT shown on website
Himachal	Dedicated QPR dashboard, Dedicated window for Certified Copies, Alteration project view with old and new details, In-depth inventory details with Allottee name.
Uttar Pradesh	Defaulters list with photographs, Promoter-wise complaints and projects
Gujarat	Map View of all Projects with progress details with advance filters
Haryana	Flagging of QPR defaulters and lapsed projects, Publishes Appellate Tribunal judgements
Karnataka	Dedicated project NOC window, land litigation details, Project completion details
Madhya Pradesh	Quarterly Updates with Engineer, CA Certificates with Photograph, Window reporting unregistered projects, Feedback for authority
Odisha	Project Schedule, Means of Finance
Telangana	Search filter with Project with Extensions, Interim Orders
Andhra Pradesh	Fee Calculator, Chronological Listing of Notifications,
Bihar	Daily order of hearing and Court Proceedings, Interim orders

Recommendations and Suggestions (Best Practices, observations, Citizen – Centric approach)



Standard Format for Project Registration Number

➤ State Code – RERA – District Name – Project Type – Project No. – Alteration/Extension – Certificate Issue Date – End Date

➤ **Example 1:** **G J / R E R A / A H M E D A B A D / P R / 0 0 0 0 1 / A 1 / 0 1 0 1 2 0 2 4 / 3 1 1 2 2 0 2 4**

➤ **Example 2:** **M H / R E R A / M U M B A I / P M / 1 0 0 0 0 / E 1 / 0 1 0 1 2 0 2 5 / 3 1 1 2 2 0 2 5**

Abbreviations Used

# GJ:	State Code
# RERA:	Real Estate Regulatory Authority
# AHMEDABAD:	District Name
# PR:	Project Residential PC: Project Commercial PM: Project Mixed Use PP: Project Plotted
# A1/E1:	Alteration Or Extension Number (If Any)
# 01012024:	Project Registration Certificate issue Date in format of DD-MM-YYYY
# 31122024:	Project End Date as per RERA Registration in format of DD-MM-YYYY

Recommendations and Suggestions (Best Practices, observations, Citizen – Centric approach)



Standard Format for Agent Registration Number

➤ State Code – RERA – District Name – Agent – Agent Number – Certificate Issue Date – Certificate Valid till Date

➤ **Example 1:** **G J / R E R A / A H M E D A B A D / A A / 0 0 0 0 1 / 0 1 0 1 2 0 2 5**

➤ **Example 2:** **M H / R E R A / M U M B A I / A A / 1 0 0 0 0 / 3 1 1 2 2 0 2 5**

Abbreviations Used

GJ: State Code

RERA: Real Estate Regulatory Authority

AHMEDABAD: District Name

AA: Agent

01012025: Validity of Certificate as per RERA Registration in format of DD-MM-YYYY

Recommendations and Suggestions (Best Practices, observations, Citizen – Centric approach)

- Subject-wise Information display of project details
- Maximize the use of blockchain and API services such as NSDL, BANKING for data privacy and uniformity
- List of Completed / Extended / Altered Projects should be clearly shown
- Display list of Lapsed / Revoked / Deregistered / Withdrawal Projects
- Search window for project QPRs on Public Domain
- List of Project Under Section-3 Violation and also providing link/window to report such projects
- Project Annual Reports on all states website should be made available
- Defined list of data collection/capturing fields in project view in digital template instead of PDF up to extent possible
- Regular Updating mechanism of data on portal
- Establish a **Mobile application** version for making system user-friendly.
- Use Ideal Parameters identified list to improve uniformity in display
- Creation of **Social Media Platform** on several handles to spread authentic information with AI chatbot, WhatsApp channel/telegram.
- **Centralized Integrated Portal** of all states to get data repository of total project – Revoked, Registration, Investments, Units stock and many such important data sets to guide Urban Development decision and policies

Key Functions for Easy Accessibility to Website



Help



Sitemap



Contact Details



Social Media
Information



Metadata/
Keyword search



Privacy Policy



Glossary of
Technical Terms



Disabled friendly
navigation



Scroll to top
button

DISCLAIMERS:

1. All the details analysed in the matrix are taken as a case of project pageview available on dashboard not the details in particular inserted inside the pdf or any detailed alternate window pageview.

(Data analysed latest up to date: May, 2024)

2. Without any biases, information has been compiled based on information directly available on portal and appearing in public view.

3. We have tried to capture information based on latest project registration. Data has been compared verifying multiple projects of respective state so as to validate the fields provided for submission.



THANK YOU

Complied by -

Chhattisgarh	RERA
Gujarat	RERA
Maharashtra	RERA
Uttar Pradesh	RERA

Technology Led Transformation of Real Estate Sector

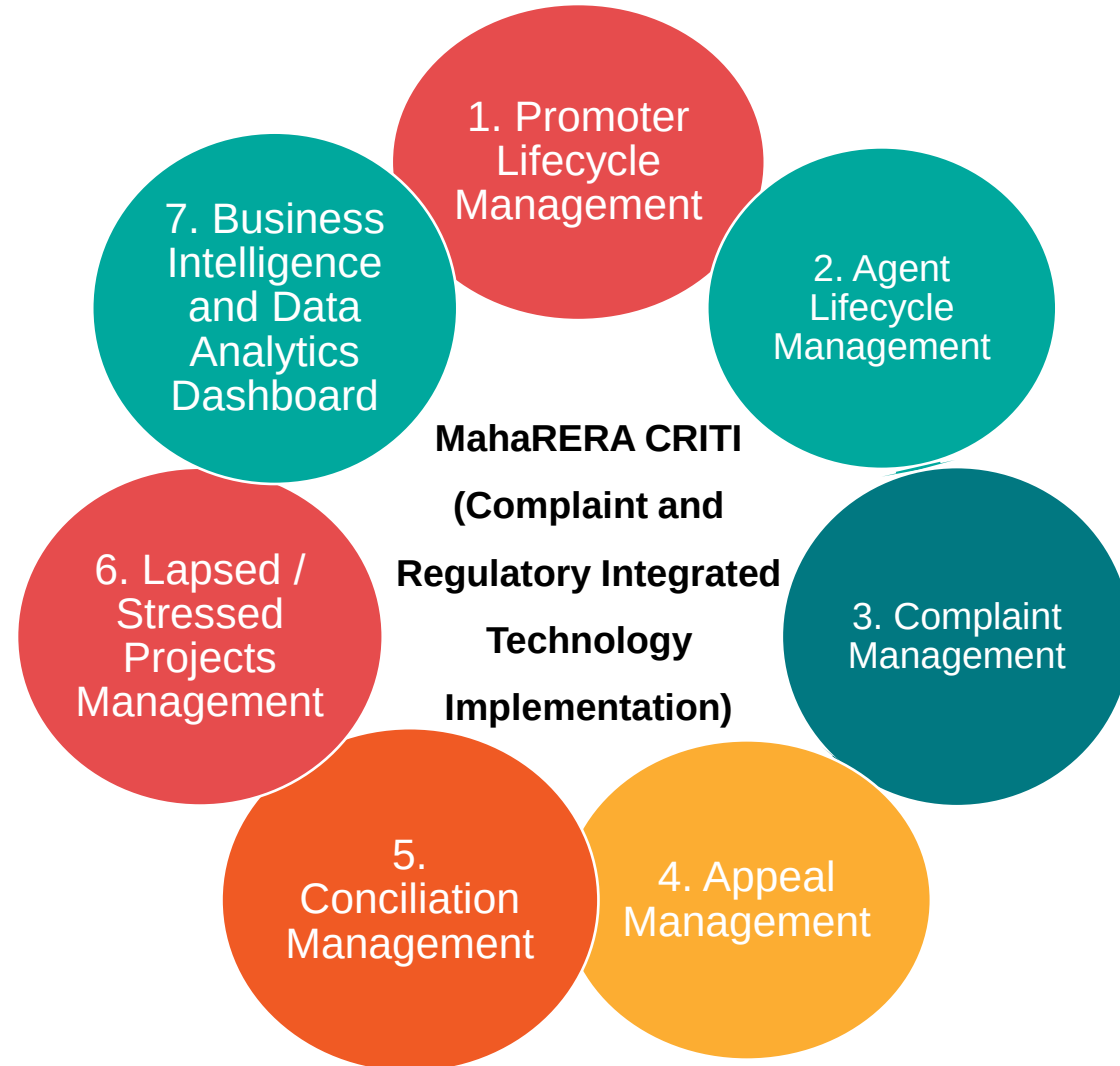
March 2024

An aerial photograph of a city, likely Manila, showing a dense urban landscape. In the foreground, there is a lush green hillside with many trees. In the background, a skyline of modern high-rise buildings is visible against a hazy sky. The word 'MaharERA' is overlaid on the image, with 'Maha' in a dark, bold font and 'RERA' in a light blue, bold font.

MahaRERA

1. MahaRERA CRITI

**MahaRERA CRITI
(Complaint and
Regulatory Integrated
Technology
Implementation)**



1. MahaRERA CRITI

1. Promoter Lifecycle Management



1. MahaRERA CRITI

1. Promoter Lifecycle Management – Digitization of all Data

Digitization of all Forms including Form 1, 2 and 3

Home

My Inbox

General Details

Legal

Technical

Financial

Preview

Payment

Reservation/Road

Building Details

Parking Details

Phase Details

Technical Document

List of NOCs

Select Architect

Shanta Prasad

Architect CoA Reg. No.

123456

Table-A

Layout/Building/Wing Number (To be prepared separately for each Layout/Building/Wing of the project)

Building / Wing Name: Crystal Arcade Phase I / Wing 1

#	Tasks / Activity	Is Available	Start Date	Completion Date	Completion Percentage	Details
1	Excavation	Yes	10/02/2020	10/01/2035		
2	Basement (if any)	No	dd/mm/yyyy	dd/mm/yyyy		
3	Podiums (if any)	No	dd/mm/yyyy	dd/mm/yyyy		
4	Plinth	No	dd/mm/yyyy	dd/mm/yyyy		
5	Stilt Floor	No	dd/mm/yyyy	dd/mm/yyyy		
6	Slabs of Super Structure	No	dd/mm/yyyy	dd/mm/yyyy		
7	Internal walls, Internal Plaster, Floorings, Floors and windows within Flats/Premises	No	dd/mm/yyyy	dd/mm/yyyy		
8	Sanitary Fittings within the flats / premises	No	dd/mm/yyyy	dd/mm/yyyy		
9	Staircases, Lifts Wells and Lobbies at each Floor level Overhead and Underground Water Tanks	No	dd/mm/yyyy	dd/mm/yyyy		
10	External plumbing and external plaster, elevation, completion of terraces with waterproofing of the Building / wing.	Yes	24/02/2021	28/02/2033		
11	Installation of Lifts, water pumps, Fire Fighting Fittings and Equipment as	No	dd/mm/yyyy	dd/mm/yyyy		

1. MahaRERA CRITI

2. Real Estate Agent Lifecycle Management



1. MahaRERA CRITI

3. Complaint Management



Three types of Complaints:

- **Against Registered Projects**
- **Against Unregistered Projects**
- **Regulatory Complaints including Suo-Motu**



1. MahaRERA CRITI

3. Complaint Management – Snapshots of few Innovative Features

Maharashtra Real Estate Regulatory Authority

Home

Inbox

Complaints

Appeals

Roznama

Order

Causelist

Profile

Helpdesk

Search by *

Enter Project or MahaRERA Registration Number *

Project or MahaRERA Registration Number

MahaRERA Registration Number

PC1170002300021

Project Name

Crystal Arcade

Promoter Name

KamleshKumar Rawte

Project Address

Mumbai

District

Mumbai City

Taluka

Mumbai City

Pin Code

564321

Maharashtra Real Estate Regulatory Authority

Home

Inbox

Complaints

Appeals

Roznama

Order

Causelist

Profile

Helpdesk

Register Complaint under section 31/miscellaneous

Project Details

Complainant Details

Respondent Details

Complaint Facts

Relief(s) Sought

Declaration

Preview

Complaint Summary/Synopsis

Respondent Details

Respondent Type *

Promoter

Respondent Name *

Kamlesh Kumar Rawte

Present Address

Unit Number

Unit 101

Block Number

block 22311

Building Name

building Situated in band stand.

Street Name *

rajpath

Locality *

Band stand

Landmark *

gateway of India

Automatic data of Respondent and Project is populated, when Complainant enters Project Reg No.

Project Details

Respondent Details

1. MahaRERA CRITI

3. Complaint Management – Snapshots of few Innovative Features

Complainant has to specify sections under which relief is being sought

**Maharashtra Real Estate Regulatory Authority**

[Home](#)
[Inbox](#)
[Complaints](#)
[Appeals](#)
[Roznama](#)
[Order](#)
[Causelist](#)
[Profile](#)
[Helpdesk](#)

Relief(s) Sought

Enter Section number ^{*}

#	Section Title	Relief Sought	Action
12	Obligations Of Promoter Regarding Veracity Of The Advertisement Or Prospectus	I seek redressal under Section 12 of the RERA Act, 2016, as the amenities and specifications promised to me, both verbally and as depicted in advertisements and the project's prospectus, are not in line with what has been delivered. The promoter's fa ... Read More	 
14	Adherence To Sanctioned Plans And Project Specifications By The Promoter	I invoke my rights under Section 14(2) of the RERA Act, 2016, which mandates the promoter to rectify, at his own cost, any structural defects or other deficiencies observed in the work quality. Despite multiple communications and reminders, the promo ... Read More	 
18	Return Of Amount And Compensation	I seek relief under Section 18 of the RERA Act, 2016 due to the undue delay in handing over possession of the property as was stipulated in our agreement for sale. Despite having made the necessary payments as per the agreement terms, I am yet to rec ... Read More	 

1. MahaRERA CRITI

3. Complaint Management – Snapshots of few Innovative Features

Both Parties confirm the agreed facts and disputed Fact

Complaint Summary/Synopsis					
Complaint Details	Complainant Submission	Supporting Document(s)	Respondent Response (Agree/Disagree)	Respondent Response if disagree	Supporting Document(s)
Facts of Case	In... Read More		Agree Disagree	XY... Read More	
Date of Booking	04/03/2024	1.pdf	Agree Disagree	04/03/2024	2.pdf
Date of Allotment	04/03/2024	2.pdf	Agree Disagree	NA	
Date of Agreement	10/03/2024	3.pdf	Agree Disagree	03/03/2024	5.pdf
Building Details		1.pdf	Agree Disagree	NA	
Date of Possession agreed	05/03/2024	5.pdf	Agree Disagree	NA	
Date of Possession Offered	10/03/2024	4.pdf	Agree Disagree	NA	
Date of Possession Taken	NA		Agree Disagree	NA	
Date of Occupancy Certificate	NA		Agree Disagree	NA	

1. MahaRERA CRITI

3. Complaint Management – Snapshots of few Innovative Features

Automation of Roznama & Order generation

Close for Final Order After

Do you wish to generate order ☐

Save & Generate Roznama

#	Date and Time	Roznama	Hearing Type	Case Status	View Document	Uploaded By
1	2024-01-19-10:00 AM - 10:30 AM	View	First Hearing (Conciliation)	Open		Shaleen Ahluwalia
2	2024-01-19-10:00 AM - 10:30 AM	View	First Hearing (Conciliation)	Open		Shaleen Ahluwalia
3	2024-02-21-11:00 AM - 11:45 AM	View	First Hearing (Conciliation)	Open		Harshad Achrekar

ANNEXURE C - Roznama

DATE: 14/02/2024

SR.NO : 23

BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI

Virtual Hearing held through video conference as per MahaRERA Circular No.: 27/2020
CORAM: Ajoy Mehta, MahaRERA

Complaint No.CC12400048

1.Aniket Pradip Kannalu

...COMPLAINANT/S

Vs

1.Mumbai Developers

...RESPONDENT/S

MahaRERA Project registration No. PC1170002300021

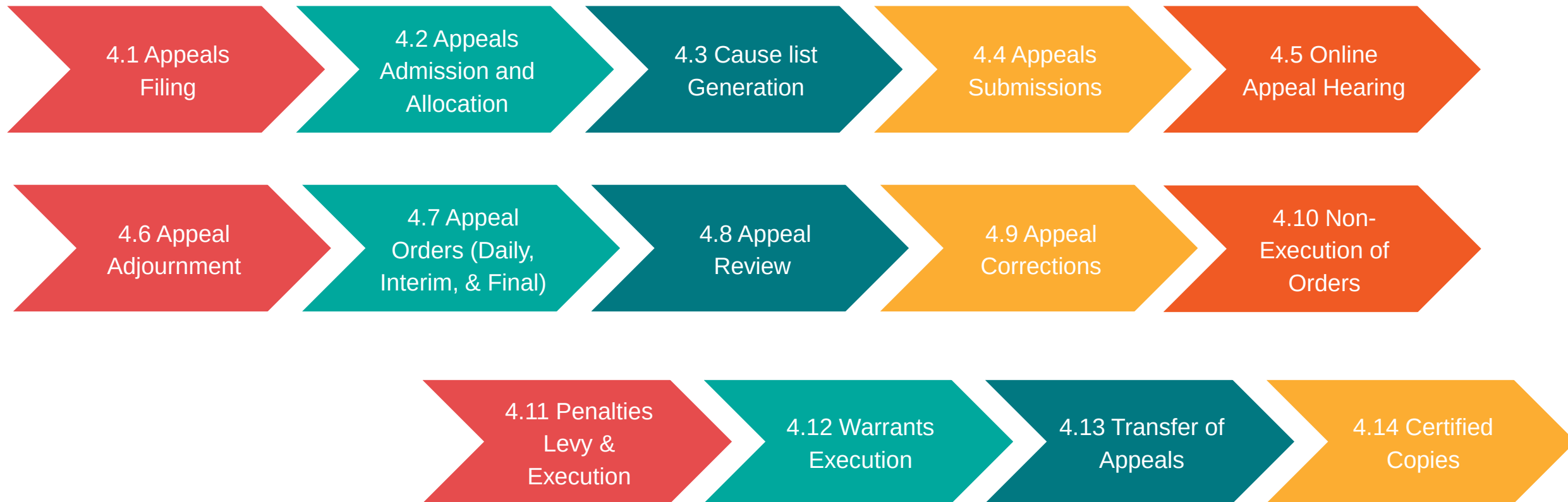
ROZNAMA

(First Hearing (Conciliation))

Appearance of Complainant/s	Appearance of Respondent/s
Advocate Present	Advocate Present
Hearing commenced. The presiding officer addressed the gathering. A brief recap of the previous proceedings was presented, highlighting the main grievances and responses. The complainant, Mr. XYZ, reiterated the problems faced due to the delays and requested a timely resolution and compensation. Dreamland Builders' representative, Ms. ABC, expressed willingness to expedite the project and offer a compensation for the delay. After reviewing all documents and deliberating on the matter, MahaRERA issued the final order: 1. Dreamland Builders is to complete the 'Skyview' project by 31st December 2023. 2. Dreamland Builders shall compensate affected parties at the rate of 5% of the property's value for the delay. 3. Regular progress reports are to be submitted to MahaRERA every fortnight until project completion. The presiding officer announced that the final order would be generated post the day's proceedings. The session concluded, with both parties awaiting the final order.	

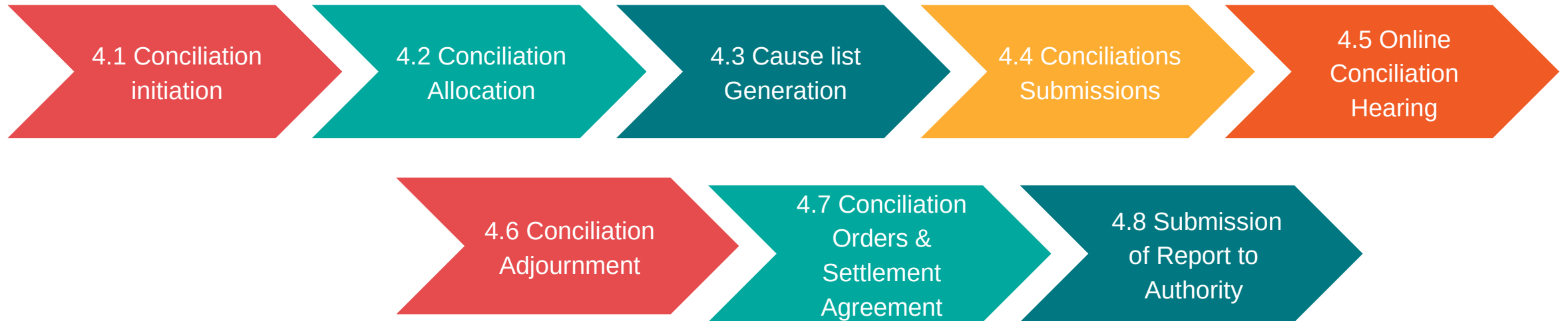
1. MahaRERA CRITI

4. Appeals Management



1. MahaRERA CRITI

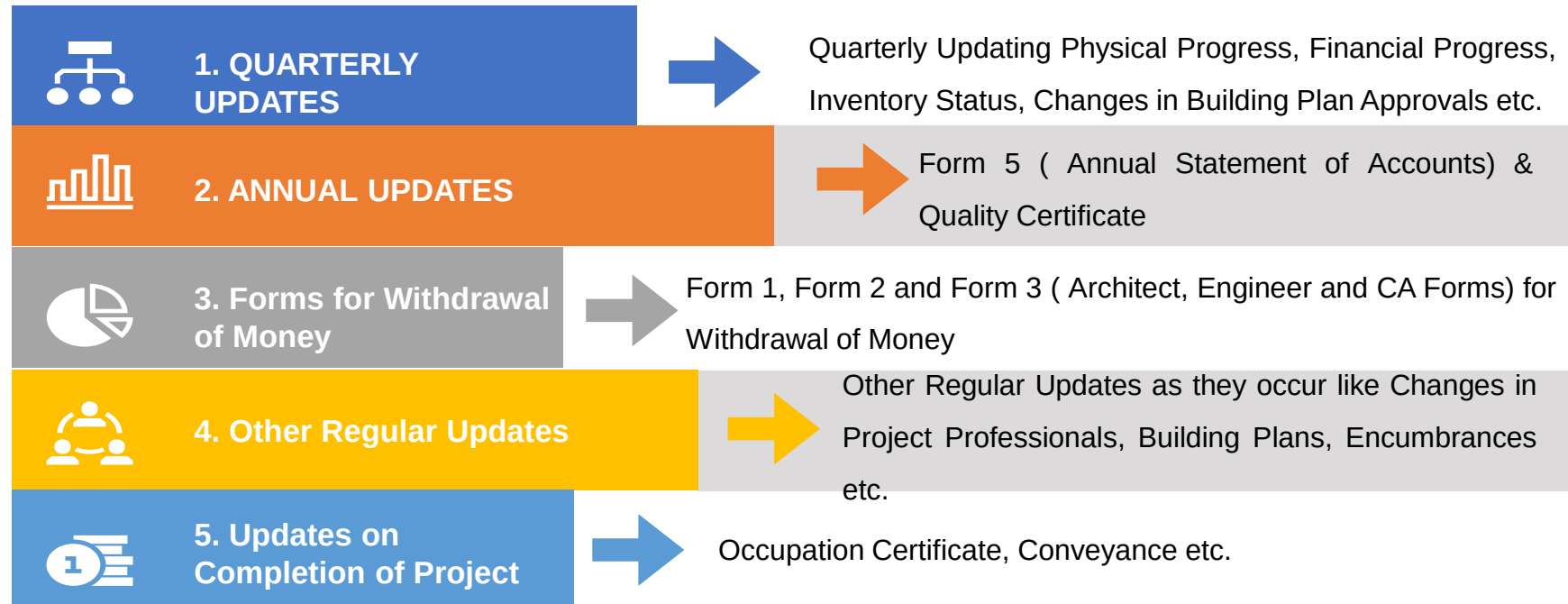
5. Conciliation Management



1. MahaRERA CRITI

6. Compliance

Every registered real estate project is required to submit following compliances



This module is responsible for monitoring the compliance and undertaking action against non-compliant promoters including issuance of show cause notices , hearings, orders, abeyance of projects, penalties etc.

1. MahaRERA CRITI

Additional Features

- Mobile Application for Stakeholders
- Help Desk Support: Deploy people in MahaRERA Helpdesk
- Automated Chatbots / Web Assistants
- Integration with other Govt Department IT systems including MCGM, IGR etc.
- Training of all Stakeholders
- Comprehensive Video Tutorials, User Manuals etc

2. QR Code - Introduced QR Code across all Registered Projects in March 2023

In March 2023, MahaRERA Introduced QR Code to provide transparent information to homebuyers with a single scan


Maharashtra Real Estate Regulatory Authority
REGISTRATION CERTIFICATE OF PROJECT
FORM 'C'
[See rule 6(a)]

This registration is granted under section 5 of the Act to the following project under project registration number : **P52100051110**
Project: **Veer Shivansh** , Plot Bearing / CTS / Survey / Final Plot No.: **103/2, Plot No 20 and 21 at Wadgaon (CT), Mawal, Pune, 412106**

1. **Veershivansh Developers Lip** having its registered office / principal place of business at : **Tehsil: Thane, District: Thane, Pin: 400614.**

2. This registration is granted subject to the following conditions, namely:-

- o The promoter shall enter into an agreement for sale with the allottees;
- o The promoter shall execute and register a conveyance deed in favour of the allottee or the association of the allottees, as the case may be, of the apartment or the common areas as per Rule 9 of Maharashtra Real Estate (Regulation and Development) (Registration of Real Estate Projects, Registration of Real Estate Agents, Rates of Interest and Disclosures on Website) Rules, 2017;
- o The promoter shall deposit seventy percent of the amounts realised by the promoter in a separate account to be maintained in a schedule bank to cover the cost of construction and the land cost to be used only for that purpose as per sub-clause (D) of clause (i) of sub-section (2) of section 4 read with Rule 5;

OR

That entire of the amounts to be realised hereinafter by promoter for the real estate project from the allottees, from time to time, shall be deposited in a separate account to be maintained in a scheduled bank to cover the cost of construction and the land cost and shall be used only for that purpose, since the estimated receivable of the project is less than the estimated cost of completion of the project.

- o The Registration shall be valid for a period commencing from **29/05/2023** and ending with **31/03/2025** unless renewed by the Maharashtra Real Estate Regulatory Authority in accordance with section 5 of the Act read with rule 6.
- o The promoter shall comply with the provisions of the Act and the rules and regulations made there under;
- o That the promoter shall take all the pending approvals from the competent authorities

3. If the above mentioned conditions are not fulfilled by the promoter, the Authority may take necessary action against the promoter including revoking the registration granted herein, as per the Act and the rules and regulations made there under.

Signature valid
Digitally Signed by
Dr. Vasan Premnand Prabhu
(Secretary, MahaRERA)
Date: 29-05-2023 14:17:16

Signature and seal of the Authorized Officer
Maharashtra Real Estate Regulatory Authority

Dated: 29/05/2023
Place: Mumbai



Project Details

Project Name: Veer Shivansh
Promoter Name: VEERSHIVANSH DEVELOPERS LLP
Certificate Download: 

Promoter Organization Name:

Sr. No.	Name of Self-Regulatory Organization (SRO)	Membership Number
1	NAREDCO (National Real Estate Development Council)	12345678

District: Pune
Registration Date: 29/05/2023
Proposed Date of Completion: 31/03/2025

Extension under Section 6:

Sr. No.	From Date:	To Date:
1st Extension	NA	NA

Extension under Section 7 (3):

Sr. No.	From Date:
1st Extension	NA

Building Details

Number of Apartment: 17
Number of Booked Apartment: 0
Percentage of Booked Apartment: 0

Form 5

Percentage of Work:

Sr. No.	Building Name
1	Veer Shivansh

Complaint Details:

Sr. No.	Complaint Number	Date	Appeal Filed
1	NA	NA	NA

Non Compliance Details:

For Warrant Issued:

Project Details

2. QR Code - From 1st August 2023, QR Code mandatory in all marketing material



As per MahaRERA Order No: 46/2023 dated 29th May 2023, QR Code is mandatory in each and every Project promotion / advertisement published after 1st August 2023.

The mandate as mentioned shall apply to the following mediums of promotion / advertisement and in any other medium as may be directed by the Authority.



- **Advertisements on Newspaper / Magazines / Journals etc.**
- **Printed Flyers / Brochures / Catalogues / Leaflets / Prospectus**
- **Standees on Project Sites / Sales Office**
- **Websites / webpages of Projects**
- **Social Media Advertisements**
- Any other Advertisements where QR codes can be published



The QR code must be published in a manner that is legible, readable, and detectable with software application.

2. QR Code - Dedicated Cell established for violation of Advertisement Guidelines

- MahaRERA has established dedicated cell, where on suo-motu basis , violations in Advertisements / Marketing Material are being identified and hearings being undertaken.
- Appropriate Penalty / Action is undertaken for violation of Advertisement protocol as defined in Act, Rules, Regulations & Orders made thereunder.



3. MahaRERA & MCGM Integration

MahaRERA officer can view and compare project documents with MCGM documents, DP remarks, site photos and videos etc.

MCGM Details

[View MCGM Documents](#)[Compare MCGM Documents](#)[View Photos/ Videos](#)[View DP Remark](#)[View All NOC's](#)

Photographs

File Number	Side	Action
P-7703/2021/(6A)/H/W Ward/FP	East	View Photo
P-7703/2021/(6A)/H/W Ward/FP	South	View Photo
P-7703/2021/(6A)/H/W Ward/FP	West	View Photo
P-7703/2021/(6A)/H/W Ward/FP	North	View Photo

Videos

File Number	Side	Action
P-7703/2021/(6A)/H/W Ward/FP	East	View Video
P-7703/2021/(6A)/H/W Ward/FP	South	View Video
P-7703/2021/(6A)/H/W Ward/FP	West	View Video
P-7703/2021/(6A)/H/W Ward/FP	North	View Video

3. MahaRERA & MCGM Integration

MahaRERA officer can view and compare project documents with MCGM documents, DP remarks, site photos and videos etc.

East



West



North



South



Photos of
project site
from MCGM

Thank You

MaharERA

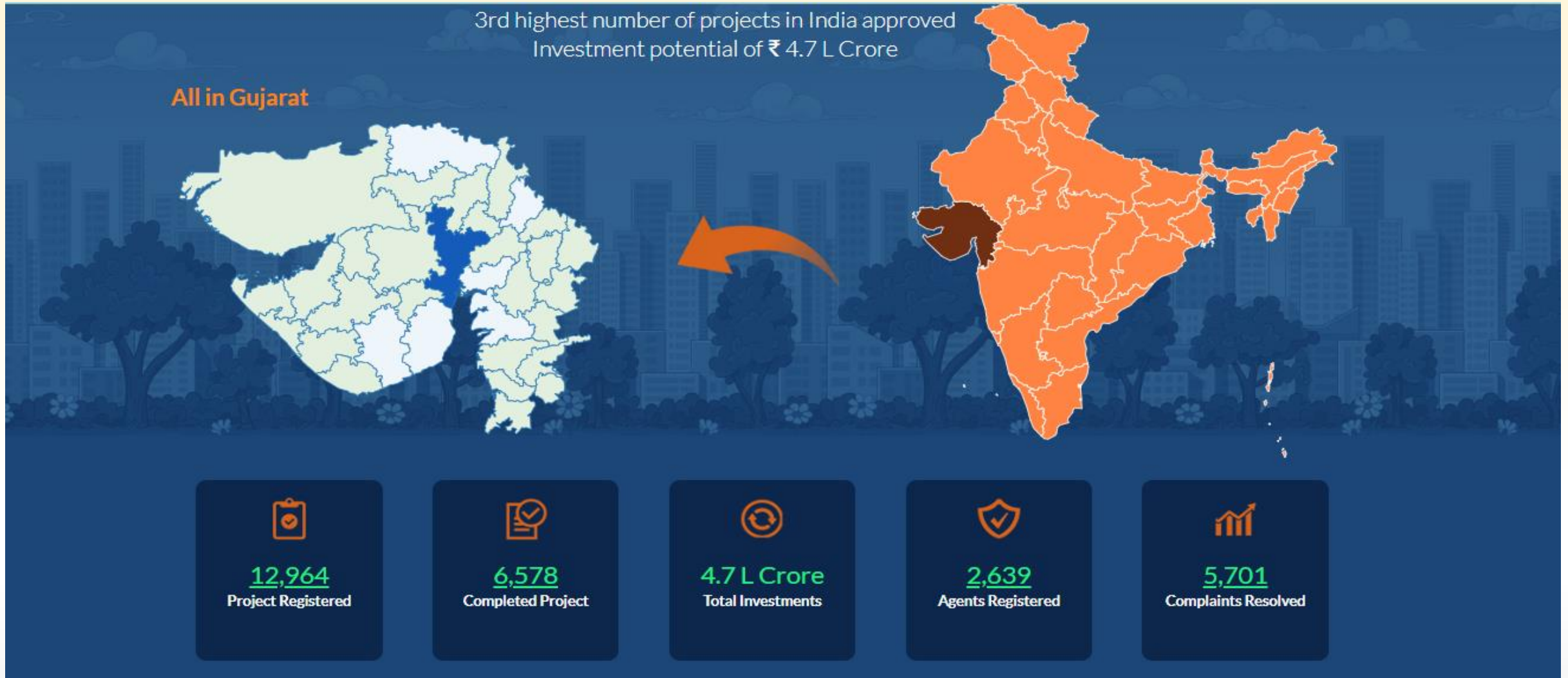




Gujarat RERA New Portal (RERA 2.0)

Gujarat Real Estate Regulatory Authority (GujRERA)

Gujarat RERA Demographic status

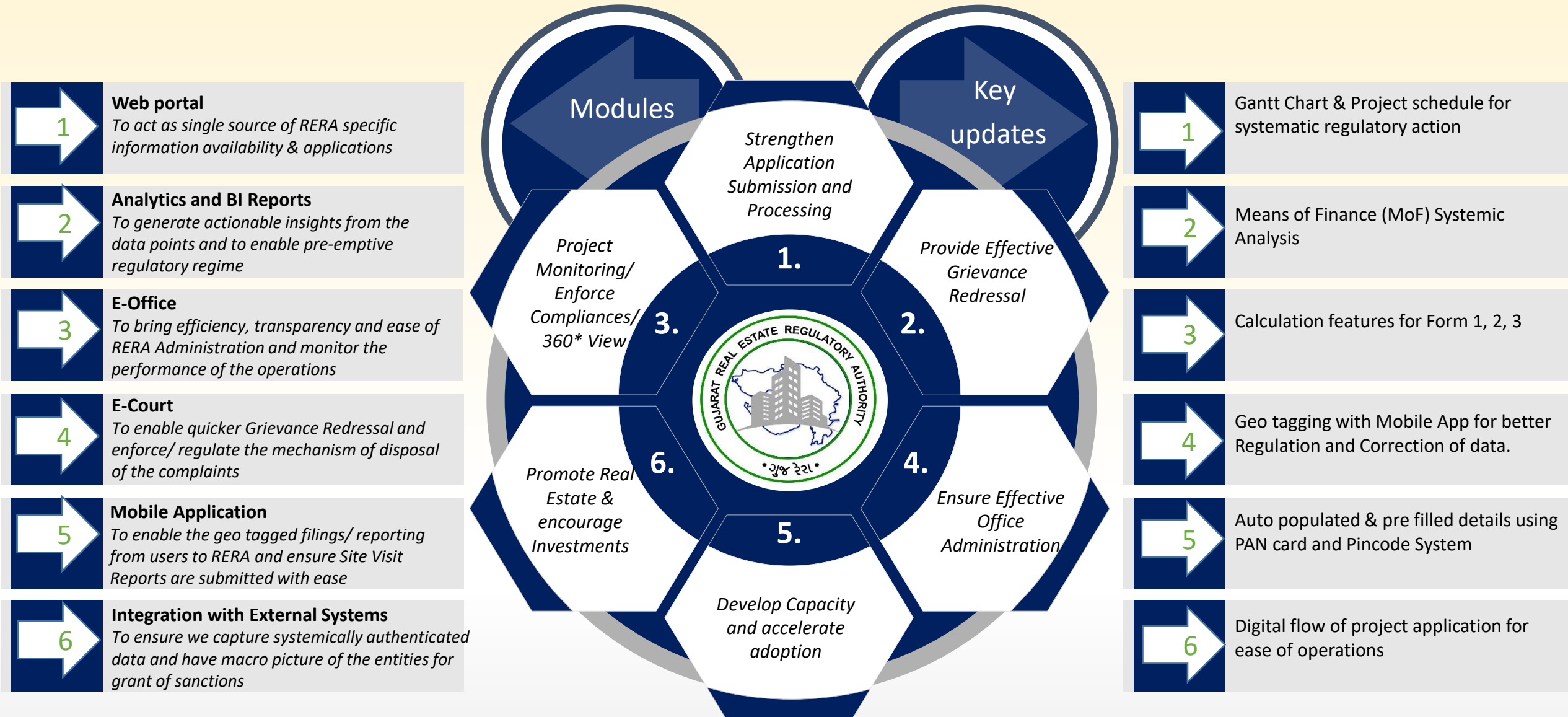


Gujarat RERA New Portal at Glance (RERA 2.0)

- 1. Objectives of RERA 2.0**
- 2. Moving from 1.0 to 2.0 – Improved Operations**
- 3. Benefits/Improvements in RERA 2.0**
- 4. Envisaged Outcomes of RERA 2.0**

1. Objectives of RERA 2.0

Objectives of RERA 2.0

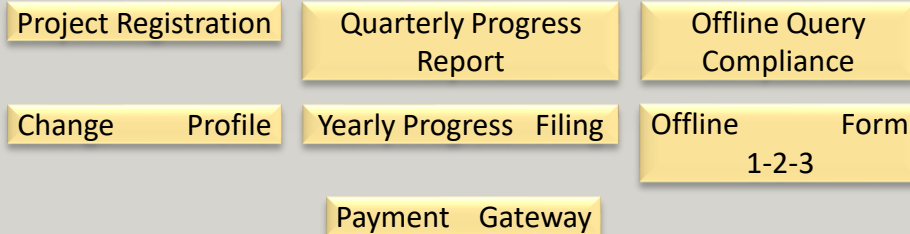


2. Improved Operations

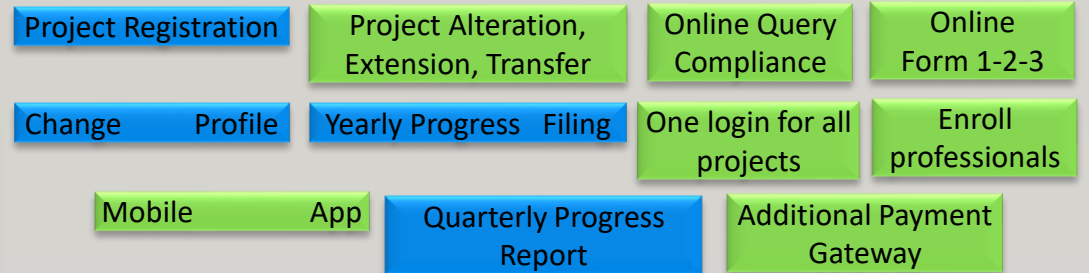
Moving from 1.0 to 2.0 – Improved Operations

RERA 1.0

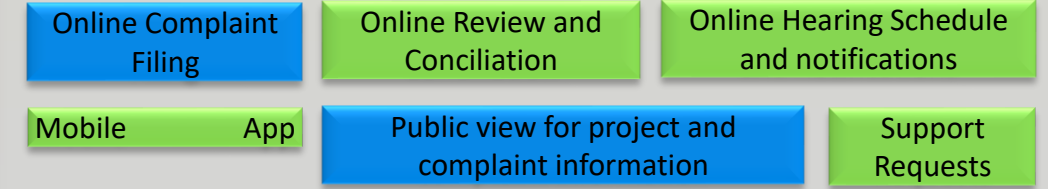
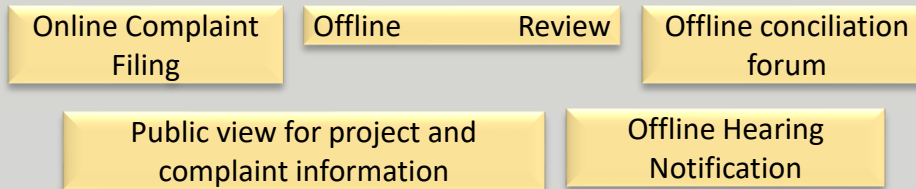
Promoters / Professionals



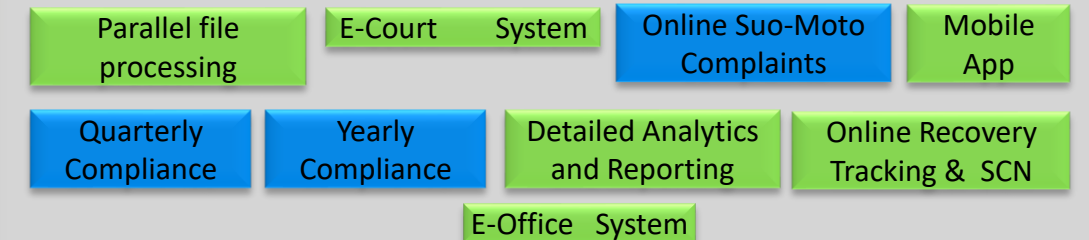
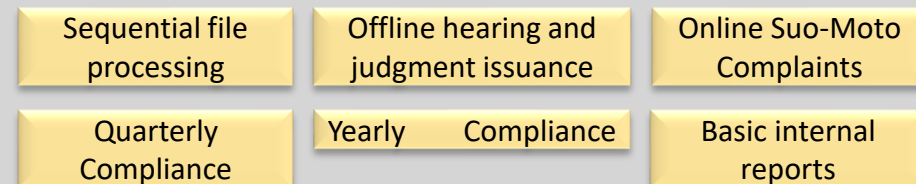
RERA 2.0



Allottees / Citizens



Authority



- Improved

- Newly Added

3. Benefits/Improvements in RERA 2.0

Benefits/Improvements for Promoters / Professionals

One stop view for each promoter

One stop view for each promoter

The RERA 2.0 portal offers single login for all actions in which promoter / professionals can carry out transaction of all his/her projects with detailed dashboard and notifications

Online Alteration, Extension

Online Alteration, Extension

RERA 2.0 allows promoters to submit online alteration, extension application and digital internal processing to reduce paper trails and faster processing

Excel based simplified Form 1, 2, 3 and MoF submissions

Excel based Form 1,2,3 and MoF submissions

RERA 2.0 shall enable Excel based Form 1,2,3 and MoF submissions thus providing offline filling, systemic validation and pre-population of data leading to fast, easy and pre-validated data submission at the Promoter's end.

Auto calculated and Pre-filled fields with certain systemic validation.

Auto calculated and Pre-filled for quick and reliable filing of application

RERA 2.0 systemic validations shall enable Auto calculated (across forms) and Pre-filled fields (specially in case of QPR) to ensure quick and error free submission of application by the Promoter.

Benefits/Improvements for Promoters / Professionals

Mobile OTP and E-mail OTP based submission and ease of tracking Application status

Mobile OTP and E-mail OTP based submission of Forms and Enrollment of Promoters

This shall enable quick and two factor authenticated submission/enrolment thus absolving the need for physically signed submissions

System generated Gantt Charts

System generated Gantt Charts for Promoter's ease of monitoring projects

In RERA 2.0, system generated Gantt charts based on Project, Block and Activity Start and End dates, shall be made available in the Promoter's dashboard, thus enabling the Promoter in tracking progress against the said timelines for all RERA registered projects

PAN enabled search for ease of submissions

PAN enabled search for ease of assigning professionals

PAN search shall enable quick addition and assignment of Form 1,2 & 3 to respective professionals with perfected datasets for ease of application and QPR filling.

Benefits/Improvements for Allottees

Citizen account for tracking requests

Citizen account for tracking requests

The RERA 2.0 portal offers allottee account option in which allottee can raise, track, manage and respond to request raised by him / her online with RERA.

Improved property search and home buying experience

Improved property search and home buying experience

RERA 2.0 public view provides variety of property search options with map location and requirement filters for ease of searching.

Mobile App for searching and tracking on fingertips

Mobile App for searching and tracking on fingertips

This shall result in quick access and ease of tracking submitted application status by the applicant

End to end grievance redressal by e-Courts

End to end grievance Redressal experience through e-Courts

Portal will offer complete complaint redressal journey from raising a complaint to hearing notifications and judgement publishing online through timely alerts and notification on mobile, email and portal

Periodic notifications and alerts on SMS & email

Periodic notifications and alerts on SMS & email

Notification will send through SMS & email for compliances

Online Review filing and support request

Online Review filing and support request

Unlike RERA 1.0, RERA 2.0 portal will allow applicants to file online review on the complaints and Online option for raising and resolving any portal and RERA related queries .

Benefits/Improvements for Authority & other Govt. Bodies

Projects data helpful for other authorities – ULBs, CTP, UD, Income Tax & GST etc.

Parallel processing of project files for faster processing, Online query generation and view response

Internal e-Office for reduced paper trail integrated with RERA projects

Customized analytical reports for improved decision making for regulatory regime

E-Courts & hearing management

Data helpful for other authorities

RERA 2.0 collects data related to TP / Non-TP areas, BU permissions details, Building height details etc. to help other authority like Urban local bodies, development authorities, Fire authorities etc for informed decision making and Latest physical progress dated image data uploaded during Quarterly progress report with geo-tagging in RERA 2.0 with enable Income tax and GST Department about the project.

Parallel processing of applications

This shall enable the Authority to process submitted applications swiftly leading to reduction in processing time and quicker approvals.

Internal e-Office System

New internal e-Office system to reduce paper trail and store the information digitally integrated with project information

Customized analytical reports for improved decision making

To generate actionable insights from the data points and to enable pre-emptive regulatory regime

E-Courts

Online scheduling and hearing management through RERA 2.0 portal for complete digital trail of all hearings and judgements

RERA 2.0 - Building allottee confidence & enabling transparency

KENS CORNER

GUJRERA Reg. No. :PR/GJ/AHMEDABAD/AHMEDABAD CITY/AUDA/CAA11069/EX1/090523

[View scanned Document](#)

Project Profile

Promoters

Progress & RERA Actions

Detailed project progress on public view with geo-tag site progress photograph

Construction / Booking Status (Last Updated On 06-06-2023)

Category	Percentage
KENS CORNER	100%
Common Amenities	91%

● Booked ● Unbooked

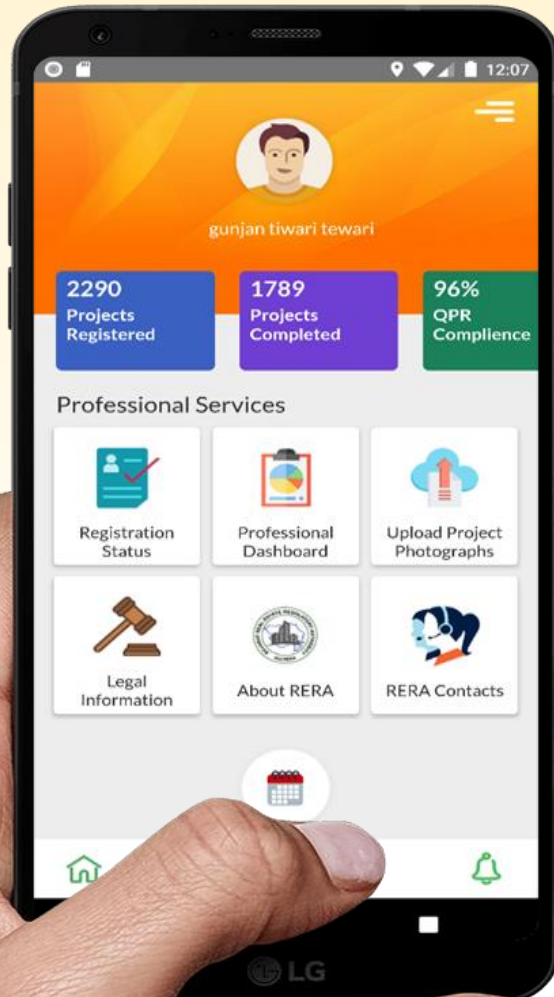
KENS CORNER

26111

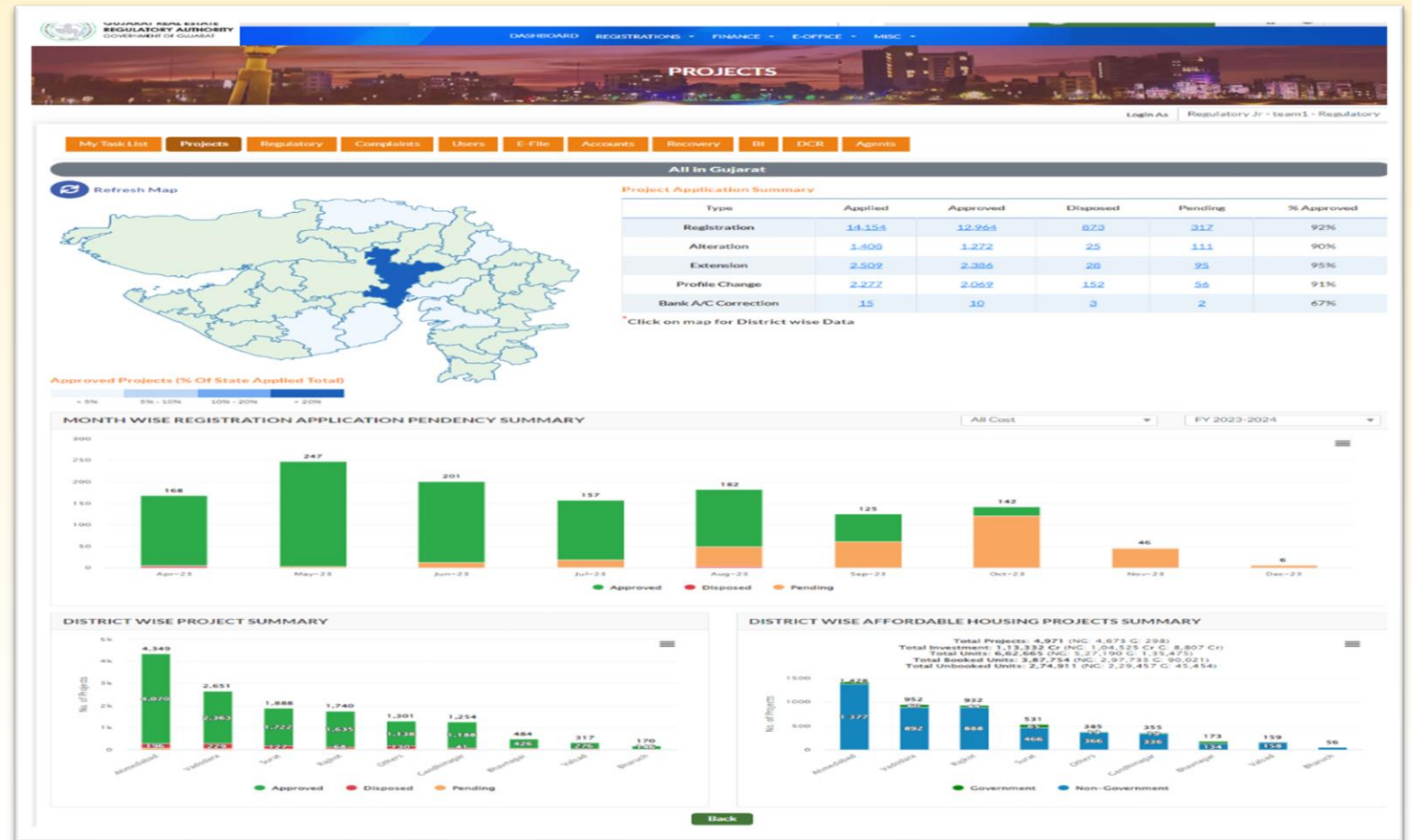
Unit Wise Booking Status

1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16	17	18	19	20	21	22	23	24	25
26	27	28	29	30	31	32	33	101	102	103	104	105	106	107	108	109	110	111	112	113	114	115		
116	117	118	119	120	121	122	123	124	125	126	127	128	129	130	131	132	133	134	201	202	203			
204	205	206	207	208	209	210	211	212	213	214	215	216	217	218	219	220	221	222	223	224	225			
226	227	228	229	230	231	232	233	234	301	302	303	304	305	306	307	308	309	310	311	312	313			

GujRERA Mobile App



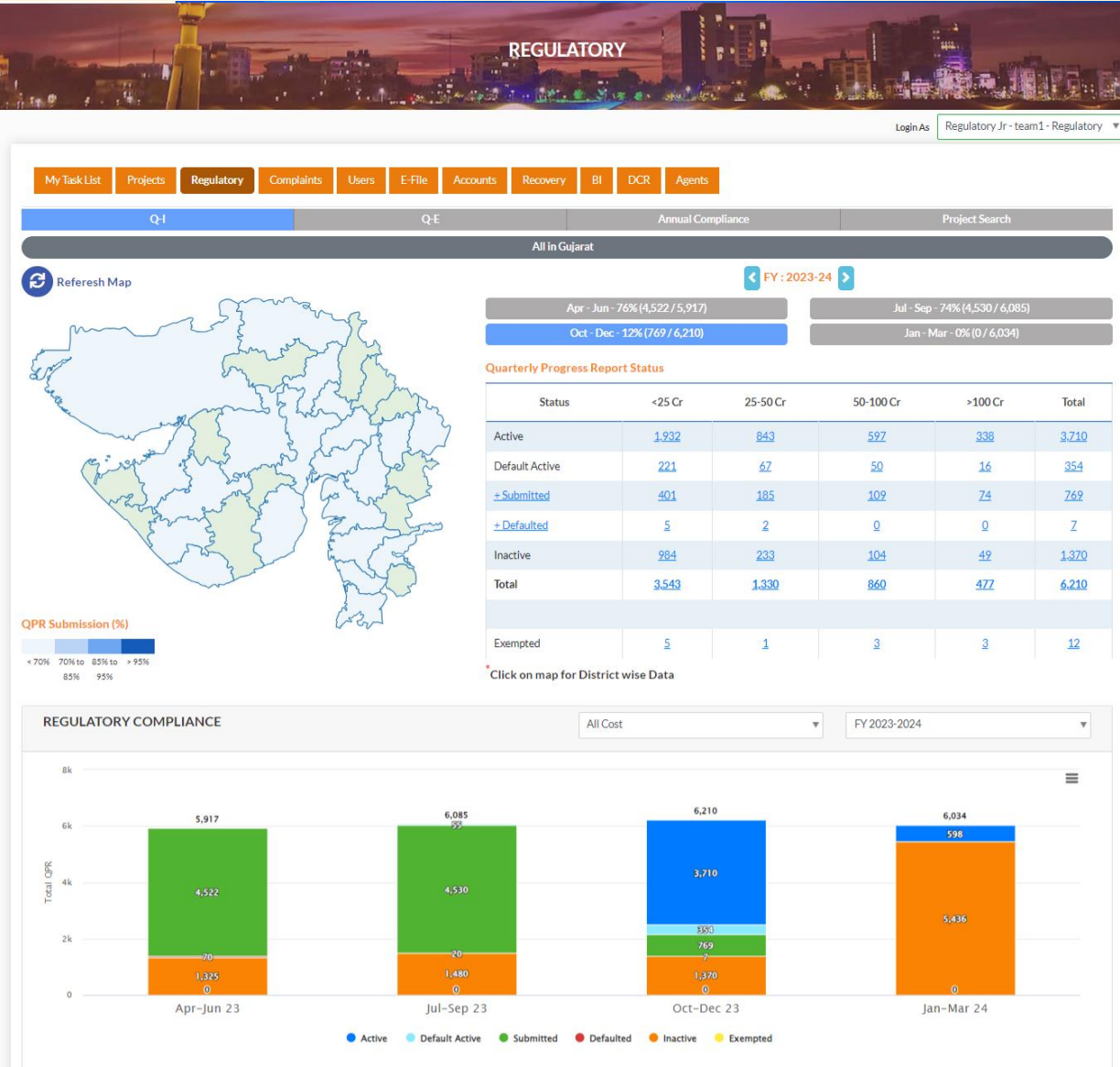
GujRERA Portal- RERA 2.0



After Login

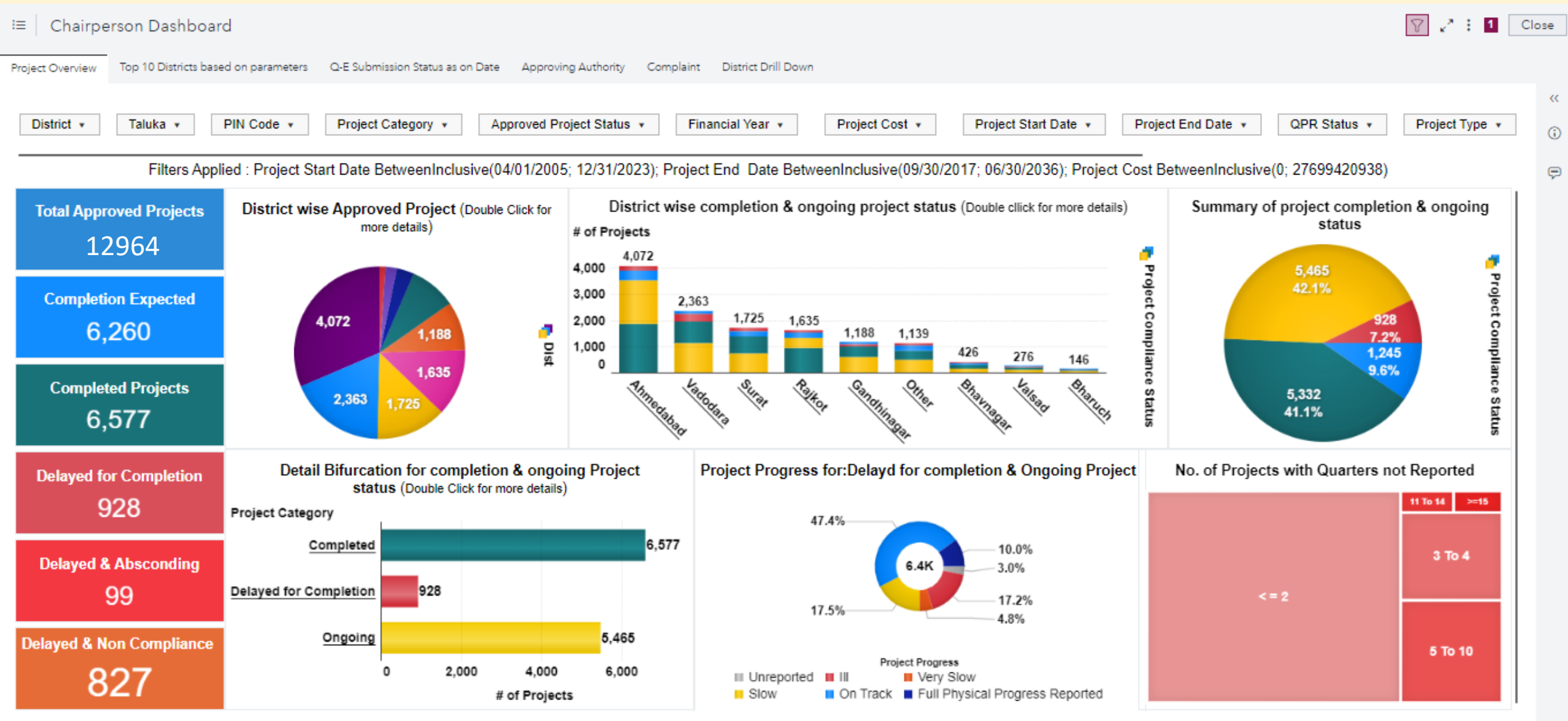
- View of Mobile application Screen for all stakeholder
- View of RERA Portal 2.0 after authority login

Regulatory Dashboard for monitoring “Quarterly Progress Report” Status in RERA 2.0 portal



Authority can be issued notice against promoter through the RERA 2.0 portal

Chairperson Dashboard for monitoring all the Registered projects [SAS (BI)]



* As on 24th November 2023

360 View Dashboard for monitoring Project Details [SAS (BI)]

SAS® Visual Analytics - Report Viewer

Project 360 View

Section 1

Project 360 View

Promoter PAN #Project Registration #Promoter Name

Enter Promoter PAN #...Enter Project Registration #...Enter Promoter Name...

Promoter details

Promoter PAN # ▲	Promoter Name	Promoter Email ID	Promoter Mobile Number
AAAAN5530F	KRUPESHBHAI N PATEL AND OTHERS	rrathwa@neptunerealty.in	7069034506
AAAAO5603N	odhav angan co hsg soc	odhavangan@gmail.com	9825659628
AAAAU6085E	UMA CO OP HOUSING SOCIETY LIMIT...	umasociety14@yahoo.com	9925644044
AAABV0141M	VADODARA URBAN DEVELOPMENT A...	FP149RERA@GMAIL.COM	9723665665
AAABV0141M	VADODARA URBAN DEVELOPMENT A...	bhumiprocon@gmail.com	9925171105

Project details

Project Registration #	Project Type	Cost Category	District	Project Start Date
PR/GJ/VADODARA/VADODARA/Others/RAA02133/...	Residential/Group Hou...	< 25 Crore	Vadodara	05/09/2017
PR/GJ/SURAT/SURAT CITY/SUDA/CAA01143/A1C/...	Commercial	> 100 Crore	Surat	05/09/2017
PR/GJ/AHMEDABAD/AHMEDABAD CITY/AUDA/R...	Residential/Group Hou...	25-50 Crore	Ahmedabad	05/09/2017
PR/GJ/JUNAGADH/JUNAGADH/Others/RAA06306/...	Residential/Group Hou...	< 25 Crore	Junagadh	14/08/2019
PR/GJ/PANCHMAHA S/KALOL/Others/RAA06722/...	Residential/Group Hou...	< 25 Crore	Panchmahals	14/08/2019

Quarterly report progress analysis

Project Registration #	QPR status	Project Progress	Last Quarter Available ▲	Priority Level	Time Lapsed	Archilect Score	Engineer Score	CA S
PR/GJ/AHMEDABAD/AHMEDABAD CITY/AUDA/RAA12362/041023	First Timer	Slow	NA	Not Flagged	15.39	0	99999	
PR/GJ/VADODARA/VADODARA/Others/RAA12449/131023	First Timer	Slow	NA	Not Flagged	5.46	0	99999	
PR/GJ/GANDHINAGAR/GANDHINAGAR/Others/MAA12154/170823	First Timer	Slow	NA	Not Flagged	11.37	0	99999	
PR/GJ/MEHSANA/MAHESANA/Others/RAA12595/071123	First Timer	Slow	NA	Not Flagged	12.22	0	99999	
PR/GJ/AHMEDABAD/AHMEDABAD CITY/AUDA/MAA12146/170823	First Timer	Slow	NA	Not Flagged	14.03	0.796875	99999	

Annual compliance

Project Registration # ▲	Liability for Form-5	RAF for Q #9	RAF for Q #8.2	RAF for Q #10.2	RAF for Q #8.1	RAF for Q #8.1
PR/GJ/AHME/DASKROI/Ahmedaba...	Not Liable for Form-5	N/A	N/A	N/A	N/A	N/A
PR/GJ/AHMEDABAD/AHMADABAD ...	Liable for Form-5	Yes	No	No	No	No
PR/GJ/AHMEDABAD/AHMADABAD ...	Not Liable for Form-5	N/A	N/A	N/A	N/A	N/A
PR/GJ/AHMEDABAD/AHMADABAD ...	Not Liable for Form-5	N/A	N/A	N/A	N/A	N/A
PR/GJ/AHMEDABAD/AHMADABAD ...	Liable for Form-5	Yes	No	No	No	No

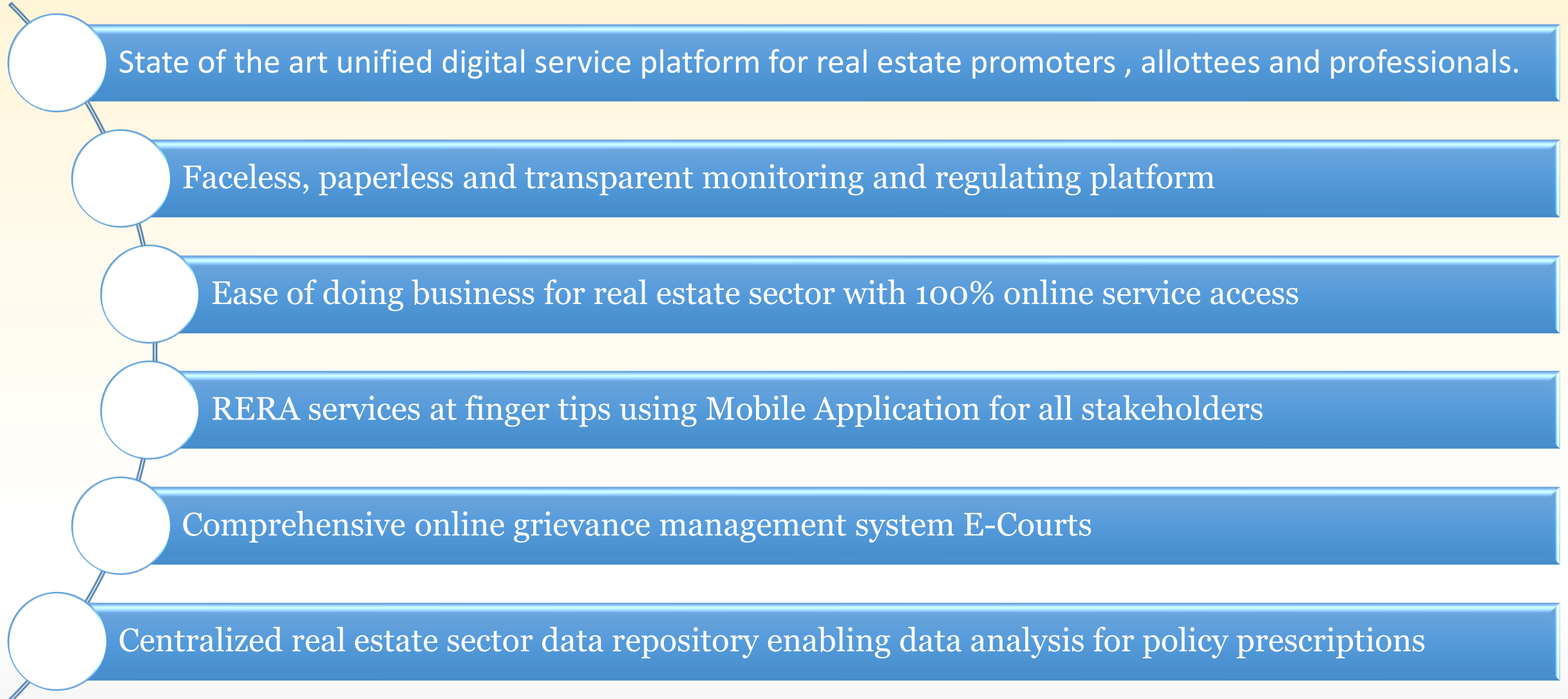
Complaints

Project Registration #	Raised	Open ▼	Judgement passed	Disn
PR/GJ/SURAT/SURAT CITY/SUDA/CAA03971/051118	65	63	0	
PR/GJ/AHMEDABAD/AHMEDABAD CITY/AUDA/MAA01388/EX1/191...	80	42	0	
PR/GJ/AHMEDABAD/AHMEDABAD CITY/AUDA/RAA02084/EX1/180...	59	40	0	
PR/GJ/GANDHINAGAR/GANDHINAGAR/Others/CAA00788/EX1/180...	24	19	0	
PR/GJ/VADODARA/VADODARA/Others/MAA02066/190318	9	16	0	

Authority can get details of project by searching key words like: PAN number, RERA registration Number & Promoter Name

4. Envisaged Outcomes of RERA 2.0

Envisaged Outcomes of RERA 2.0





GUJARAT REAL ESTATE
REGULATORY AUTHORITY
GOVERNMENT OF GUJARAT

Project, Agent, Promoter, Professional, Location



Login



ABOUT US

WEBSITE GUIDE

REGULATORY DOCUMENTS

JUDGEMENT/ORDER

HEARING LIST

MAP

FAQ

DOCUMENTS



PROMOTERS



PROFESSIONAL



CITIZEN



AUTHORITY



[Website:- www.gujrera.gujarat.gov.in](http://www.gujrera.gujarat.gov.in)

Thank You

Project Performance Grading

HP RERA

Project Performance Grading

Need for Grading

- Section 32 (f) of the Act, one of the key functions of HPRERA is to facilitate grading of projects on various parameters of development.
- To empower real estate agents and homebuyers with information regarding real estate projects for informed decision making by assessing the quality of a project.
- To enhance transparency and facilitate easier understanding of project details.



Parameters for Grading

<u>PARAMETERS</u>	<u>WEIGHTAGE</u>
1. PROJECT PROGRESS	60%
2. QPR	15%
3. COMPLAINTS	25%



Process of Grading

PROJECT PROGRESS –

Authority has decided that to ensure that the Real Estate projects is completed in time, the upper limit for project completion time shall be –

Plotted projects		
Sr. No.	No. of plots	Upper time limit
1.	0-100	3 years
2.	100-500	4 years
3.	Above 500	5 years

Development / Mixed Projects		
Sr. No.	No. of flats	Upper time limit
1.	0-100	5 years
2.	100-500	6 years
3.	Above 500	7 years



Process of Grading

PROJECT PROGRESS -

If the project was registered for N no. of years i.e. 3 - 7 (max) years (The number of years will be fetched automatically from the registration form).

- Percentage of work done per year = $100/N$
- Time the project has been registered till this Quarter = T
- Work supposed to be Completed till date (X) = $(100/N) \times T$
- Work Completion % in QPR = Y
- $Z = Y \% \text{ of } X$



Process of Grading

1. PROJECT PROGRESS –

Based on this the logic to be incorporated in the back end and shall be automatically generated through web portal is as follows:

Logic	Marks
Z = 0% - 50%	0
Z = 50% - 99%	30
Z = 100% or more	60



Process of Grading

2. QPR submitted –

QPR submitted before the due date or not will be System Generated.

Logic	Marks
No	0
Yes	15



Process of Grading

3. COMPLAINTS –

Total no. of Complaints to the no. of complaints resolved by Authority or settled by Promoter themselves.

Logic	Marks
If more than 5 pending complaints against the Project.	0
Even if one order of the Authority is not complied.	0
In case there are No or Less than 5 pending Complaints against the Project. All complaints settled by the promoter or all the orders of the Authority are complied.	25



Grading Category

Out of the total score obtained the project is graded under these four categories:-

**75-100 Score,
EXCELLENT**

**50-75 Score,
GOOD**

**25-50 Score,
AVERAGE**

**0-25 Score,
Below Average**



Project Grading

Sr. No	Reg. No.	Name of Project	Applicant Name	District	Registered on	Registered till	Timing as per Today (Months)	Inventory sold	Total Inventory	Completion Years	Work/ year	Work to be Completed till date (X)	% Completion in QPR (Y)	Z = Y % of X	Marks	QPR Yes/No	Marks	Total Compl aints	Orders Passed	Non Compl ied Orders	Complaints Pending	Marks	Total Marks	Grade	Remarks
1	HPRERASOL2022014/P	7 SQUARE	GAGAN JAIN & AJITPAL JAIN	Solan	08-07-2022	08-07-2023	15	Plots (Commercial)= 26/22	26	3	33.33	41.67	0	0.00	0	Y	15				0	25	40	AVERAGE	% Not Mentioned in QPR
2	HPRERASOL2022027/P	AMBIKA HILLS	DWORTH BUILDERS LLP	Solan	27-09-2022	27-03-2026	12	Flats/Apartments=63/0 Commercial Units= 3/0	66	5	20.00	20.00	0.034	0.17	0	Y	15				0	25	40	AVERAGE	
3	RERAHPSP11170015	Amula Hills	Yogesh Kaushik	Shimla (Rural)	29-11-2017	08-08-2025	70	Flats/Apartments=100/0 Cottages/Villas=10/1	110	6	16.67	97.22	15.00	15.43	0	Y	15				0	25	40	AVERAGE	
4	RERAHPKAP11170013	Amola Residences	Vivek Khanna	Kangra (Dharamshala)	26-12-2017	05-10-2024	69	Flats/Apartments=36/0 Cottages/Villas=2/0	38	5	20.00	115.00	6.33	5.50	0	Y	15				0	25	40	AVERAGE	
5	RERAHPSP09170006	Amravati Apartments, Sai Road, Baddi	Kulbushan Goyal	Solan (Nalagarh)	01-06-2020	23-09-2027	40	Flats/Apartments=1536/1 229	1536	7	14.29	47.62	92.26	193.75	60	Y	15				0	25	100	EXCELLENT	
6	RERAHPSP12170016	Amravati Hills	ER.HARGOBIN D GOYAL	Solan	05-09-2020	23-09-2030	37	Flats/Apartments=294/28 7 Cottages/Villas= 4/4	298	6	16.67	51.39	7.58	14.75	0	Y	15				0	25	40	AVERAGE	
7	RERAHPSP12180046	Amravati Valley	Jwan Prakash Aggarwal	Solan	23-11-2019	23-05-2032	46	Flats/Apartments= 1340/0 Cottages/Villas= 3/0	1343	7	14.29	54.76	0	0.00	0	Y	15				0	25	40	AVERAGE	No Physical Progress at the site
8	RERAHPSP10210126	APAS Valley Homes	Vandana Malik	Shimla (Theog)	08-12-2021	07-12-2028	22	Flats/Apartments=50/2 Commercial Units= 2/0	52	5	20.00	36.67	3.4	9.27	0	Y	15				0	25	40	AVERAGE	
9	HPRERASOL2022017/P	ASHRAY	HILL VIEW INFRASTRUCTURE PRIVATE LIMITED	Solan (Baddi)	01-08-2022	01-08-2027	14	Plots(Residential)=33/17, Flats/Apartments=110/0 Commercial Units=5/0	148	6	16.67	19.44	0	0.00	0	Y	15				0	25	40	AVERAGE	No Physical Progress at the site
10	RERAHPSP01190048	Auramah Valley Phase-I	Manavinder Singh	Shimla (Rural)	03-04-2019	02-10-2025	54	Flats/Apartments=48/48	48	5	20.00	90.00	99.98	111.09	60	Y	15				0	25	100	EXCELLENT	
11	RERAHPSP08170003	Auramah Valley Phase-II	Manavinder Singh	Shimla (Rural)	05-01-2018	02-03-2024	69	Flats/Apartments=208/30	208	6	16.67	95.83	20.48	21.37	17.74	Y	15				0	25	57.74	GOOD	
12	RERAHPSP04190055	Auramah Valley Phase-III	Manavinder Singh	Shimla (Rural)	25-07-2018	20-12-2027	62	Flats/Apartments=176/45 Cottages/Villas=8/2	184	6	16.67	86.11	31.38	36.44	26.35	Y	15				0	25	66.35	GOOD	
13	RERAHPKAP11200093	Birmala	Varun Sharma	Kangra (Dharamshala)	18-02-2021	17-02-2028	31	Flats/Apartments=88/0 Commercial Units= 3/0	91	5	20.00	51.67	0	0.00	0	Y	15				0	25	40	AVERAGE	No Physical Progress at the site
14	RERAHPSP04180029	Bohemian Chateaus	Mr. Siddhartha Kumar	Shimla (Rural)	23-11-2019	24-05-2030	46	Cottages/Villas=128/0	128	6	16.67	63.89	0	0.00	0	Y	15				0	25	40	AVERAGE	No Physical Progress at the site
15	RERAHPSP07180037	BTM Apartments	ASHOK KUMAR KUKREJA	Solan	11-02-2020	11-08-2028	43	Flats/Apartments=54/51	54	5	20.00	71.67	50	69.77	30	Y	15				0	25	70	GOOD	
16	RERAHPSP09210119	Carnation Hills	NANAK CHAND SAINI	Solan (Kasauli)	27-10-2021	26-10-2026	23	Flats/Apartments=36/0	36	5	20.00	38.33	30	78.26	30	Y	15				0	25	70	GOOD	
17	RERAHPSP09180041	Chester Hills	Sudershan Singla	Solan	15-06-2019	14-12-2026	51	Flats/Apartments=282/25 2 Cottages/Villas= 12/9	294	6	16.67	70.83	66.42	93.77	30	Y	15	7	6	1	1	0	45	AVERAGE	
18	HPRERASOL2023047/P	CHESTER HILLS-2	M/S CHESTER HILLS(DEVELOPER/PROMOTER) SH. HANSRAJ THAKUR(PROMOTER/ LAND OWNER)	Solan	02-03-2023	02-03-2043	7	Plots (Residential)=15/0 Flats/Apartments=233/0	248	6	16.67	9.72	0	0.00	0	N	0				0	25	25	Not Graded as the Project has been Registered for less then 1 year.	Not Filed QPR, Newly Registered
19	HPRERAUNA202320230	CITY REAL ESTATE	CITY REAL ESTATE(BAHADUR SINGH, GANESH DUTT DEWEDI, SHIVANGI SHARMA, JASBIR SINGH SAINI, NIRMALA DEVI, SANTOSH KUMARI, CHARNI DEVI)	Una	08-05-2023	08-11-2023	5	Plots (Residential)=93/11 Commercial= 17/0	110	4	25.00	10.42	0	0.00	0	Y	15				0	25	40	Not Graded as the Project has been Registered for less then 1 year.	% Not Mentioned in QPR

Prescribed Allotment letter



Allotment Letter -

“Allotment Letter” means letter allotting the unit/ apartment/flat /plot to the allottee as prescribed in the regulation.

- ▶ For compliance of the provision of clause (g) of sub section (2) of Section 4 read with section 11(3) of the Real Estate (Regulation and Development) Act, 2016.
- ▶ The proforma of the allotment letter to be uploaded along with application for registration of the real estate project shall be as per regulation dated November 23rd 2023.
- ▶ It shall be mandatory to issue allotment letter in the prescribed format to empower real estate agents and homebuyers with information regarding real estate projects for informed decision making by assessing the quality of a project.



Allotment Letter - Obligation of the project promoter

- (1) Promoter shall upload the specimen of allotment letter as per prescribed proforma at Annexure -1 at the time of uploading the case for the project registration
- (2) All the earlier registered projects are also required to issue further allotment letters in the prescribed format only, from the date of publication of this regulation.
- (3) While furnishing Quarterly Progress report “QPR” of the project the Promoter shall undertake that the allotment letter as per prescribed proforma at Annexure - 1 is being issued to the allottee(s) who have booked flat /apartment/ unit/plot in the project.



Allotment Letter - Format

ALLOTMENT LETTER FOR FLAT/ APARTMENT/UNIT/PLOT:

Allottee Name & Address : Mr./Ms.

.....

.....

Allottee Mobile number & mail id :

Dear Sir/Madam

1.) Details of the Unit/Plot:

I / We (.....) am /are pleased to allot you the Flat/Apartment/Unit/Plot No:..... measuringsft (carpet area) along with balcony area.....sft /, terrace areasft(Wherever applicable) / Plot area measuring ----- Sqm, in Block / Tower/Wing /Cluster No:.....along with parking/ garage no.....(Wherever applicable) measuring ----- sft, in.....project, located at.....Mauza/ Mohal Village / City,District, Pin code.....

2.) Consideration Price:

The promoter and Allottee have settled the sale price @ Rs..... per sft of carpet area / @ Rs..... per Sqm of plot area in case of a plot and the total consideration price of the Flat/Apartment/Unit/Plot is Rs.....

In Addition to the sale consideration, as mentioned above, the Allottee shall bear the Stamp Duty and Registration charges of the Sale Agreement and also Conveyance/Sale Deed to be executed by the promoter in respect of the Schedule Flat/ /Apartment/unit/Plot. Further, the Allottee shall bear taxes payable to State and Central Government, if any.

All payments to be made in favour of Promoter, M/s/Mr./Ms., payable at City / District

Bank Name :

A/c No:

Branch Name:

IFSC Code:

3.) Disclosures of information:

I/We, the promoters, have made available to you the following information namely: -



Allotment Letter - Format

- a. The sanctioned plans, layout plans, along with specifications, approved by the competent Authority, which are displayed at the project site and have also been uploaded on HP-RERA website.
- b. The stage wise time schedule of completion of the project, including the provisions for civic infrastructure like water, sanitation and electricity is as stated in serial no. 4 below,
- c. The website address of HP-RERA is <https://hprera.nic.in>

4.) Construction Schedule and construction linked payment plan:

Following are the stages of construction progress and payment(s) linked to each stage

- a. __% payment on completion of in the month of 202__
- b. __% payment on completion of in the month of 202__
- c. __% payment on completion of in the month of 202__
- d. __% payment on completion of in the month of 202__
- e. __% payment on completion of in the month of 202__
- f. __% payment on completion of in the month of 202__
- g. __%payment on completion of in the month of 202__
- h.

(The promoter may insert another payment plans like down payment plan or payment at possession plan etc, as per their marketing strategy. However, the construction schedule has to be disclosed in the manner as given in construction linked plan)

In case of delay in making any payments, you, (the Allottee), shall be liable to pay simple rate of interest at the rate which shall be the State Bank of India highest Marginal Cost of Lending Rate plus two percent.

5.) Possession of the Apartment/ Flat / Unit / Plot:

Possession/ offer of possession will be handed over on or **before** month of 202__, subject to the payment of consideration amount of the said unit/ plot as well as of the garage(s) / covered car parking spaces(s), in the manner and at the time as above and as per the terms and conditions as specifically enumerated / stated in the agreement for sale to be entered into between us.



Allotment Letter - Format

6.) Withdrawal from the project:

- i) In case you desire to cancel the booking, an amount mentioned in the Table hereunder written would be deducted and the balance amount due and payable shall be refunded to you without interest within 30 days from the date of receipt of your letter requesting to cancel the said booking.

Sl. No.	If the letter/ email requesting to cancel the booking is received,	Amount to be deducted
1	Within 30 days from issuance of the allotment letter;	Nil;
2	Within 31 to 60 days from issuance of the allotment letter;	25% of the booking amount;
3	Within 61 to 90 days from issuance of the allotment letter;	50% of the booking amount;
4.	After 91 days	100%

(The booking amount is the very first payment made by the allottee to the Promoter, which has been duly received either in the bank account of the promoter/ duly acknowledged by the promoter)

- 7) The Allottee has paid the Booking amount of Rs..... to the Promoter vide Cheque /DD / transaction idof bank, address of the bank being
- 8) We (Promoter &Allottee) shall enter into a Registered Agreement for sale before you pay a sum more than 10% of total cost (Including the Booking Amount) of Flat / Apartment / Unit/Plot, for which necessary formalities will be completed by us and, mutually acceptable date and time for signing and registering the same shall be conveyed to you.
- 9) I/we have read and understood the Agreement of sale as prescribed in HP Real Estate (Regulation &Development) Rules -2017 and hereby give our consent to abide and be bound by all the terms and conditions. ``

Promoter:

Date:





THANKS

DISCLOSURE COMPLIANCE ECOSYSTEM UNDER RERA, ODISHA

JP Jagdev, Team Leader DCMC, ORERA | 12th December 2023



The Story

How disclosure was fulcrummed to transform the organization to the next best level of sectoral growth based on transparency and by protecting homebuyers' interest.

Learning

- What was realised between 2017 to 2022

Interventions

- Planning and Interventions to evolve into the next phase of development

Expected Outcomes

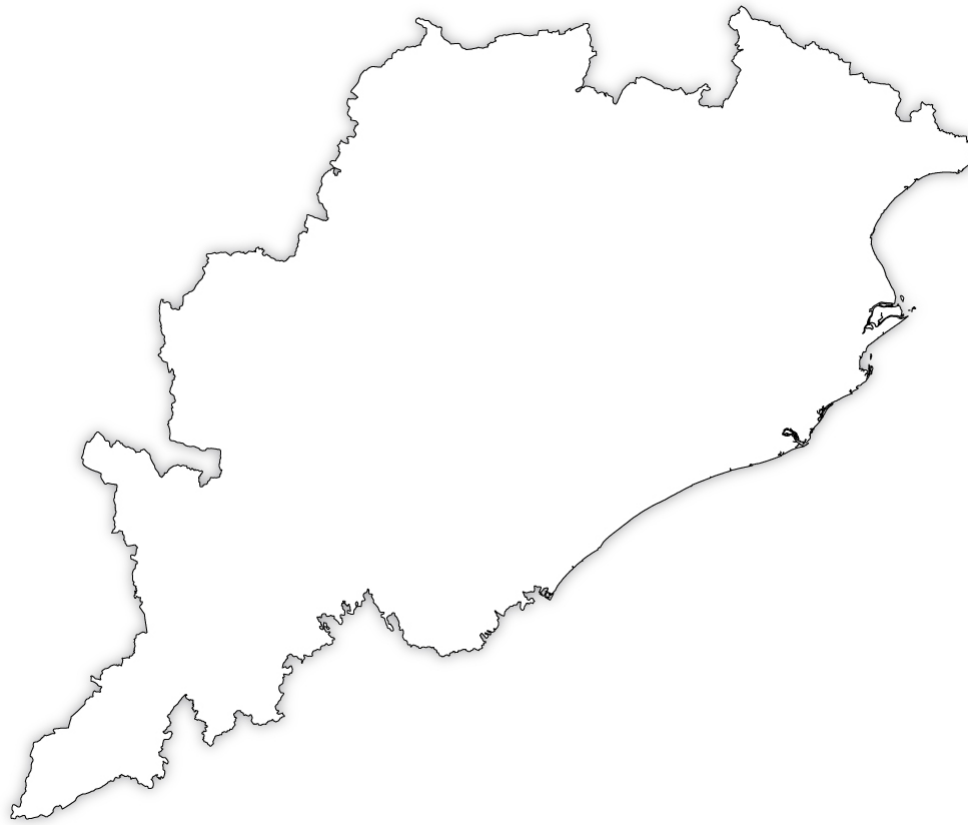
- What are the outcomes expected at the end

Odisha Real- Estate Regulatory Authority

ORERA



Odisha - State

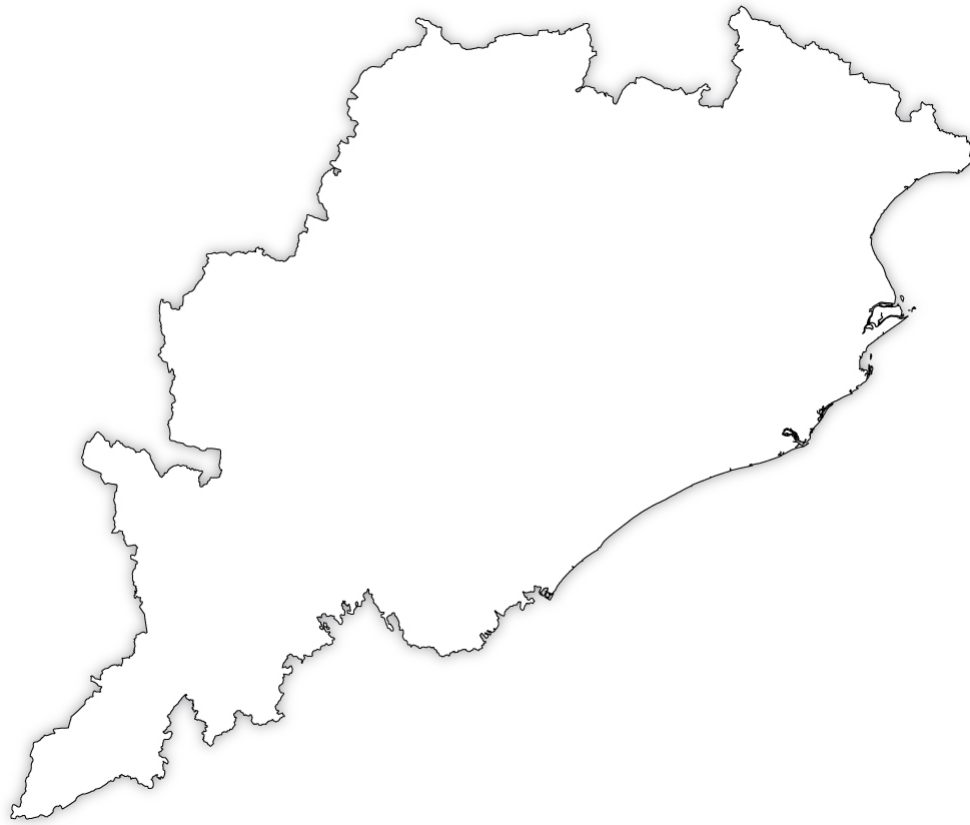


1,55,707
Area (Sq. KM)

47.92
Population (Million)

30
Districts

Registered Projects



740

Online Registered Projects

336

Offline Registered Projects

Real Estate Landscape

Type	Small (1-15)		Mid (16-50)		Large (51-100)		Ultra Large (>100 Units)		TOTAL	
	Projects	Units	Projects	Units	Projects	Units	Projects	Units	<i>Projects</i>	<i>Units</i>
Residential	116 (16%)	1,338 (2.2%)	278 (37.5%)	7,224 (11.8%)	76 (10.3%)	5,428 (8.9%)	77 (10.5%)	16,902 (27.6%)	547 (74.0%)	30892 (50.4%)
Commercial	-	-	4 (0.5%)	94 (0.15%)	1 (0.001%)	51 (0.08%)			5 (0.7%)	145 (0.2%)
Mixed	-	-	29 (3.9%)	960 (1.6%)	20 (2.7%)	1,434 (2.3%)	41 (5.5%)	18,111 (29.6%)	90 (12.1%)	20,505 (33.5%)
Affordable Housing & Slum Development	-	-	-	-	-	-	4 (0.5%)	4,702 (7.7%)	4 (0.5%)	4,702 (7.7%)
Plotted Scheme	24 (3%)	300 (0.5%)	47 (6.3%)	1,407 (2.3%)	12 (1.7%)	775 (1.3%)	11 (1.5%)	2,516 (4.1%)	94 (12.7%)	4,998 (8.2%)
TOTAL	140 (19%)	1,638 (2.7%)	358 (48.3%)	9,685 (15.8%)	109 (14.7%)	7,688 (12.5%)	133 (18%)	42,231 (69.0%)	740 (100%)	61,242 (100%)

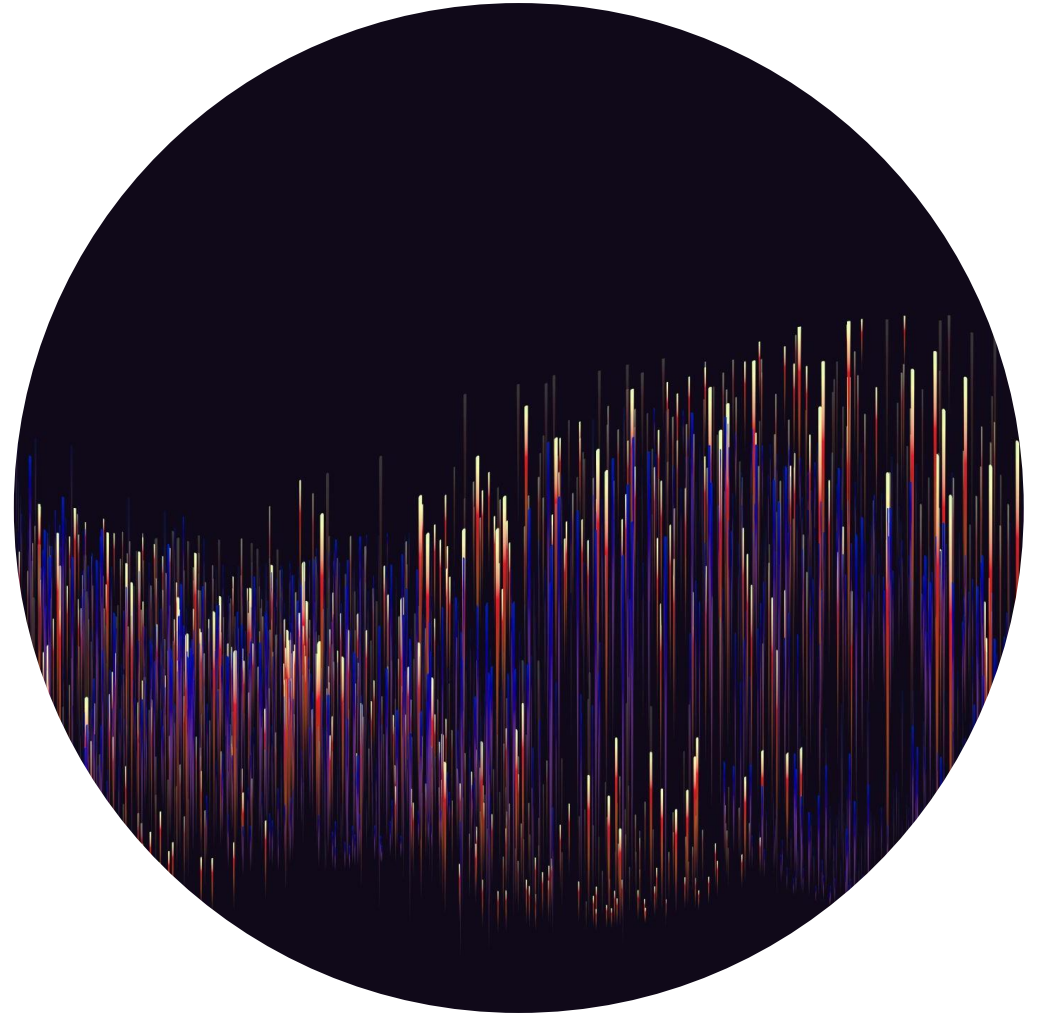
A detailed architectural floor plan of a building, showing various rooms, corridors, and structural elements. The drawing is in blue ink on a light background, with some text labels like 'F-9 BLOCK' and 'HOL' visible. The plan is oriented diagonally.

Analysis

- Predominantly residential projects
 - 74% of the Project 50% of saleable units)
- Traditionally it has been small projects (<15) and in the last few years bigger projects (>50 & >100) have started entering the space.
 - 18% of the Project, 69% of the saleable units)
- This trend points at the vulnerability of the individual home buyers to the collective might of the organised big developers.

Learning

From 2017 to 2022



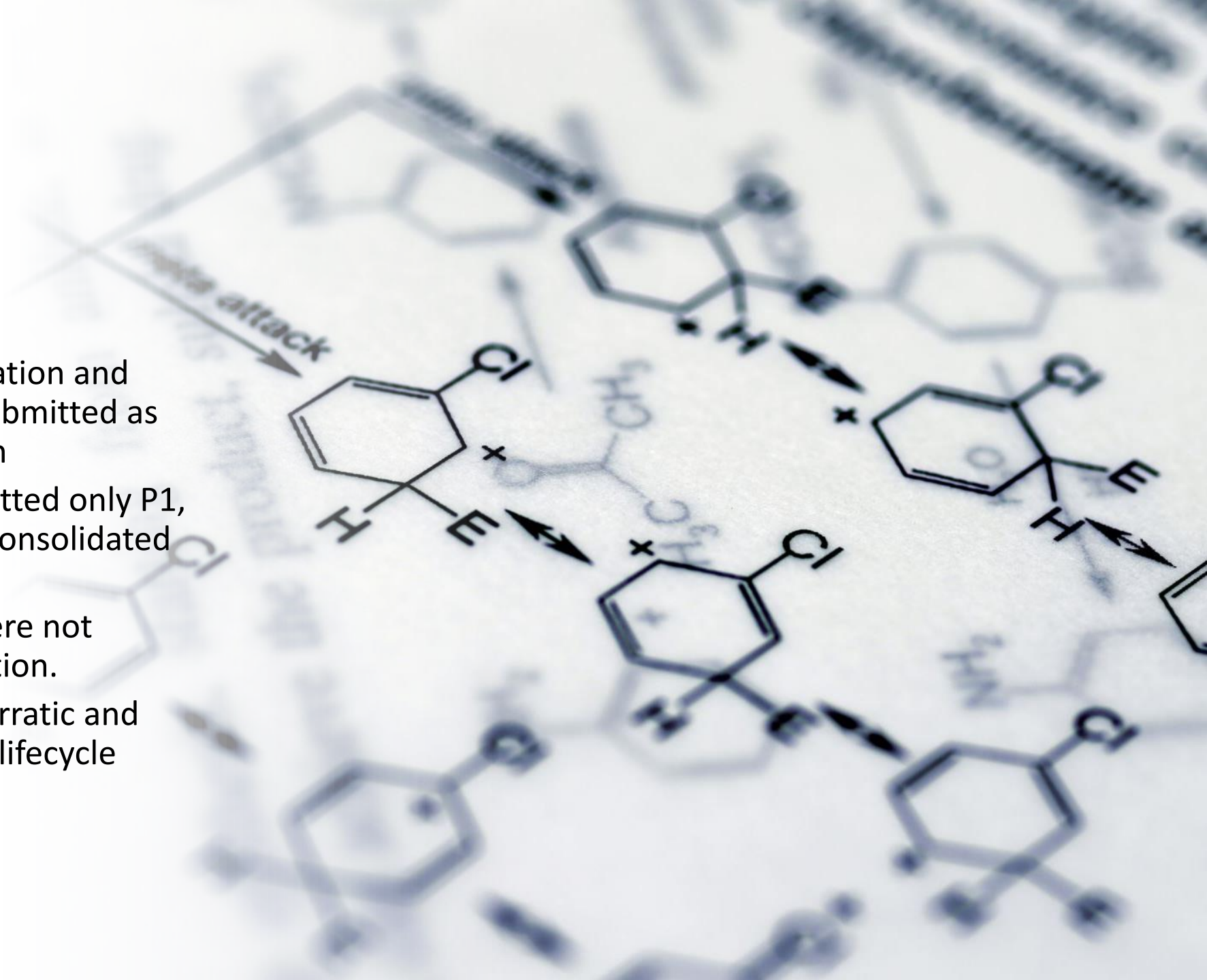


Disclosure Compliance (Quantity)

- When the system was monitored to check the compliances by the promoter from the establishment of the system form 2020 it was found that. 615 Project
 - Of the total 2888 QPR had submitted 150 (5.20%) properly

Disclosure Compliance (Quality)

- On reviewing the information and document which were submitted as QPR and AAC, it was seen
 - That few have submitted only P1, some P2 and many consolidated of the past period.
 - Many documents were not available for verification.
 - The numbers were erratic and didn't represent the lifecycle



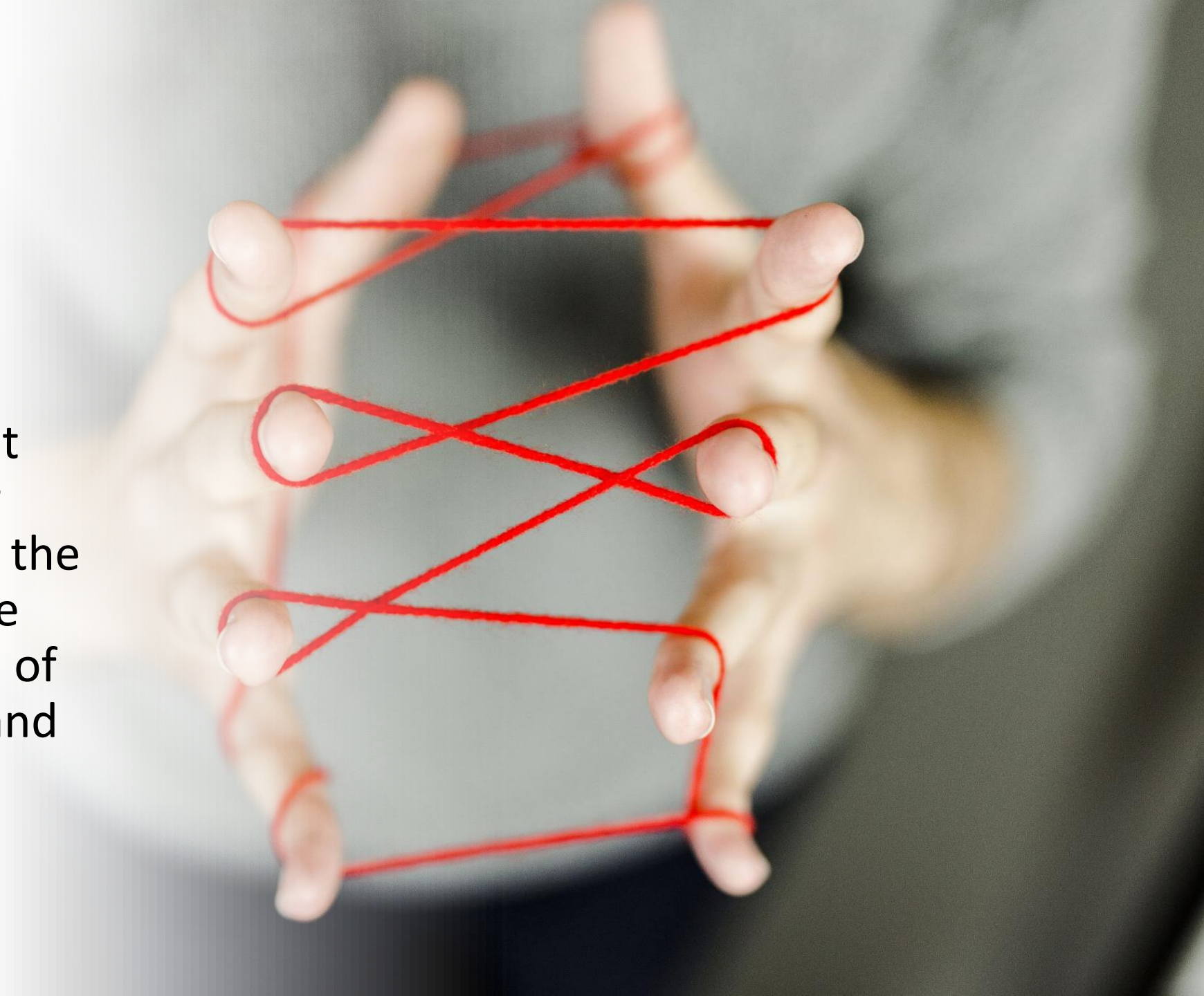


Stakeholder (KAP Analysis)

- The stakeholders comprising of homebuyers, developers, site engineers, bankers, chartered accountants and architects were found to be,
 - Wanting in knowledge concerning the RERA
 - Their Rights, Responsibilities and Duties
 - Their willingness to submit to regulation of any kind
 - Their need for more interaction and handholding

Facilitation

Almost all the stakeholders feel that there is necessity for more interaction with the regulators to improve the KAP in the shape of facilitation services and handholding.





Summary



The registration process is running smoothly



Availability of more data at the time of registration is needed.



The disclosure compliance process is sub-par, so also is the compliance.



The general awareness at the level of all the stakeholders about their right, duties and responsibilities are low.



A lot needs to be done at the level of System, Process, Interaction and Standardization.



Interventions

Establishment of DCMC

A dedicated Disclosure Compliance Monitoring Cell (DCMC) comprising of expert professionals was established in the month of June.

To exclusively Monitor the working and efficacy of the Disclosure Compliance Ecosystem and suggest changes to plug the gaps and improve overall transparency.

Most of the transformative initiatives are based on the reports of this Cell.



Initiate Outreach Programmes for the stakeholders

- ORERA realising that there has to be more participation of all the stakeholders in the RERA space has started its outreach programs to make it more accessible and inclusive.
- It has already had long sessions of interaction with the Cost Accountants in Berhampur, Chartered Accountants and Architects in Bhubaneswar.
- It has started reaching out to the homeowners through the RWAs of apartments





‘ରେରା’ ନିୟମ ଅନୁପାଳନରେ ଚାର୍ଟର୍ଡ ଆକାଉଣ୍ଟାଣ୍ଟଙ୍କ ଭୂମିକା ଗୁରୁତ୍ୱପୂର୍ଣ୍ଣ

ଭୁବନେଶ୍ୱର, ୧୩.୧୦.୧୮: ଓଡ଼ିଶା ସ୍ଥାନୀୟ ନିୟମାବଳୀ ପ୍ରାଧିକରଣ (ରେରା) ଆଇନ କାର୍ଯ୍ୟକାରୀ କରିବା କ୍ଷେତ୍ରରେ ଚାର୍ଟର୍ଡ ଆକାଉଣ୍ଟାଣ୍ଟଙ୍କର ଗୁରୁତ୍ୱପୂର୍ଣ୍ଣ ଭୂମିକା ରହିଛି ବୋଲି ‘ରେରା’ ପକ୍ଷରୁ ଆୟୋଜିତ ଏକ ସମ୍ବେଦନାକାରୀ ସମ୍ମିଳନୀ ପ୍ରକାଶ ପାଇଛି । ଶ୍ରଦ୍ଧାବାନ ‘ରେରା’ର ଅଧିକାରୀଙ୍କର ଦାୟିତ୍ୱ ହେଉଛି ଚାର୍ଟର୍ଡ ଆକାଉଣ୍ଟାଣ୍ଟଙ୍କୁ ଉଦ୍ଦେଶ୍ୟରେ କରି ଏହି ଆଇନକୁ ପରିଚାଳିତ କରିବାକୁ ସୁଯୋଗ ସୃଷ୍ଟି କରିବା ଏବଂ ବିଶ୍ୱାସୀୟତା ସୃଷ୍ଟି କରିବା ଆଦି ଉପରେ ଆଲୋଚନା କରିଥିବା ସମ୍ମିଳନୀରେ ଆୟୋଜକଙ୍କର ସଂକଳନରେ ‘ରେରା’ର ପ୍ରଶାସନିକ

ସମୟରେ ଚାର୍ଟର୍ଡ ଆକାଉଣ୍ଟାଣ୍ଟମାନଙ୍କର ଦୃଷ୍ଟିରୁ ପାରଦର୍ଶିତା ପ୍ରଦର୍ଶନ କରିବା ଆବଶ୍ୟକ ବୋଲି ସେ କହିଥିଲେ । ପରାମର୍ଶଦାତା କେ.ପି.କମ୍ବେରେ ‘ରେରା’ ଆଇନ ଅନୁଯାୟୀ ଚାର୍ଟର୍ଡ ଆକାଉଣ୍ଟାଣ୍ଟଙ୍କ ବିଭିନ୍ନ ଦାୟିତ୍ୱ ସମ୍ପର୍କରେ ସବିଶେଷ ତଥ୍ୟ ଉତ୍ତୁର ହେବା ଆବଶ୍ୟକ ବୋଲି ‘ରେରା’ର ପ୍ରଶାସନିକ

ସହସ୍ୟ ପ୍ରତାପ କୁମାର ବିଶ୍ୱାଳ ଓ ନ୍ୟାୟିକ ସହସ୍ୟ ଗୋପାଳ ତନ୍ତ୍ର ପଦ୍ମନାଭଙ୍କ ବିଭିନ୍ନ ପ୍ରଶ୍ନର ଉତ୍ତର ଦେଇଥିଲେ । ଅତିରିକ୍ତ ସଚିବ ଶ୍ରୀକଣ୍ଠାପତିନାଥ ଆଚାର୍ଯ୍ୟଙ୍କ ନିର୍ଦ୍ଦେଶାବଳୀରେ ଚାର୍ଟର୍ଡ ଆକାଉଣ୍ଟାଣ୍ଟଙ୍କର ବିଭିନ୍ନ ଦାୟିତ୍ୱ ବିଷୟରେ ସୂଚନା ଦିଆଯାଇଥିଲା । ସଚିବ ତନ୍ତ୍ର ପଦ୍ମନାଭ ତନ୍ତ୍ର ପଦ୍ମନାଭଙ୍କ ଦେଇଥିବା ବେଳେ ଯୁକ୍ତ ସଚିବ ପ୍ରତାପ କୁମାର ଦେବୁ ଧନ୍ୟବାଦ ଅର୍ପଣ କରିଥିଲେ ।







Extend Regulatory Control

- ORERA has started expanding its depth and span of its regulatory control as the time to move to the next stage has come.
- ORERA has issued series of Orders in the last few months to bring in discipline in the system.
- It has started showing results.

4791/ORERA 19.08.2023

- Extension of timeline till 15th October 2023 for the QPR submission of Apr-Jun quarter of FY 2023-24 and extension of timeline till 31st October 2023 for the AAC of FY 2022-23

19 Aug. 2023

6130/ORERA dated 20.10.2023

- Submission of QPR and AAC through online mode

20 Oct. 2023

14 Sep. 2023

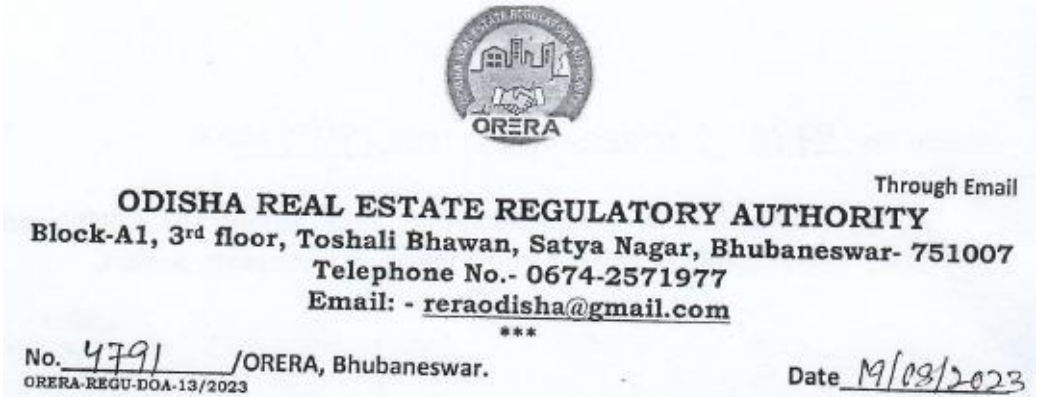
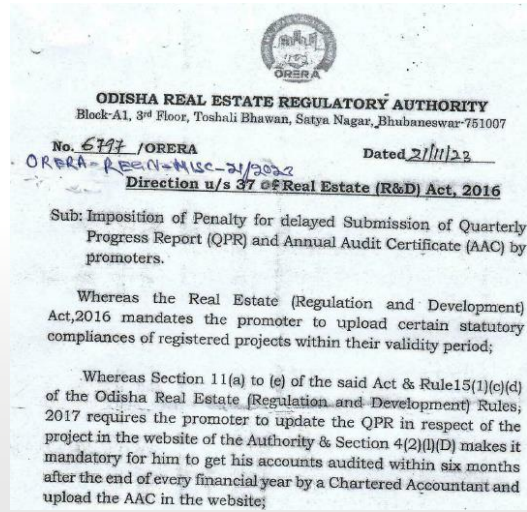
5305/ORERA dated 14.09.2023

- Submission of QPR and AAC through online mode

21 Nov. 2023

6797/ORERA dated 21.11.2023

- Imposition of penalty for delayed submission of QPR and AAC by the promoters



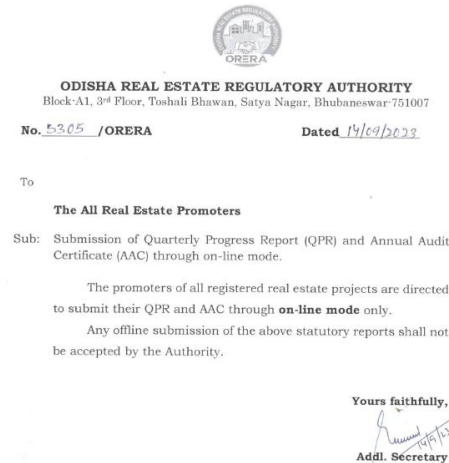
DIRECTION U/S 37 OF RE(R & D) ACT,2016

After careful consideration of the proposal relating to timeline for submission Quarterly Progress Reports (QPR) and Annual Audit Certificates by the promoters in respect of their registered real estate projects, the Authority in their 19th meeting held on 03.08.2023 have been pleased to approve as below:-

- 1) **Timeline for submission of Annual Audit Certificate (AAC):-** For Financial Year 2022-23 the timeline for submission of Annual Audit Certificates by Promoters shall be 31 October 2023.

For the backlog relating to previous Financial Years the timeline shall also be 31 October 2023.

- 2) **Extension of time for submission of QPR by promoters:-** The timeline for submitting QPR by promoters both for April-June quarter of the current Financial Year 2023-24 and for all backlog QPRs shall be 15 October 2023.



RERA 2.00

Completely overhaul the RERA system to make it at par with the nationally best states like Gujarat and Maharashtra.

ORERA is close to finalising the Agency who can take the IT platform to the next best level at par with the national best.

We hope to have them by mid-January and roll out the new system in 20 weeks.

Provide enquiry, handholding support to all the stakeholders

- ORERA has realised that the new system would require a lot of training, and handholding to most of the stakeholders.
- It intends to facilitate the whole process through a Relationship Centre.





Expected Outcomes

What is expected in the next few months



-
- Highly transparent platform of interaction where the available information are latest, credible and usable for adjudication and regulatory decision making.
 - A system which facilitates real time automated monitoring of progress (Both physical and Financial)
 - A system which will flag defaults and impose penalties thus making it neutral and transparent.
 - A system which retards unfair trade practice and money laundering.





- A growth-oriented sector inhabited by knowledgeable and compliant stakeholders under an efficient and neutral regulation.
- An ecosystem which prevents conflict and has reduced litigation.



DISCLOSURE
COMPLIANCE
MONITORING
CELL



JP Jagdev

Team Leader

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PARAMETER SOFTWARES (P) LTD.

N4-153, IRC VILLAGE, BHUBANESWAR - 751015, ODISHA



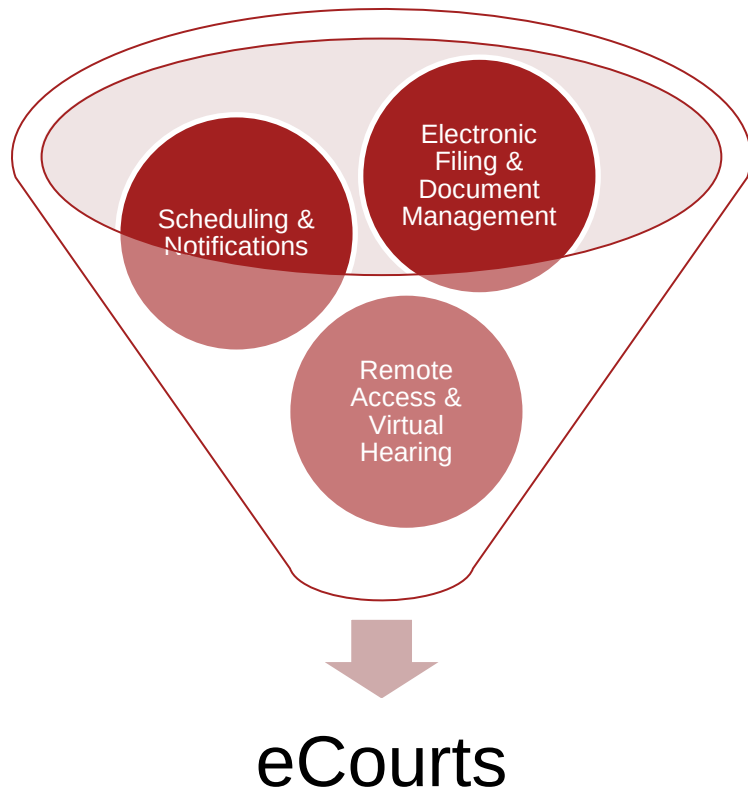
***Uttar Pradesh Real Estate Regulatory Authority
(UP RERA)***

Presentation on eCourts

Date: 19th March 2024

eCourts – Introduction

eCourts represent a significant shift towards digitizing traditional court processes, aiming to modernize and streamline court business.



- ✓ **Introduced eCourts** in February 2020
- ✓ **Virtual hearing** started in April 2020
- ✓ **Major updates** to eCourts in January 2024
- ✓ **AI integration** to eCourts proposed

eCourts – Features

Online Filing of Complaints: Ease of filing and updating complaint at any time and from any place

End-to-End Paperless Process: System designed to accommodate end-to-end paperless process

Dedicated Dashboards: Ease of access to information for Complainant, Respondent, PO and Bench Staff

Online Evaluation: All complaints for their completeness, authenticity of documents before listing

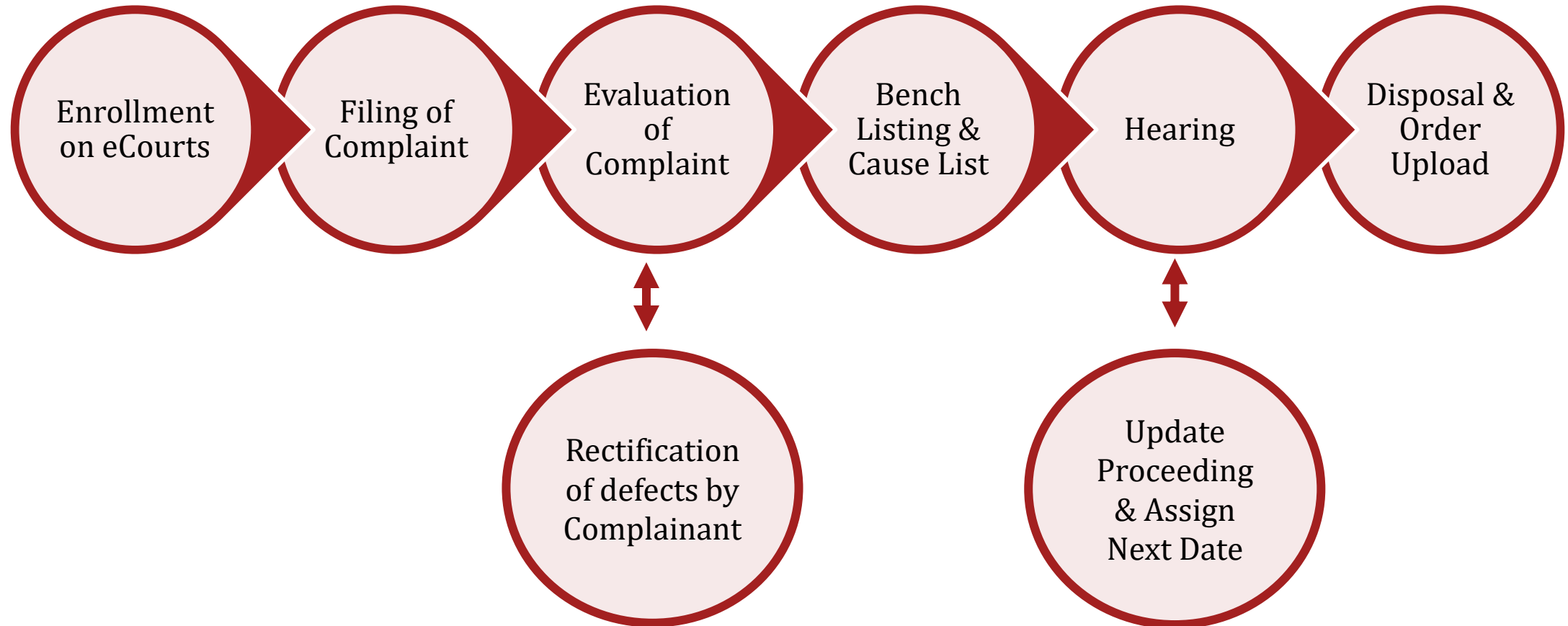
Automated Notifications & Cause List: Automated notifications during complaint adjudication process

Transfer Between Benches & Conciliation: Ease of transfer between Benches & Conciliation Forum

Enforcement of Orders: Complainants can file application for enforcement of orders.

Orders Compliance Tracking: Respondents can file the compliance status and complainants can respond.

eCourts – Complaint Filing to Disposal



eCourt Enrollment & Profile Creation by Complainants

- ✓ Complainants have to first enroll themselves on eCourts Module to access Complainant Dashboard
- ✓ eCourts Module currently is enabled for 'Allottee' and 'Association of Allottees'.
- ✓ Enrollment is unique to every Allottee or Association of Allottees.

Enrollment Process

<u>ALLOTTEES</u>	<u>Association of Allottees</u>	<u>Promoters</u>
Name	AoA Name	No separate enrollment
Address	AoA Registration Details	Can be accessed from Promoter Dashboard
Mobile Number	AoA President & Secretary Name & Mobile	
Email	Mobile Number	
Password	Email	
	Password	

Filing of Complaints – Information & Documents Sought

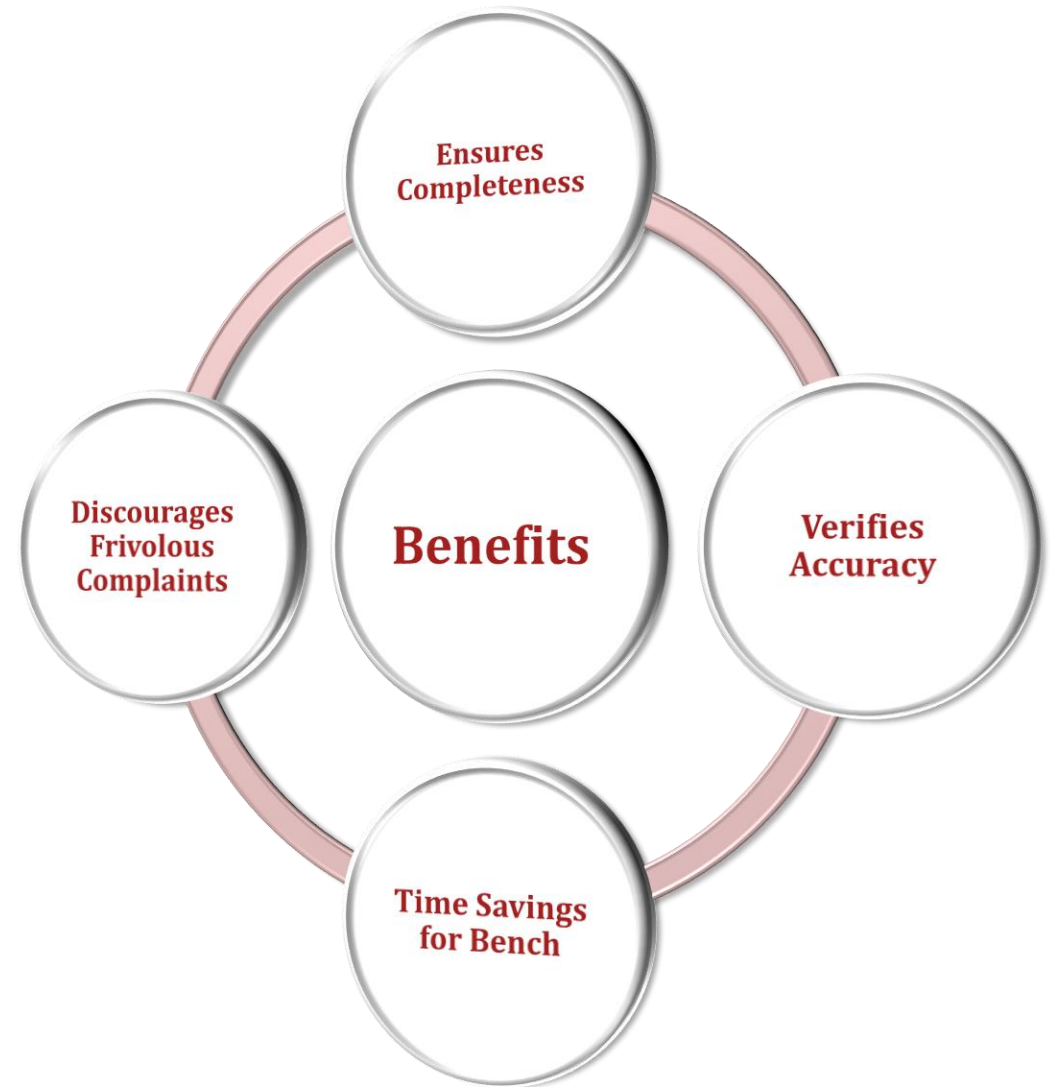
Suggestion of Conciliation	Suggested option for conciliation to resolve dispute through mutual consent
Declaration on pending Complaint	Prevent the same dispute being heard in multiple forums
Respondent Details	Details of registered & unregistered projects including check on NCLT
Authorized Representative Details	Option to add authorized representative
Booking Details	Unit No, Value of Unit, Payment Made, Supporting Documents

Payment Details	Payment made to & payment received from respondent
Bank Loan Details	Payments made to bank loan by complainant / respondent
Relief Sought	Explanatory note on relief sought
Additional Facts & Documents	Additional facts & supporting documents
Payment of Fees	Payment of fees through payment gateway

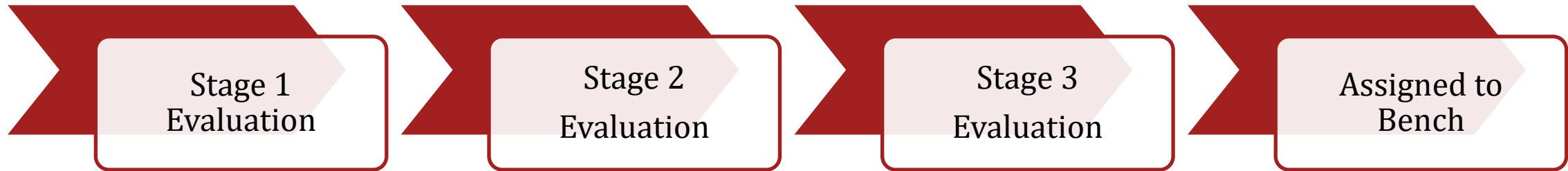
eCourts - Evaluation of Complaints

Evaluation Parameters

- ✓ Whether the Complainant Details are accurate?
- ✓ Whether the Unit, Project & Promoter Details are accurate?.
- ✓ Whether the Payment Details are complete and correct?
- ✓ Whether all supporting documents (Allotment Letter, BBA etc) are complete?

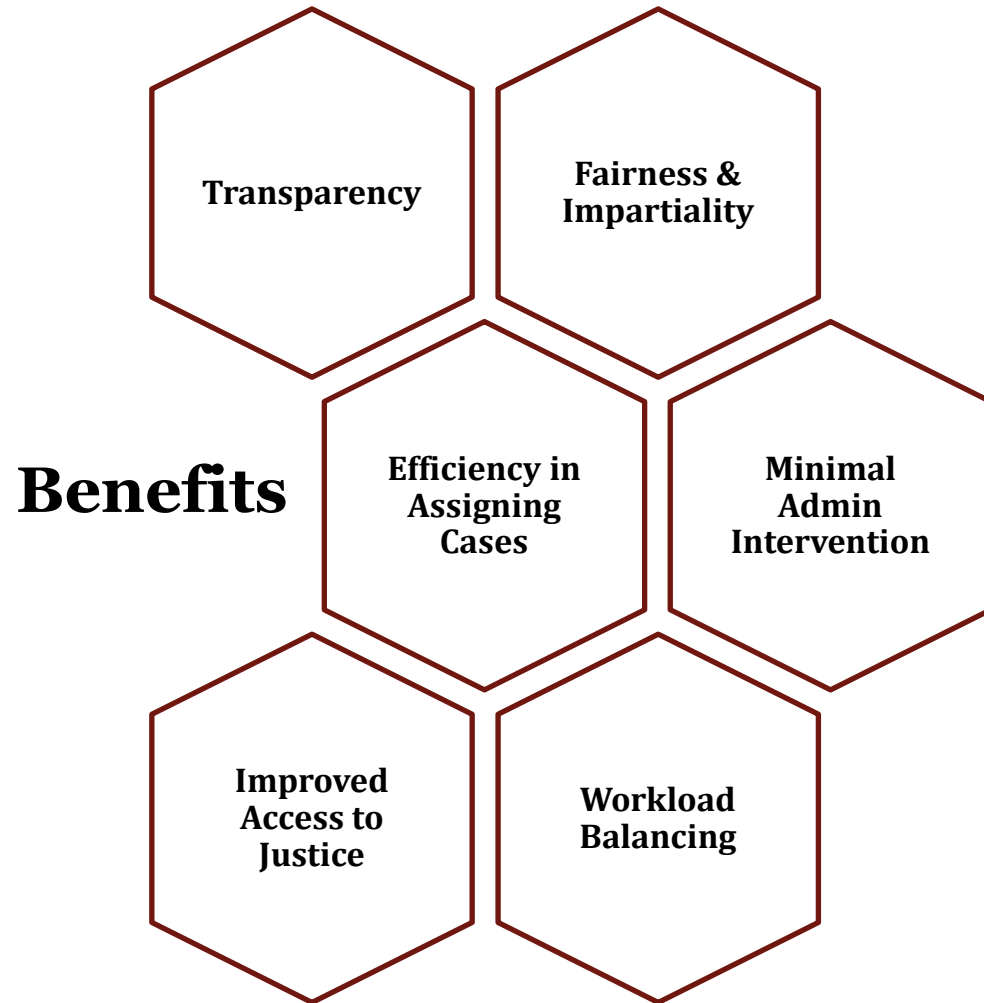


eCourts – Evaluation Process Flow



- ✓ At each stage of evaluation, if the complaint is found complete and accurate, it is marked as 'Fit' and assigned to Automated Case Assignment System (ACAS)
- ✓ If objections found at Stage 1 and Stage 2 of evaluation, communication is sent to Complainant for response.
- ✓ If objections persist at Stage 3, the complaint is assigned to ACAS with comments.
- ✓ Complainant is provided 7-days to clear objections and an additional 7-days with reminder communication. If the complainant does not clear the objections, the complaint is assigned to ACAS with comments.

eCourts - Automated Case Assignment System (ACAS)

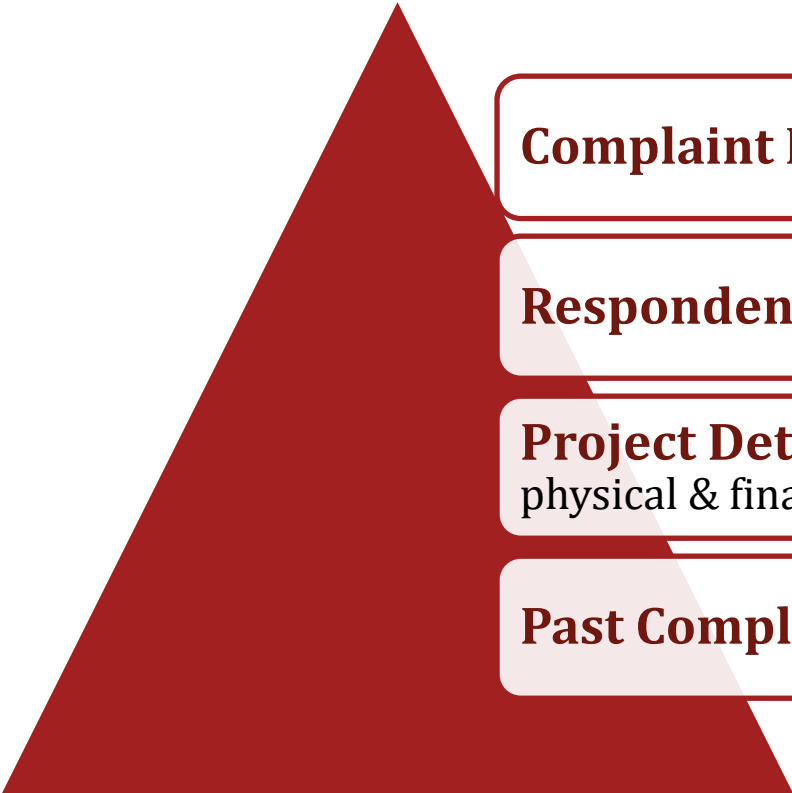


Automated Case Assignment System (ACAS) has been implemented to **automatically assign 'Bench' and 'First Hearing Date'** to new complaints using a pre-defined algorithm and criteria such as

- Project
- Past Complaints in the Project
- Bench Workload
- Available Hearing Dates

eCourts – Access to Information During Hearing

All pertinent information regarding complaint and project details is consolidated and readily accessible on one single screen for judicious decision making



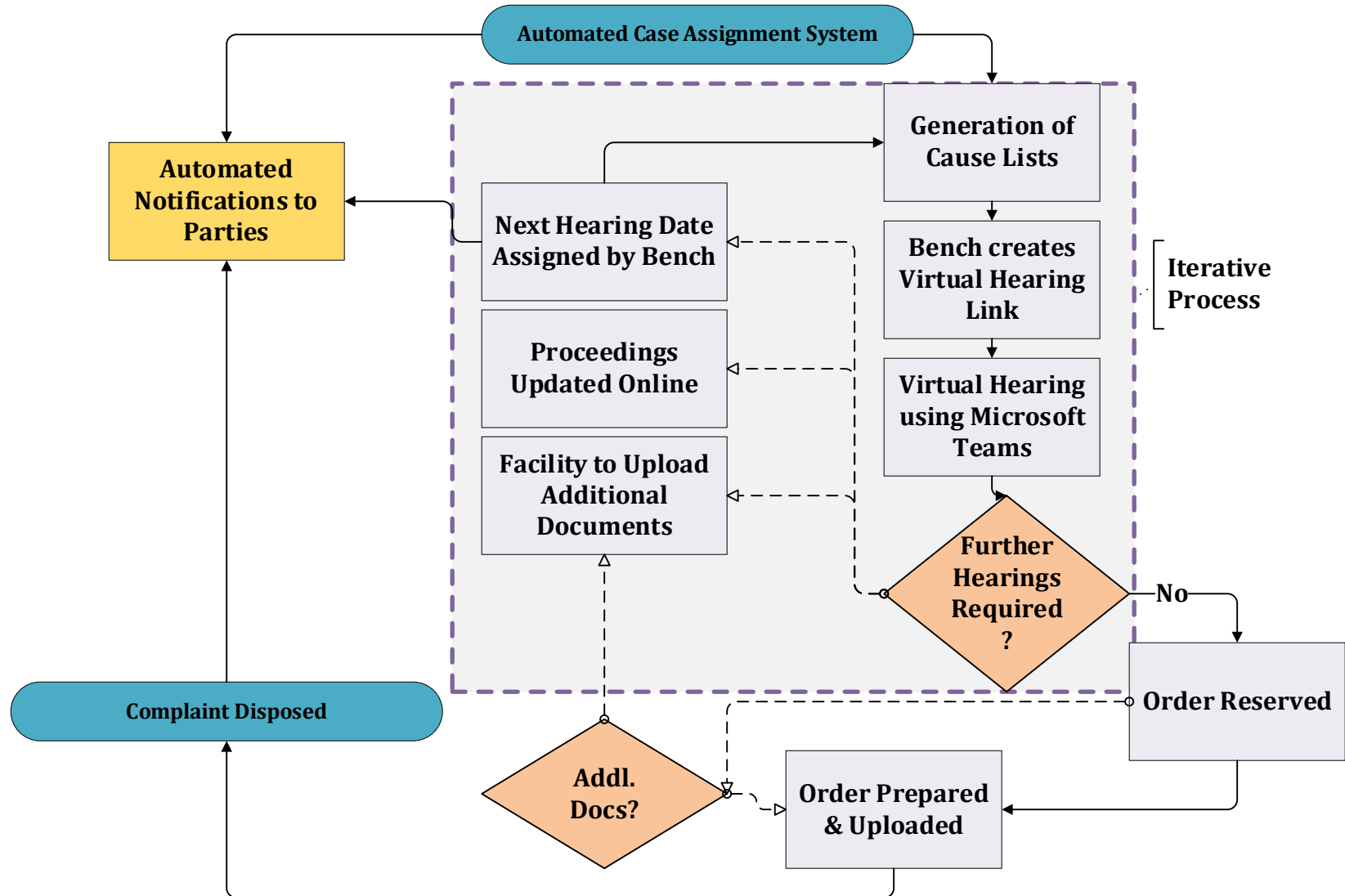
Complaint Details: All the information submitted by the complaint

Respondent Objection: Written objection by the respondent

Project Details: Information on projects such as project status, physical & financial progress status, inspection reports etc.

Past Compliance Status: Compliance details of previous orders.

eCourts – Complaint Hearing & Orders



eCourts – Functionality on Bench Dashboard

Bench is provided the following functionalities to support complaint hearing and disposal

Dashboard Functions	
1. Assigning of Hearing Date	7. Uploading Interim / Final Order
2. Communicating Virtual Hearing Link	8. Refer Complaint to Conciliation Forum
3. Creating Cause Lists	9. Refer Complaint to Legal Advisor
4. Uploading of Proceeding	10. Rule 24-Transfer of Complaint to the Adjudicating Officer and Vice-Versa
5. Permission for uploading additional documents	11. Compliance Check
6. Disposing of Complaint	12. Shifting of Hearing Date Time

eCourts – System Communication to Complainant / Respondent

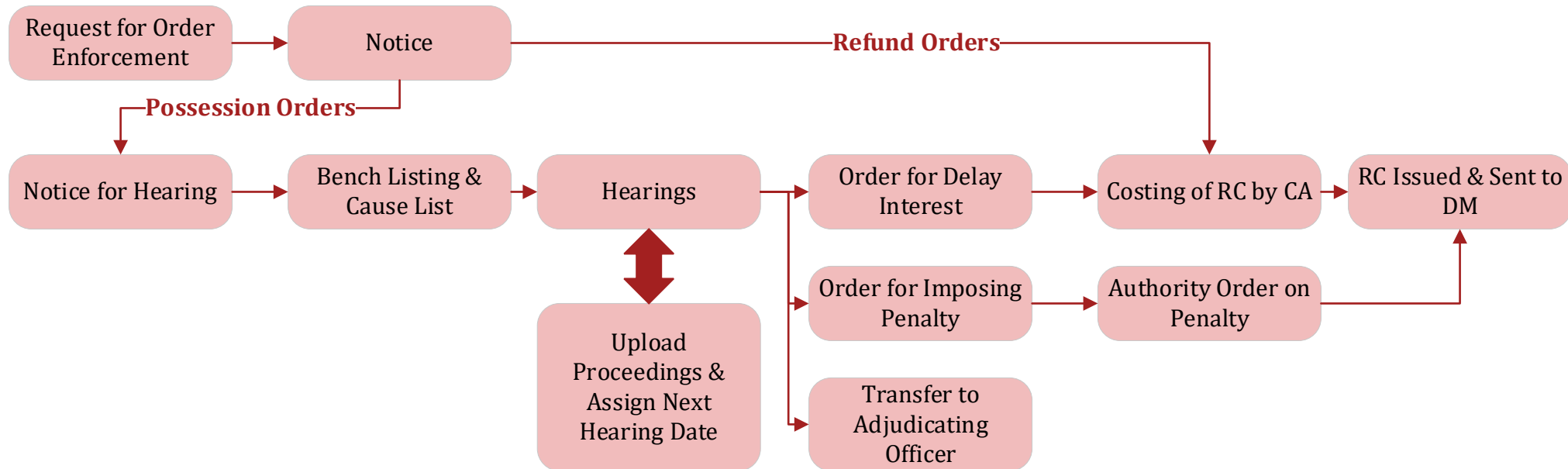
Automatic communications & notices are sent by the system at different stages of complaint lifecycle

Dashboard Functions	
1. Confirmation on Filing of Complaints	6. Communication of Virtual Hearing Link
2. Objections and Notices During Evaluation	7. Communication on Proceedings
3. Objections Cleared Post Evaluation	8. Communication on Order Upload
4. Communication to Respondent on Complaint	9. Communication after Compliance Due Date
5. Communication of Hearing Date	

eCourts – Enforcement Proceedings Process Flow

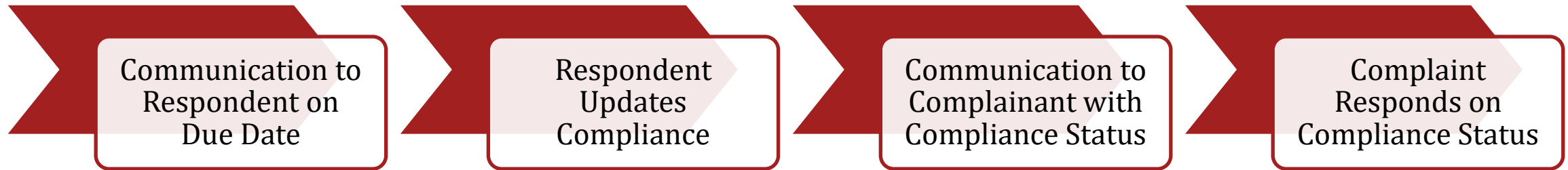
Complainants, at any time after lapse of due date for compliance, can raise a request for enforcement of orders on the eCourts Module.

From Enforcement Request to Compliance Action Process Flow



eCourts – Compliance Tracking

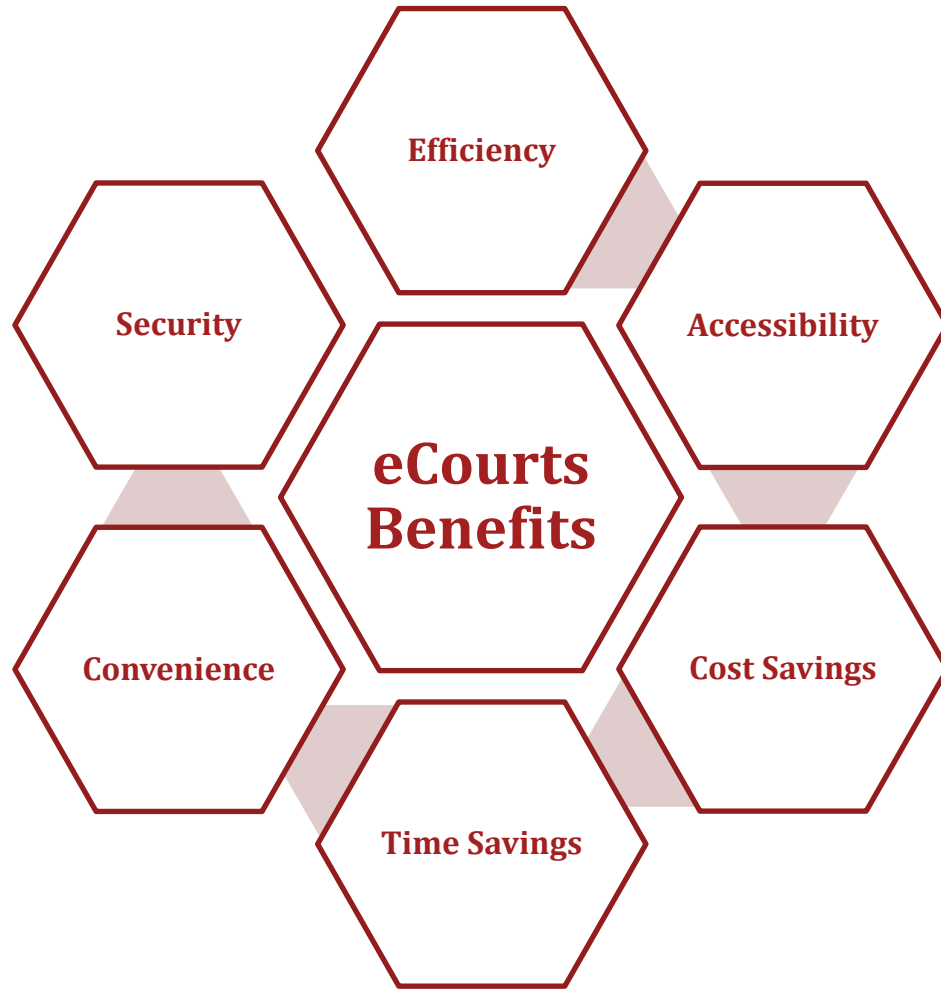
Respondent, at any time, can update the compliance status of the orders issued using the functionality on Promoter Dashboard



Benefits

- ✓ **Accountability:** Holds responding party for timely compliance of orders
- ✓ **Enforcement:** Tracking compliance allows timely enforcement actions by Authority
- ✓ **Transparency:** Allows complainants to monitor and understand the status of compliance

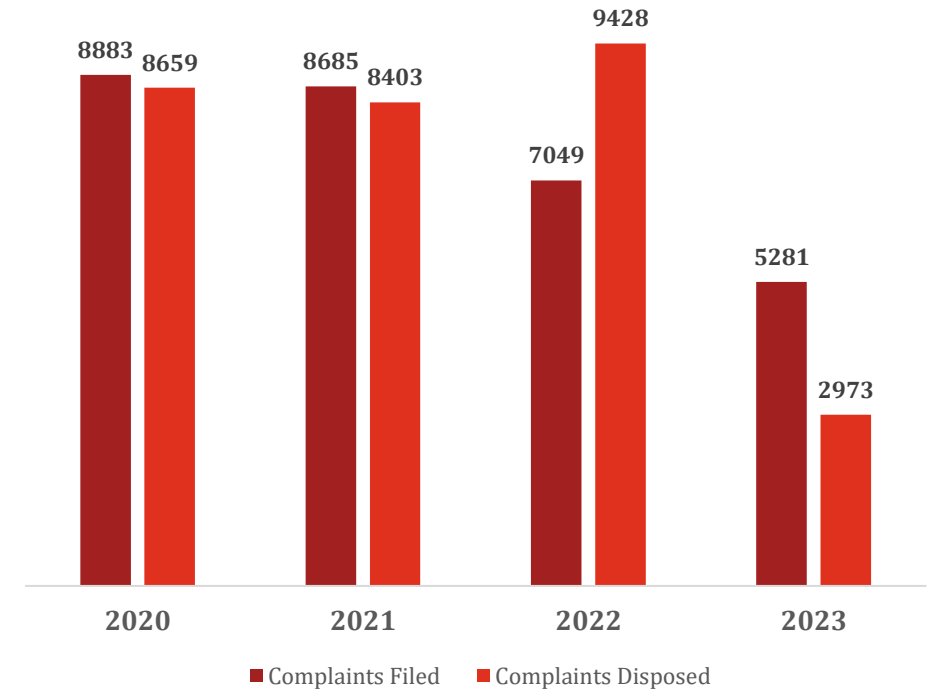
eCourts – Benefits & Achievements



Complaints Filed – 53,350

Complaints Disposed – 45,390

Yearly Complaint Filed vs Disposed



Quantifiable Impact of eCourts

Parameter	Pre eCourts	Post eCourts
Disposal Rate	650 per Month	860 per Month
Number of Hearings per Day	~ 40	~ 60
Number of Hearings per Complaint	5 Hearings	4 Hearings
Complaint Filing to Disposal Time	7-8 Months	4-5 Months
Attendance During Hearings	< 50%	> 90%

Future of eCourts @ U.P. RERA

U.P. RERA is working towards automating the order generation process using AI and had already issued an Expression of Interest (EOI) to Conceptualize, Develop and Implement an Intelligent Quasi-Judicial Decision-Making System (Smart Court)



- ✓ Collection and **extraction of case specific information** from documents
- ✓ Classification of documentary evidence & **Legal Argument Mining**
- ✓ **Question generation** to support the Presiding Officer of the bench during hearings
- ✓ **Bi-lingual Speech to Text** (Transcription Model) for documenting the hearing sessions
- ✓ Summarization of dialogues during the hearings and **drafting of orders**
- ✓ Interactive tools for any complex functions / tasks (For Instance, claim calculator with relevant document viewer)
- ✓ Storyboarding for tracking and monitoring the complaint specific information

Thank you

Financial Discipline in Real Estate Sector

March 2024



MaharERA

1. Onboarded BDO Team for Financial Monitoring & Forensic Audit of Projects



Onboarded BDO Team for Financial Monitoring & Forensic Audit of Projects: Actively Monitoring ongoing Projects to identify **Red Flags** and take remedial action before its too late.

Potential Red flag projects identified basis the below scenarios:

- Actual cost incurred as % of total estimated cost (actual / estimated cost) > 75% and work completion % less than 50%
- Projects having latest date of completion within 6 months and work completion % is less than 50%
- Top 50 projects based on estimated cost of completion
- Projects with unresolved complaints more than 10
- Projects with Insolvency proceedings (basis public domain information)
- Extension projects plus any of the above criteria

Basis the above criteria unique 313 projects are identified having multiple scenarios for detailed review covering all the projects

Identification of Red Flag Projects & Action Taken

Action on Red Flag Projects Contd...

Particulars	Project Count
Red Flag Projects	313
Show Cause Notices Issued	313
Number of Closed Cases	165
Number of Cases Ongoing	66
Number of Cases under Forensic Audit	9
Number of Cases Referred to EoW	1

Case Study: Forensic Audit & EOW Referral

- In one of the projects, the Forensic audit revealed misutilization of allottee and lender funds amounting to INR 76 crore
- Non deposition of funds into designated bank account
- Construction and sale of unsanctioned floors
- Mismatch in collection as per sales records vis a vis books of accounts

MahaRERA referred the case to **Economic Offence Wing (EOW)** for necessary actions

Status of ongoing Forensic Audits

Sr No.	Certificate Number	Name of Promoter	Name of Project	Location	Status
1	P51900008408	Tattva & Mittal Lifespaces Pvt Ltd	Bombay XI	Mahalaxmi	- Communication established and information sharing for forensic audit has been initiated by promoter. - Preliminary data analytics performed and samples pertaining to purchases and revenue has been shared with promoter.
2	P51700003655	Sheth Developers Private Limited	Sheth Vasant Lawns	Thane	
3	P52000004449	Adhiraj Constructions Private Limited	Adhiraj Samyama Tower 1A	Panvel	
4	P52000004493		Adhiraj Samyama Tower 1B	Panvel	
5	P52100017521	Classic Promoters and Builders Private Limited	Solitaire Business Hub Phase I, Solitaire World	Pune	- Physical meeting conducted with promoter, detailed reply provided by promoter for dropping the forensic audit. - As per the response, physical progress of the project is in commensurate with the financial progress of the project.
6	P52100017591		Solitaire Business Hub Phase II, Solitaire World	Pune	
7	P51900008200	Surana Developers (Wadala) LLP	Wadala	Wadala	- Physical meeting conducted with promoter, detailed reply provided by promoter for dropping the forensic audit. - As per the response, promoter wants to deregister the project. However, 52 units have been booked with INR 2.82 crore as collection from allottee
8	P50500023088	Madhav Infra (PMAY Project)	Aadhar Nagri	Nagpur	- Supporting documentation for samples pertaining to purchase, expenses and revenue are awaited from promoter - Central & state subsidy details and audited financial statements / Income tax returns are awaited - Draft observations given in attachment

2. Projects with high number of complaints

- Analysis on the projects where there are complaints filed with MahaRERA was conducted. Following table provides the summarized complaints count & corresponding project count.

Particulars	No of complaints	No of projects
Total complaints on projects(A)	23,596	4,571
Less : Form 4 completed projects(B)	(6,362)	(1,575)
Less : Plotted development projects(C)	(66)	(40)
Less : Estimated cost <= INR 20 crore(D)	(3,044)	(951)
Net (E= A-B-C-D)	14,124	2,005

We have categorized the projects as per complaint count slab. Following table provides the summarized details :

Block	Complaints Slab	Project Count	Complaints Count
1	More than 200	2	429
2	100 to 200	4	595
3	60 to 100	22	1,624
4	40 to 60	26	1,317
5	20 to 40	108	2,893
6	10 to 20	192	2,793
7	6 to 10	159	1,316
8	3 to 6	275	1,319
9	1 to 3	1217	1,838
	Total	2005	14,124

Detailed analysis was performed for projects having more than 40 complaints (54 Projects having 3,965 complaints).

2. Projects with high number of complaints

Proposed Approach:

On basis of the analysis, the projects were categorized as follows,

Project specific show cause notice is being issued in projects in following cases :

- ❑ **Mismatch between financial progress and physical progress:** is more than 30% OR mismatch is more than 15% between construction progress as per Form 3 and construction status as per Form 1
- ❑ **Potential Delayed status:** Mismatch of more than 40% between time elapsed since project registration (based on project duration) and its physical progress(Architect certificate) indicates the potential project delays
- ❑ **Non maintenance / non compliance of Designated bank account** or there is a shortfall in the amount to be deposited from allottee funds

3. Suspicious Transactions & Freezing of Bank Accounts



Non-submission of quarterly CA Certificate: MahaRERA identified 363 projects registered from January – September 2023 where there is non-compliance to QPR requirements

Particulars	Number of Projects
Abeyance order issued to promoter	1205
Abeyance order issued to Banks for Freezing the separate bank account	1205
Abeyance order issued to Registrar for stopping Sale registration	1205
Penalty Received	633

Similar Exercise is undergoing for projects on regular basis

Thank You

MaharERA





HARERA
GURUGRAM



AIFORERA

**FINANCIAL
COMPLIANCES BY
THE PROMOTERS IN
RERA**

Real estate(Regulation & Development) act, 2016 aims to establish the Real Estate regulatory Authority to regulate And Promote the real estate sector for its harmonious growth and development

PRE-RERA SCENARIO



- Diversion of funds -

- Delayed Possession -

- Biased One sided Agreements -

- Unequal Penalties in Agreements -

- Sales on Inflated and Misleading Super Built Up Area -

- Misleading Ads in Real Estate Project Brochures -

- No Warranty on Workmanship Defects -

- Sales Before the Approvals -

REAL ESTATE REGULATORY AUTHORITY

- ✓ Before implementation of RERA, regulations existed, but they primarily focused on regulating **physical and spatial aspects**.
- ✓ With the introduction of RERA, an **adjudicating mechanism** was established to handle **Builder Buyer Agreements**, ensuring a more **comprehensive regulatory framework** for the real estate sector.

POST-RERA SCENARIO



Accurate & Authentic information about the promoter/projects

More Transparency in real estate sector transactions

No Sale on basis of Super Built up area

No Changes in plan/ designs without prior approval of allottees

No Diversion of funds from one project to another

No Inordinate delays in handing over the possession

Concept of RERA

The Preamble of the Act describes as follows:

AN ACT TO ESTABLISH THE REAL ESTATE REGULATORY AUTHORITY FOR REGULATION AND PROMOTION OF THE REAL ESTATE SECTOR AND TO ENSURE SALE OF PLOT, APARTMENT OR BUILDING, AS THE CASE MAY BE, OR SALE OF REAL ESTATE PROJECT, IN AN EFFICIENT AND TRANSPARENT MANNER AND TO PROTECT THE INTEREST OF CONSUMERS IN THE REAL ESTATE SECTOR AND TO ESTABLISH AN ADJUDICATING MECHANISM FOR SPEEDY DISPUTE REDRESSAL AND ALSO TO ESTABLISH THE APPELLATE TRIBUNAL TO HEAR APPEALS FROM THE DECISIONS, DIRECTIONS OR ORDERS OF THE REAL ESTATE REGULATORY AUTHORITY AND THE ADJUDICATING OFFICER AND FOR MATTERS CONNECTED THEREWITH OR INCIDENTAL THERETO.

5 Pivotal Pillars of RERA ACT

**Financial
Discipline**

Accountability

**Customer
Centric**

Transparency

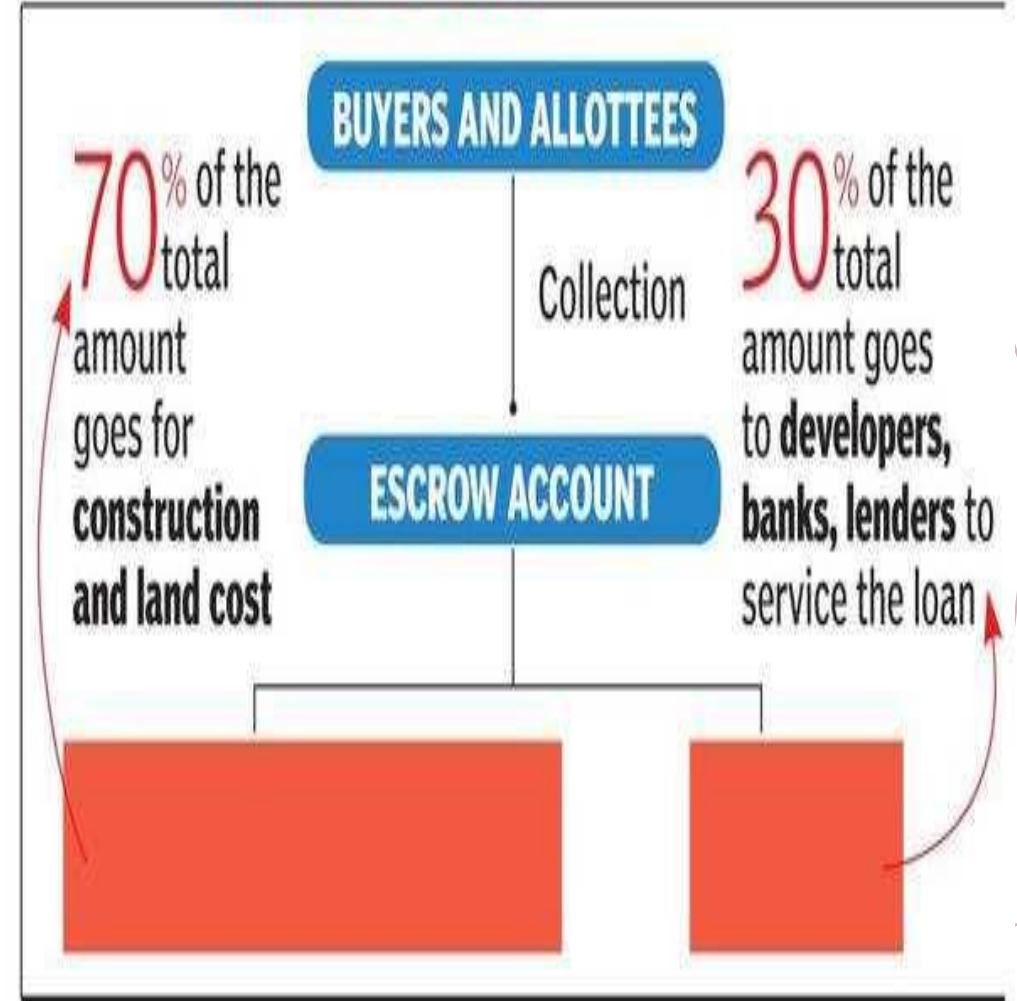
Compliance



Financial Discipline

1. 70% of the funds collected from allottees needs to be deposited in the project account
2. Withdrawals to cover construction and land cost
3. Withdrawals, to be in proportion to the percentage of completion of the project
4. Withdrawals to be certified by Engineer, Architect and CA(third party)
5. Provision for RERA to freeze project bank account upon noncompliance/revocation
6. Project Accounts to be audited annually.
7. Provision for stronger financial penalties for RERA non-compliances
8. Interest on delay will be the same for customer and promoter
9. Promoter to compensate buyer for any false or incorrect statement with a full refund of property cost with interest

WHAT RERA SAID

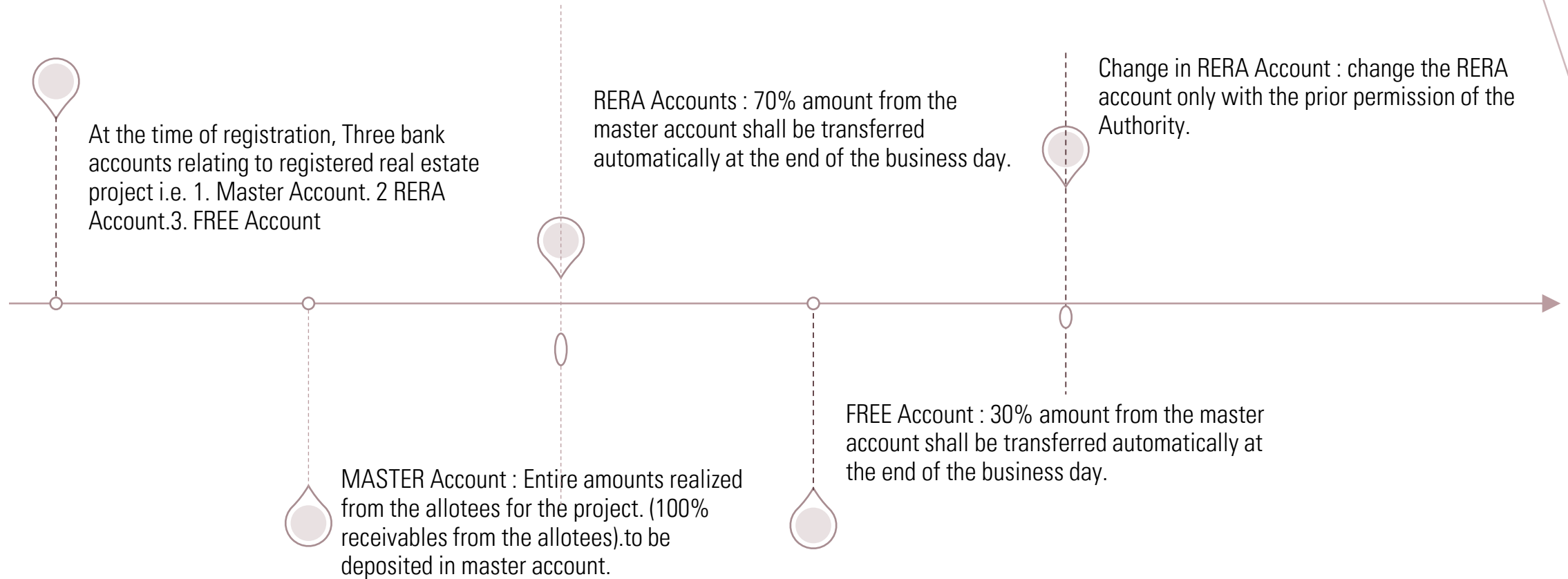


GIST OF RERA FINANCIAL COMPLIANCES

Let's have a look at the key provisions of RERA Act w.r.t financial compliances:

1. With the implementation of the RERA Act, the developers have to disclose the project details on the official website of RERA and same are to be updated on quarterly basis to protect home buyer's trust & interest.
2. The real estate developer will have to transfer 70% of project funds in a separate escrow account, which he can use for construction cost and land cost of that project only.
3. For any delay in the construction of a project, the developer has to pay penalty @ MCLR+2% to homebuyers. Further it is also mandated in the Act that equivalent rate of interest shall be charged by the promoter from the allottee in case of default on part of allottee to pay the instalments.
4. Post delivery of a project; the developer has to provide free-of-cost maintenance and repair services for removal of structural defects to homebuyers up to the first five years from the date of offer of possession.
5. As per provision of section 13 of the RERA Act, the developer can't accept more than 10% as advance from homebuyers prior to execution and registration of BBA.
6. The promoter has the liberty to use 30% account as per his requirement but that too for the very same project.
7. Each & every withdrawal from RERA account is permissible only on submission of a certificate from an independent CA who should not be an auditor of that company/project.
8. There are stringent provisions of imposing penalties on the promoter in case of default in noncompliance of the provisions of section 4 & 11 of the Act, of the 2016 which are defined in sec 60 & 61 of the Act of the 2016 and penalty amount can go up to 5% of the total project cost.

OPERATION OF BANK ACCOUNTS



CHANGE IN RERA ACCOUNT

1.The promoter may change the RERA Compliant Account from one bank to another bank only with prior written permission of the authority.

2.The promoter shall not change Master Account of the project either in the same bank or to another bank without prior written permission of the authority

3.For RERA Account change request, promoter has to make written application along with necessary documents in the following forms:

4.Submit fund transfer compliance letter as per form RA3 (confirmation letter for change in RERA Account) along with form RA4 (certificate of fund transfer from bank with new RERA Account and proof) of previous RERA Account closure.

• (a) Application for change in RERA Account as per form RA1.



Adobe Acrobat Document

(b) Certificate of account balance from bank with existing RERA Account as per form RA2.



Adobe Acrobat Document

RA 3



Adobe Acrobat Document

RA 4



Adobe Acrobat Document

NO LIEN ON RERA ACCOUNT

There can not be any lien of any bank/ financial institution on RERA Accounts & no lenders can be a signatory to that (70%) RERA Separate Account. If some promoter does it, it is illegal.

APPROVAL BEFORE CLOSURE OF RERA ACCOUNT

Even after completion of project RERA Bank Account can not be closed without the prior permission of RERA Authority to ensure that allottees interest w.r.t defects in construction/compensation for repairs upto 5 years of offer of possession is secured as per the provisions of act of 2016



One of the promoter filed an application before Authority for defreezing of bank accounts on which we found after verification that lender has become the signatory of the escrow account which is totally illegal.

Importance of financial ratio at the time of project registration

When registering a real estate project with RERA, financial ratio analysis can play a vital role in Reviewing the project's viability and ensuring its genuineness.

Leverage Ratio:
Leverage Ratio measures a company's inherent financial risk by quantifying the reliance on debt to fund operations and asset purchases, whether it be via debt or equity capital.

A) Debt-to-Equity Ratio.(Ideal ratio is 2:1)

B) Total Net Worth (TOL : TNW)

Ideal ratio ranges from 1-2:1

Allottees money can not be treated as equity rather it is a sort of debt & has to be counted in TOL & not TNW.

Filing of QPR UNDER SECTION 11

Each promoter is obligated to file/ upload QPR of each project within 15 Days of end of each quarters.

- Functions and duties of promoter w.r.t QPR :
 - (i) Quarterly up-to-date the list of number and types of apartments or plots, as the case may be, booked/ sold;
 - (ii) Quarterly up-to-date the list of number of garages booked;
 - (iii) Quarterly up-to-date the list of approvals taken and the approvals which are pending subsequent to commencement certificate;
 - (iv) Quarterly up-to-date status of the project; and
 - (v) Such other information and documents as may be specified by the regulations made by the authority.”
 - (vi) To enclose CA, CE & Architect certificate along with QPR.

Format of QPR



Main points/facts to be verified while reviewing QPR

- 1.To see that complete details of units sold & unsold till end of that quarter is given.
2. To see that allottee wise details of units sold during that quarter is given, reflecting name, unit no., booking date, area, sale price, amount received and balance receivable.
3. To see that percentage of construction of project given in QPR matches with CA certificate, CE certificate & Architects certificate.
- 4.To see all these certificates of CA, CE & Architect are enclosed.
- 5.To see that balance available in RERA Account as shown in QPR matches with bank balance certificate /bank statement as many time it is observed that balance shown in RERA account in QPR does not match with the balance available in RERA bank account.
- 6.To match QPR of current quarter with that of previous quarter to see how much amount spent during the quarter & how much increase in physical status of construction as given in QPR & expenses incurred matches with percentage of growth in construction during the quarter.
- 7.To see that details of requisite compliances/approvals taken or pending is given.
- 8.To see details of units cancelled during the quarter & rebooked/resold is given in QPR.
- 9.To see that QPR certificate is certified from a CA who must sign & mention UDIN.
- 10.To see that chartered engineer & architect have given their registration number, license number on certificates.
- 11.To get physical status of construction verified by sending the engineer of the Authority at site for a physical check.

An Example of wrong QPR

Plotted Colony

Name of the approval	Status	Date
Layout Plan	Obtained Approval on	23-12-2021
Demarcation Plan	Obtained Approval on	11-11-2021
Zoning Plan	Obtained Approval on	25-04-2022
Service Plans	Obtained Approval on	31-08-2022
Electricity Plans	Obtained Approval on	10-02-2022

Expenditure on Infrastructure (In Lakhs)

Total Expenditure on the project	5291.70
Expenditure made upto the date of Registration	0

Expenditure on Taxes, Levies, EDC etc (In Lakhs)

EDC due as on the date of Registration	663.23
--	--------

Financial Information for quarter ending on 31/12/2023 (OCT-DEC)

Cash Inflow

S.No.	Cash Inflow	Amount (In Lakhs)	-ve Balance
1	Opening Balance	-459.28	
2	Amount collected from allottees against booked plots and/or apartments	585.13	
3	Amount availed from the bank/financial institutions	0	
4	Amount contributed by the promoters/his associates	0	
5	Any other receipt	0	
	Total	7038.14	

Cash Outflow

S.No.	Cash Outflow	Amount (In Lakhs)
1	Expenditure on construction of apartments	0
2	Expenditure on infrastructure & other structure	42.48
3	Other costs including EDC, taxes, etc	8.85
	Total	51.33
	Balance	6986.81

Variation in percentage of construction as per CA and CE



1



2



3

2	Total estimated cost of the real estate project (1(I) + 1 (II)) of estimated column -A	5676.54
3	Total cost incurred and paid of the real estate project (1(I) + 1 (II)) of Incurred and Paid Column – B	3443.81
4	Percentage of completion of construction work till now as per Project Engineer's certificate)	14.14%
5	Proportion of the amount paid till the end of month/quarter towards land and construction cost vis-à-vis the total estimated cost. %	60.67%
6	Amount which can be withdrawn from the separate RERA bank Account. Total estimated cost x proportion of cost incurred and paid	(Sr. Number 2 x Sr. Number 5) 3443.81
7	Collection till end of the Quarter	2063.06
8	70% of Total amount Collected to be utilized for Project Exp.	1444.14
9	Less: Amount withdrawn till date of this certificate as per the books of accounts and bank statement	1444.14
10	Net Amount which can be withdrawn from the separate RERA bank Account under this certificate.	1999.67

Table- B

Details of RERA Bank Account:
HARERA

Project Engineer certificate shows 14.14% completion of construction whereas per CA certificate 60.67% construction cost has been spent.

Consequences of Non filling of QPR

RERA can impose a penalty for non filing of QPR on project/promoters as per provision of sec 61 of the Rera Act of 2016 and can freeze its bank accounts & reject extension if applied for.

Proposal for QPR Circulation

It is proposed that RERA should mandate for promoter to publish QPR of each project in the newspaper with circulation in the area, where project is situated and should mail to respective allottees within prescribed time limit of 15 days from end of each quarter.

Effect of continuous follow up for compliances

A concerted drive was launched by RERA Gurugram, which included:

1. Notices
2. Threats of penalty
3. Summoning
4. Cajoling and finally QPR gets uploaded.



Status of QPR

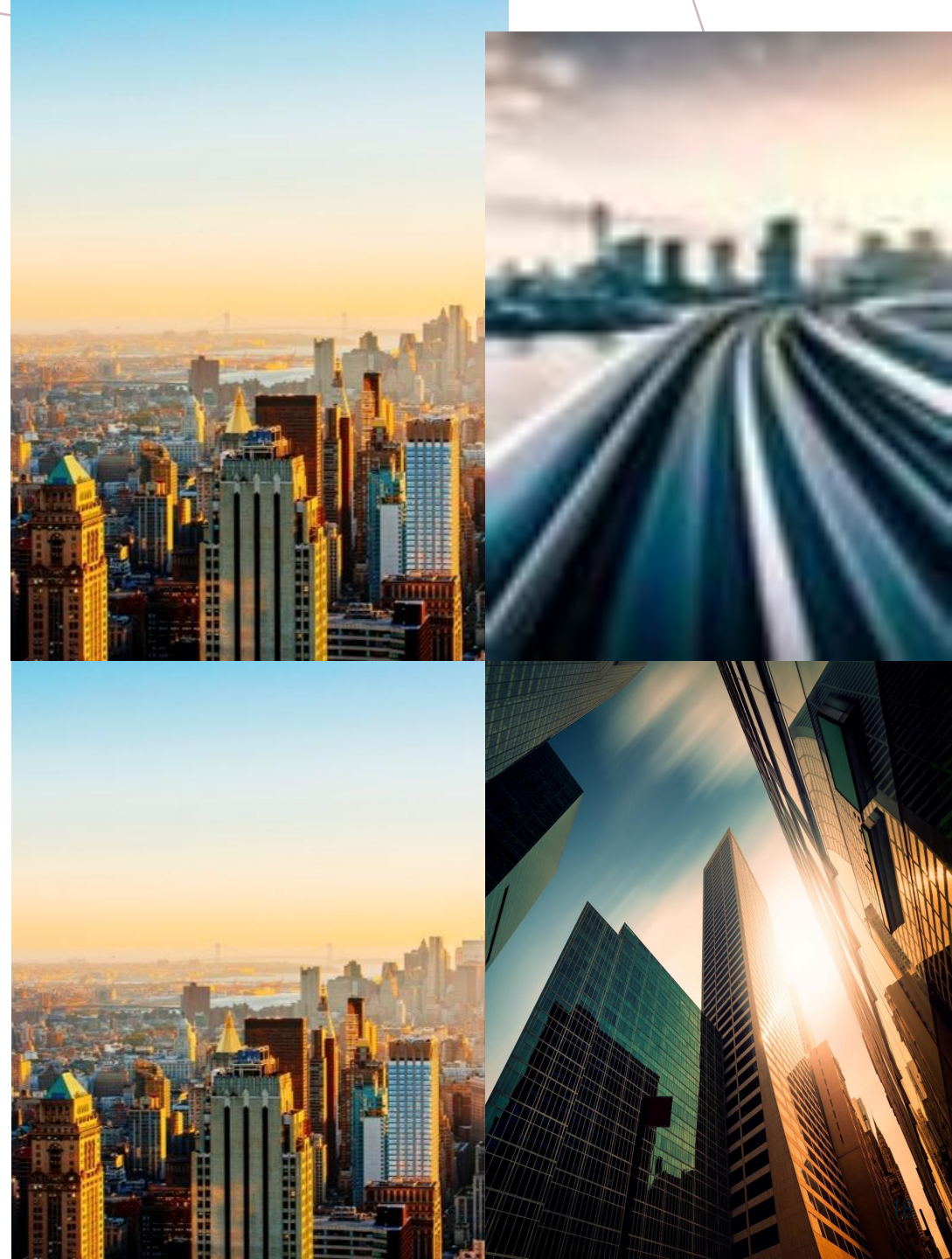
Particulars	Total	As on 31.12.2023			As on 30.06.2024		
		Submitted	Not Submitted	Compliance %	Submitted	Not Submitted	Compliance %
Mar-21	432	273	160	63%	401	31	93%
Mar-22	525	360	166	69%	491	34	94%
Mar-23	656	442	233	67%	612	44	93%
Dec-23	747	311	440	42%	688	59	92%

Annual Statements of Accounts u/s 4(2)(I)(D)

The Annual statement of accounts of each project duly audited, certified and signed by the chartered accountant is to be submitted in the office of the authority till **30th September** after ending of F.Y.

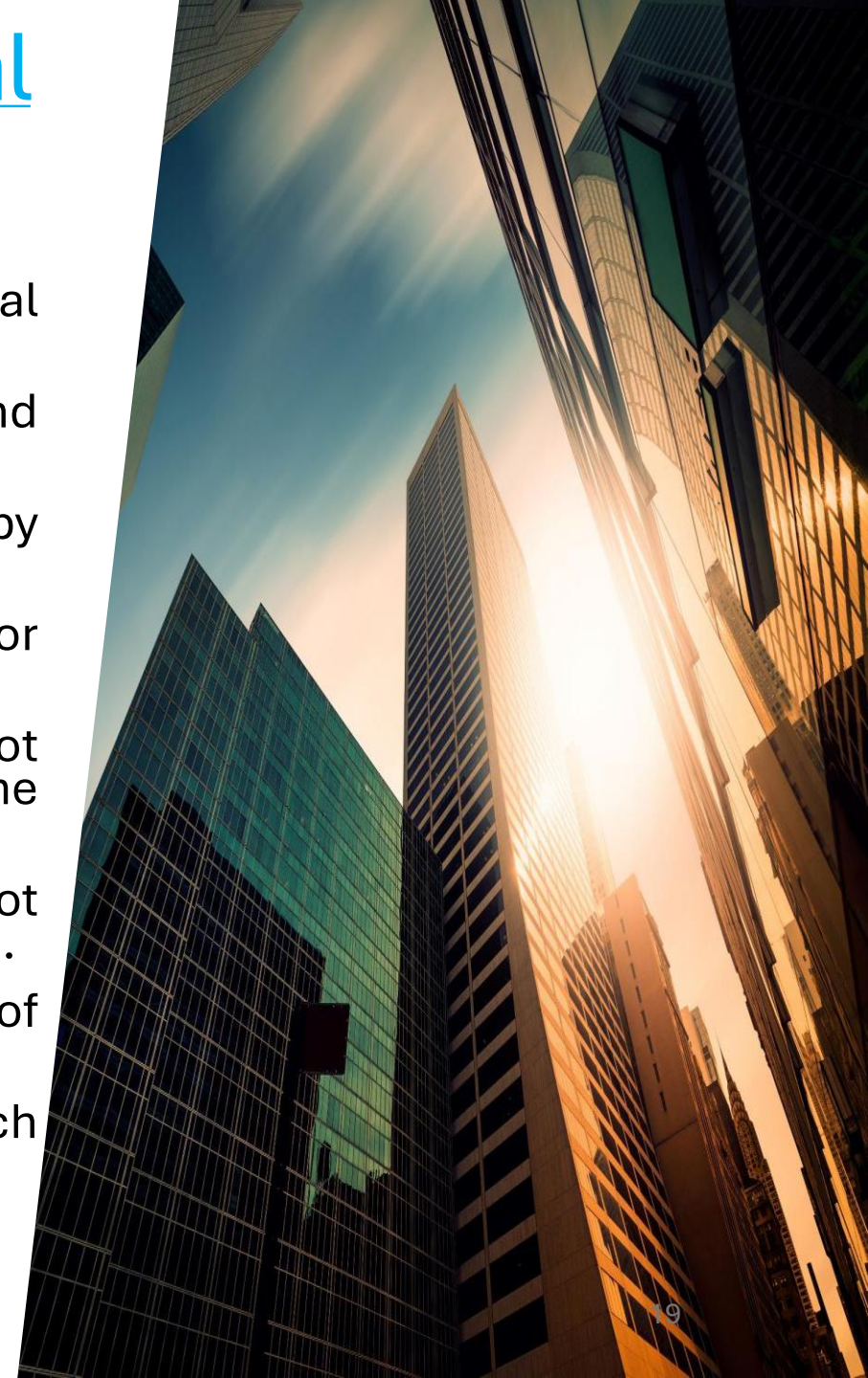
Nonsubmission of audited statement of accounts duly certified and signed by the chartered accountant in respect of the project till 30th September is a violation of Section 4(2)(I)(D) of the Real Estate (Regulation and Development) Act, 2016. **which attracts penalty u/s 60 of the RERA Act of 2016 & which can go upto 5% of estimated cost of project.**

Format



Points to be verified by RERA in Annual audited accounts filed by Promoters.

1. Total of all four QPR of that F.Y. matches with the figure given in annual audited statement.
2. To verify differences in financial figures budgeted v/s actual and reasons of differences to be given.
3. To match percentage of construction status given by architect/engineers with that of CA certificate.
4. 4(2)(l)(D) needs to be got certified from a CA who is a statutory auditor of company.
5. In some cases, amount collected under column 6.2 (ii) does not match with the total amount received in the master account of the project of the respective bank.
6. In some cases, amount received in the master account does not reconcile with the amount shown in separate RERA Account i.e. 70%.
7. Percentage of amount withdrawal does tally with percentage of completion of project
8. Total withdrawal funds from separate RERA Account does not match with the withdrawal limit of the project.



**Annual Report on Statement of Accounts received between 26.10.2023 to 12.03.2024 under section 4(2)(l)(d)
(Total number of show cause notices issued are 580)**

Year	No: of Projects registered during the Year	Cumulative total of Projects	Promoters liable to file annual report after O.C./C.C.	ASA received
2017-18	268	268	264	3
2018-19	52	320	292	2
2019-20	75	395	333	3
2020-21	53	448	360	2
2021-22	98	546	433	11
2022-23	160	706	567	190

Current status of 4(2)(l)(D)

Annual Report on Statement of Accounts received between 13.03.2024 to 31.07.2024 under section 4(2)(l)(d)

(Total number of show cause notices issued are 713)

Year	No: of Projects registered during the Year	Cumulative total of Projects	Promoters liable to file annual report after O.C./C.C.	Filed	Not Filed
2017-18	268	268	264	136	128
2018-19	52	320	292	213	79
2019-20	75	395	333	280	53
2020-21	53	448	360	332	28
2021-22	98	546	433	416	17
2022-23	160	706	567	533	34

Improvement Measures

To mitigate and improve the gaps and challenges in financial management under the Real Estate (Regulation and Development) Act (RERA), various measures can be taken:

1.Stricter Enforcement of Escrow bank Account Rules: Regulatory authorities should ensure that developers strictly adhere to the requirement of depositing project funds into a separate escrow account. Regular audits and monitoring can help in this regard.

2.Enhanced Financial Reporting: Standard financial reporting formats for developers should be prescribed. Regulatory authorities should set up a proper monitoring cells to check compliances, so that red flags can be raised during the construction period itself.

3.Insolvency Framework: Develop a framework for handling insolvency and bankruptcy situations in the real estate sector, ensuring that the interests of homebuyers and creditors are protected.

4.Effective Penalties and Accountability: Strengthen mechanisms for enforcing penalties and holding developers accountable for financial mismanagement. This could include stricter penalties and more efficient dispute resolution processes.

5.Education and Awareness: Educate homebuyers and developers about their rights and obligations under RERA. This can help in better compliance and prevent disputes. And to arrange some seminars at least twice a year.

Actions proposed by the various authorities

To implement the vision for improved financial management under the Real Estate (Regulation and Development) Act (RERA), various authorities, regulators, practitioners, promoters, allottees, estate agents, and industry associations should take specific actions. Here are recommendations for each of these stakeholders:

(a) Authority:

- Implement a robust system for audit compliance with a proper monitoring cell.
- Standardize formats for financial reporting.

(b) Regulators (e.g., SEBI, RBI, ICAI):

- Ensure that financial institutions/banks adhere to RERA-related guidelines while lending to real estate projects and while operation of RERA bank accounts by promoters, such as withdrawal from rera account strictly as per RERA Regulation.

(c) Promoters:

- Strictly adhere to the guidelines for maintaining escrow accounts and timely project completion & timely compliances.
- Ensure transparency in project financials and communicate any cost overruns to homebuyers in QPR & annual statement.
- Maintain Debt equity ratio & cash flow in the project.

(d) Allottees:

- Stay informed about their rights and responsibilities under RERA & visit website of RERA to know status of their project.
- Monitor project financials and report any discrepancies to the regulatory authorities.

(e) ICAI:

- Issue guidelines w.r.t Accounting and Auditing Standards in line with RERA Act.
- Conduct peer review of CA firms, who are doing certification & audit of real estate projects.
- Maintain a panel of CA, who are eligible to do certification & audit of real estate projects audit.

(f) Industry Associations (CREDAI, NAREDCO, BAI, CoRWA):

- Promote best practices in financial management within the industry to arrange seminars in co-ordination with RWA.
- Collaborate with RERA authorities to disseminate knowledge and best practices.
- Establish grievance redressal mechanisms for financial disputes within the industry.

By taking these actions, the various authorities, regulators, practitioners, and industry associations can contribute to the effective implementation of the vision for improved financial management under RERA. This will help in creating a more transparent and accountable real estate sector in India.

Suggestions

1. Strict monitoring and regular inspection of project.
2. Educate promoter for timely completion.
3. Regular checking of financial reports filed by promoter to raise red flags timely.
4. To arrange joint seminars of promoters, allottees & regulators at least once in a 6 month.
5. Advise promoter to maintain Debt equity and TOL/TNW ratio.
6. To take strict action against defaulter to set an example.
7. To publish quarterly statement, result synopsis in newspapers with circulation in area/state of project and to send QPR to all allottees on their mail as SEBI has mandate to publish quarterly results in newspapers and send by mail/post to all stake holders.
8. Authorities to increase vigilance and monitoring of registered real estate agents so that they do not spread wrong information of any project.
9. Details of net worth of promoter must be taken before registration of project to have an idea of his financial strength and promoters must be directed to file undertaking that they will maintain those assets mentioned in net worth certificate till completion of projects.

Standardised Formats

At the time of implementation of Rera 2016, it was left open to all states to formulate their own rules. Now with experience it is felt that we should have standardized formats of all certificates & reports(such as CA, CE & Architect Certificate, QPR, Annual Audited Accounts & BBA) to achieve the basic goal of RERA & its smooth implementation.



Conclusion

The Real Estate (Regulation and Development) Act (RERA) **has brought about significant improvements** in the real estate sector by enhancing transparency and accountability. However, there are still gaps and challenges, particularly in financial management, that need to be addressed.

Key actions include **the standardization of RERA regulations and formats, the development of digital infrastructure, the adoption of advanced technologies , and the establishment of strict monitoring and compliance mechanisms.**

By implementing these actions and continuously improving financial management practices under RERA, the very theme of preamble of RERA which focus on transparency & accountability can be achieved.





THANK YOU

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Gujarat Real Estate Regulatory Authority (RERA)

4th Floor, Sahyog Sankul, Sector-11, Gandhinagar-382010

Website: <https://gujrera.gujarat.gov.in>

No: GujRERA/Order -103

Date: 20/12/2024

Order-103

Subject: - Gujarat RERA Bank Account Directions, 2025

1. Reference: -

- a) Section 4(2)(l)(D) of The Real Estate (Regulation and Development) Act, 2016.
- b) Gujarat Real Estate (Regulation and Development) (General) Rules, 2017. (Rule-5, Rule 9, Rule 3(6))
- c) Gujarat Real Estate Regulatory Authority (General) Regulations 2017.
- d) As approved by the Authority in note as on 20/12/2024.

2. Read:-

- a) GujRERA Circular bearing No. 02/2017 issued on 29 July 2017.
- b) GujRERA Circular bearing No. 9 issued on 30th August 2018.
- c) GujRERA Circular bearing No. 11 issued on 5th October 2018.
- d) GujRERA Circular bearing No. 15 issued on 23rd May 2019.

3. Short Title and Commencement: -

- a) In exercise of the powers conferred by Section 37 of the Real Estate (Regulation and Development) Act, 2016 the Gujarat Real Estate Regulatory Authority having considered it necessary in the interest of on-time delivery of any plot, apartment

or building and for the purpose of ensuring the non-diversion of project funds has decided to issue the order for RERA Bank Account.

- b) These Directions shall be called the “Gujarat RERA Bank Account Directions, 2025” and shall come into force from date 1st January,2025.
- c) These directions supersede the Gujarat RERA Bank Account Directions,2018 dated 19th February, 2018 and Guidance note-5 dated 21st October,2022 and circular-35 dated 23rd September, 2024 issued relating to the separate RERA Bank Account.
- d) The object of these directions is to establish mechanism for operation and maintenance of separate bank account for GujRERA registered project and to safeguard consumer interests, to ensure compliance, promote transparency, accountability, and the financial discipline, as well as to have uniformity in the operation and maintenance of bank accounts of the project and standardize legitimate utilization of funds deposited in the separate RERA Bank account.

4. Definitions: -

- a) “**Act**” means the Real Estate (Regulation and Development) Act, 2016;
- b) “**No Lien Account**” means Account without any third party rights or security interests;
- c) “**No Lien Fixed Deposit**” means Fixed Deposit without any third party rights or security interests;
- d) “**RERA Collection Bank Account**” means an account to be maintained by the promoter for receiving all the collections from the allottees from time to time as mentioned in the agreement for sale including amenity and any other charges but excluding the Pass-through charges and Indirect taxes;
- e) “**RERA Retention Bank Account**” means the separate bank account wherein seventy percent of the amount received in “**RERA Collection Bank Account**” shall be deposited. Deposited amount in this account shall solely be utilised to cover the cost of construction and the land cost as prescribed in the Rule 5 of the Gujarat Real Estate (Regulation and Development) General Rules,2017;
- f) “**RERA Transaction Bank Account**” means an account of the project to be maintained by the promoter for transferring up to 30% of the total collection received in the “**RERA Collection Bank Account**” of the Project;

- g) Words or expressions used in this order and not defined herein but defined in the Act or Rules or Regulations shall bear the same meanings respectively assigned to them in the Act, Rules and Regulations.

5. Opening of RERA project Bank Accounts

The Promoter shall open following three bank accounts in a single scheduled bank branch operating in the State of Gujarat before applying for the project registration,

- A. RERA Collection Bank Account of the Project
- B. RERA Retention Bank Account of the Project
- C. RERA Transaction Bank Account of the project

On the publication of this Order, all the ongoing projects registered with the Authority, shall mandatorily migrate to above mentioned system of three tier bank account system. If any promoter for ongoing project is holding RERA bank account in a bank branch out side the State of Gujarat, then such promoter will have to get the account transferred to a branch operating within the State.

In the case of multiple promoters, necessary contractual or legal arrangements should be made by the principal promoter, who is registering the project, to ensure proper operations of RERA Account. (This will apply in the case of Joint Development Agreement)

However, in case of promoter(s) having joint rights on project land applying under the category of "others", joint RERA Bank account with the name of all the promoter(s) or in the name of person having registered power of attorney from all the joint right holders of project land, for the purpose of operation of RERA bank account needs to be opened and to be reported to the GujRERA.

6. Nomenclature, Maintenance, and Operations of three bank accounts mentioned in the clause 3 herein above.

a) RERA Collection Bank Account of the Project

The Promoter shall open and maintain the "RERA Collection Bank Account of the Project "in a schedule bank branch operating in the State of Gujarat.

Nomenclature- Name of the collection bank account shall contain name of the promoter and name of the project prescribed in the following manner:

"Name of Promoter" + **RERA Collection** Bank Account for + "Project Name"

Example-

Name of Promoter - "ABC Ltd.",
Name of Project-"XYZ"

Account name- "ABC Ltd. RERA Collection Bank Account for XZY"

The entire amount accepted from the allottees should be deposited in this account excluding indirect taxes (GST, taxes, stamp duty registration charges etc) and Pass-Through Charges (if any).

The bank where the RERA Collection Bank Account of the Project is opened shall ensure that no debits or withdrawals are permitted by means of cheque, debit card, credit card, internet banking facility, or any other payment methods (e.g., Demand Draft (DD), on line transfer etc.) or any means of instruments, except through an auto sweep facility transferring a minimum of seventy (70%) percent of the amount collected from allottees to the RERA Retention Bank Account of the Project and a maximum of thirty (30%) percent of the collected amount to the RERA Transaction Bank Account of the project.

The Promoter shall furnish/publish particulars of the RERA Collection Bank Account of the project in the Allotment letter and agreement for sale with the prospective homebuyers for the purpose of receiving payments towards their unit in the registered project. **However those Units in which AFS has already been executed and/or Allotment letter is issued to the Allottee are not required to comply with this requirement.**

b) RERA Retention Bank Account of the project-

The promoter shall open and maintain RERA Retention Bank Account of the project in the same bank for each registered project separately wherein seventy percent of the amount received in RERA Collection Bank Account of the project from the allottees shall be transferred through auto sweep facility.

Nomenclature- Name of the Retention Bank account shall contain name of the promoter and name of the project prescribed in the following manner:

"Name of Promoter (Account holder)" + RERA Retention Bank Account for + "Project Name

Example- Name of Promoter - "ABC Ltd.",
Name of Project- "XYZ"

Account name- "ABC Ltd. RERA Retention Bank Account for XZY"

Deposits -

Minimum 70% of the amounts realised for the real estate project by the allottees, from time to time received in **RERA Collection Bank Account** of the project shall be deposited through auto- sweep transfer facility in a **RERA Retention Bank**

Account of the project to cover the cost of construction and the land cost and shall be used for that purpose only.

This account shall be free from all encumbrances and should not be escrow account for any purpose and shall be free from Lien, loans, and third-party control i.e. lender/ bank/ financial institution and cannot be attached by any other government authority/body unless any direction given by GujRERA.

Withdrawals -

As per the provisions of section 4(2)(l)(D) of the Act and as prescribed by regulation 3 of the Gujarat Real Estate Regulatory Authority (General) Regulations, 2017, the amounts from the RERA Collection Bank Account shall be withdrawn by the promoter under certification in Form 1 (Architect Certificate), Form 2 (Engineer Certificate) and Form 3 (CA Certificate). Such certificates should be uploaded on GujRERA portal for each withdrawal of funds from the RERA Retention Bank Account.

However, if promoter has balance limit for withdrawal as per previous certificate, then fresh certificates for subsequent withdrawal(s) are not required to be provided except for the **first time submission** of the withdrawal certificates. In other words, after 1st January, 2025 every promoter needs to submit the Form-1,2,3 certificate on portal first time for the withdrawal of funds after that every withdrawal does not require fresh issuance of certificate, **as long as**, earlier certificate provided by promoter has balance amount left for the purpose of withdrawal.

The money deposited in this account can be utilized only for meeting following expenditures incurred on the project: -

i. Land cost: -

As laid down in Rule 5 of the Gujarat Real Estate (Regulation and Development) (General) Rules, 2017 read with GujRERA Circular No. 02 regarding the subject "Clarification on CA Certificates" and Circular No. 11 regarding the subject "Clarification of Land cost to be consider in Form-3".

ii. Development Cost/ Cost of Construction: -

As laid down in above cited Rule 5 read with GujRERA Circular bearing No 02 regarding the subject "Clarification on CA Certificates".

iii. Interest for loan-

Any secured/Unsecured loan taken for the project and fund being used for the project development, may be serviced from the RERA Retention Bank Account.

However, interest on a loan taken from the partners cannot be served from this account.

iv. Refunds to the allottees- Cancellation amount(s), if any, to be paid by the promoter to the allottees on cancellation of booking / allotment of the apartment, should be treated as cost incurred for the project and the same can be withdrawn from the RERA Retention Bank Account, to the maximum extent of 70% of the amount to be paid to the Allottee on cancellation of the booking/allotment.

Any excess money lying in the RERA Retention Bank Account can be converted in fixed deposits with the bank operating all three RERA Designated Bank Accounts. Such fixed deposits have to be a no lien Fixed Deposit and no loan can be obtained against or on such Fixed Deposit nor any charge can be created on such Fixed Deposit.

c) RERA Transaction Bank Account of the project-

The promoter shall open and maintain the "RERA Transaction Bank Account of the Project" in a scheduled bank for each registered project separately.

Nomenclature- Name of the transaction bank account shall contain name of the promoter and name of the project formatted in the following manner:

"Name of Promoter (Account holder)" + RERA Transaction Bank Account for + "Project Name"

Name of Promoter - "ABC Ltd.",
Name of Project- "XYZ"

Transaction Account name- "ABC Ltd. RERA Transaction Bank Account for XZY"

Deposits -

Maximum thirty percent (30%) of the amounts realised for the real estate project from the allottees, received in RERA Collection Bank Account of the project shall be deposited in RERA Transaction Bank Account of the project.

This account can be utilized for meeting expenses other than those directly related to the land cost and construction/development cost of the project, in accordance with the provisions laid down in the Act and the rules and the regulations made thereunder.

Withdrawal-

i. Minimum thirty percent (30%) of cancellation amount(s), if any, to be paid by the promoter to the allottees on cancellation of booking / allotment of the apartment, will be eligible for payment from the RERA Transaction Bank Account.

ii. Interest/compensation to the allottee- The interest/compensation paid by the promoter to the allottees should not be treated as cost incurred for the project and hence such sum required to be paid as interest/ compensation to the Allottee cannot be withdrawn from the RERA Retention Bank Account. Any such amount can be withdrawn from RERA Transaction Bank Account.

iii. The penalty imposed by GujRERA to be paid by the promoter should not be treated as cost incurred for the project hence cannot be withdrawn from RERA Retention Bank Account. Hence such amount may be withdrawn from the RERA Transaction Bank Account.

7. Reporting to the Authority: -

The promoter shall enter and update following financial details on his web page created on GujRERA portal, namely: -

- a) The details of RERA Collection Bank Account and RERA Retention Bank Account along with the bank statements at the time of Registration and subsequently, if any change in such bank accounts are made;
- b) Quarterly progress report of project in Form 8 prescribed under regulation 4AA of the Gujarat Real Estate Regulatory Authority (General) Regulation, 2017 as amended;
- c) All the withdrawal certificates for withdrawal of funds from the RERA Retention Bank Account, in Form-1, Form 2 and Form 3 prescribed under regulation 3 of the Gujarat Real Estate Regulatory Authority (General) Regulation, 2017;
- d) All the project loans obtained prior to or subsequent to project registration, in report submitted under sub-clause (b) and (c) above;
- e) Annual report on statement of accounts in Form 5 prescribed under regulation 4 of the Gujarat Real Estate Regulatory Authority (General) Regulation, 2017.

8. Changing the bank accounts of the project: -

- a) The Promoter may change the RERA Accounts from one Bank to another Bank only with prior approval of the Authority.
- b) For RERA Account change request, promoter has to make written application along with necessary documents in the following forms: -
 - I. Application for change in RERA Accounts as per Form RA1 annexed to these Directions;
 - II. Certificate of account balance from bank with existing RERA Accounts as per Form RA2 annexed to these Directions;
 - III. Account Statement / copy of passbook of account proposed as new RERA Accounts

- c) The fund lying in the RERA Collection Bank Account and RERA Retention Bank Account needs to be transferred in total in the respective account i.e. amount lying in the existing RERA Retention Bank Account needs to be transferred in the new RERA Retention Bank Account in total and same applies to RERA Collection bank account if there is any balance in the same.
- d) Promoter is also required to submit fund transfer compliance letter as per Form RA3 along with Form RA4 annexed to these Directions and proof of previous RERA Account closure.

9. Closure of separate bank accounts of the project: -

On completion of project and handing over the project to the society as per section 11(4) of the Act, the Promoter should submit the Project End Compliance (Q-E) as per Order 20, dated 31st Jan, 2019, Order 30, dated 27th September, 2019 and Order 93, dated 28th May, 2024 issued by the Authority.

The Promoter may close the RERA Bank Account subsequent to successful submission of Project End compliance.

10. Obligations of the Banks-

- a) Banks shall be obliged to follow the provisions of opening, operating and closing of all three RERA Designated project bank accounts as per above prescribed Directions.
- b) Banks shall notify every promoter approaching the branch to open and maintain three bank accounts namely RERA Collection Bank Account of Project, RERA Retention Bank Account of Project and RERA Transaction Bank Account of Project for all registered projects.
- c) Banks shall follow strictly the nomenclature prescribed in these Directions for the bank accounts.
- d) The bank where the RERA accounts of the project is opened shall ensure that no debits or withdrawals are permitted by means of cheque, debit card, credit card, internet banking facility, or any other payment methods (e.g., Demand Draft (DD), bank guarantees, etc.) or any means of instruments, except through an auto sweep facility to transfer the amount deposited in RERA Collection Bank Account to the RERA Retention bank account and RERA Transaction bank account respectively in 70:30 ratio.

- e) Banks shall ensure that cheque book, debit card, net banking facility and/or any other means of instrument for withdrawal of funds from RERA Collection Bank Account of the Project is not provided by the banks.
- f) The Banks should ensure that no withdrawal of funds should be permitted from the RERA Retention Bank Account without verifying the limit mentioned in the CA certificate (Form-3) uploaded on the Gujarat RERA portal.
- g) Banks shall ensure that the "RERA Collection Bank Account" and "RERA Retention Bank Account" of the project shall be free from all encumbrances and should not be an escrow account and free from lien, loans, and third-party control i.e lender/ bank/ financial institution. These two accounts cannot be attached by any other government authority/body without the order of GujRERA.
- h) In case of creation of Fixed deposit for the money lying in the RERA Retention Bank Account, the banks should ensure that the said Fixed deposit is free from any lien/charges/encumbrance.
- i) Banks should ensure before disbursing the project loan to any promoter that proper disclosure has been made by the promoter on GujRERA portal. However, banks may sanction the project loan to the promoter.
- j) In the eventuality of any orders of the Authority for freezing/de-freezing of any of the project accounts, the banks shall immediately comply with such orders and shall accordingly freeze/ de-freeze the concerned account(s).
- k) When project loan has been disbursed, loan sanctioning banks should observe due diligence before issuing the NOC for Project/Unit. Extra care needs to be taken while issuing the NOCs in case of re-financing of the project.
- l) On completion of the project, bank should allow the withdrawal of entire balance amount lying in the RERA Retention Bank Account by the Promoter only after verifying successful submission of necessary certificates and due project completion compliances on GujRERA Portal.

11. Obligations of the professionals: -

All the professionals issuing certificates under the Act, rules and regulations made thereunder should ensure that if any certificate issued by the project Architect, Engineer or the Chartered Accountant has false or incorrect information, the Authority may take up the matter with the concerned regulatory body of the such professionals for necessary penal action against them, including dis-membersment.

12. Obligations of the Allottees: -

The allottees or prospective allottees for RERA registered projects should make the all the payments, except Pass through charges and Indirect taxes, towards RERA Collection Bank Account of the particular project only.

13. Power of the Authority: -

- a) On lapse of the registration of the project or revocation of the registration the Authority may direct the bank holding the RERA Account to freeze or de-freeze the said account, to facilitate the remaining development works in accordance with the provisions of section 7(4)(c) and section 8 of the Act.
- b) The Authority may in the interest of the allottees, inquire into the payment of amounts out of RERA Retention Bank Account as per the provisions contained in sub-rule 3 (a) of Rule 8 of the Gujarat Real Estate (Regulation and Development) (Matters Relating to the Real Estate Regulatory Authority) Rules, 2016.

Non-compliance of these directions in any manner will be punishable under section 60 and 63 of the Act.


Secretary
GujRERA

Form RA1
(See Direction 6)

Application for Change in RERA Bank Account

To,
Gujarat Real Estate Regulatory Authority,

Sub: Application for change in RERA bank accounts

Ref: Project Name: _____, Promoter Name: _____, Project Registration No. _____

Dear Sir,

With reference to the above-mentioned subject, I / We would like to apply for the Authority's approval for change in the RERA Account as per the following details:

Current RERA Account	
Bank Name	
Branch Name	
IFSC Code	
A/c No. of RERA Collection Bank Account (100%)	
A/c No. of RERA Retention Bank Account (70%)	

Proposed RERA Account	
Bank Name	
Branch Name	
IFSC Code	
A/c No. of RERA Collection Bank Account (100%)	
A/c No. of RERA Retention Bank Account (70%)	

I/We solemnly affirm and declare that the particulars given in herein are correct to my/ our knowledge and belief.

I / We further undertake that I shall freeze all transactions from the said account until RERA conveys its decision on the RERA bank account change application.

Dated: _____

Place: _____

Yours faithfully,

Name, Signature and Seal of the Promoter / Authorized Signatory

Form RA2
(See Direction 6)

Certificate of account balance from Bank with existing RERA Bank account

To,

Gujarat Real Estate Regulatory Authority,

Sub: Details of current RERA Accounts

Ref: Project Name: _____, Promoter Name: _____, Project Registration No. _____

Dear Sir,

This is to certify that _____ (name of the Promoter) has RERA Account operational with our bank as per following details.

Bank Name	
Branch Name	
IFSC	
A/c No. of RERA Collection Bank Account (100%)	
Account Holder Name (100%)	
A/c No. of RERA Retention Bank Account (70%)	
Account Holder Name (70%)	
Type of Account	
Closing Balance of RERA Collection Bank Account (as on Dt / /) in Amount Rs.	
Closing Balance of RERA Retention Bank Account (as on Dt / /) in Amount Rs.	

I/We solemnly affirm and declare that the particulars given in herein are correct to my/ our knowledge and belief.

Dated: _____

Place: _____

Yours faithfully,

Name, Signature and Seal of the Bank Authorized Signatory

Form RA3
(See Direction 6)

Confirmation Letter of change in RERA Account

To,

Gujarat Real Estate Regulatory Authority,

Sub: Confirmation of change in RERA Accounts

Ref: Project Name: _____, Promoter Name: _____Project Registration No._____ with reference my / our application for change in RERA Account vide letter dated ____ and as per the terms and conditions mentioned in the in-principal approval received from the Authority vide letter / email dated _____, I / We confirm that the RERA Bank Account has been changed and an amount of Rs. _____ (In Words: ____) has been transferred to the new RERA Collection Bank Account and Rs. _____ (In Words: ____) has been transferred to the new RERA Retention Bank Account.

I/we undertake that I/we shall operate the RERA Account in compliance with RERA Act, Rules and Regulations.

Previous RERA Account	
Bank Name	
Branch Name	
IFSC Code	
A/c No. of RERA Collection Bank Account (100%)	
A/c No. of RERA Retention Bank Account (70%) No.	

New RERA Account	
Bank Name	
Branch Name	
IFSC Code	
A/c No. of RERA Collection Bank Account (100%) No.	
A/c No. of RERA Retention Bank Account (70%)	

I/We solemnly affirm and declare that the particulars given in herein are correct to my/ our knowledge and belief.

Dated: _____

Place: _____

Yours faithfully,

Name, Signature and Seal of the Promoter / Authorized Signatory

Form RA4
(See Direction 6)

Certificate of fund transfer by Bank having new RERA Bank Account

To,

Gujarat Real Estate Regulatory Authority,

_____ ,

Sub: Details of RERA Bank Accounts

Ref: Project Name: _____, Promoter Name: _____, Project Registration No.

Dear Sir,

This is to certify that the Promoter _____ has the bank account operational with our bank as per following details.

Bank Name	
Branch Name	
IFSC	
A/c No. of RERA Collection Bank Account (100%)	
Account Holder Name (100%)	
A/c No. of RERA Retention Bank Account (70%)	
Account Holder Name (70%)	
Type of Account	
Opening Balance of RERA Collection Bank Account (as on Dt / /) in Amount Rs.	
Opening Balance of RERA Retention Bank Account (as on Dt / /) in Amount Rs.	

Further, a sum of Rs. _____ (in words: _____) has been credited into the above mentioned RERA Retention Bank Account and a sum of Rs. _____ (in words: _____) has been credited into the above mentioned RERA Collection Bank Account on date _____.

Dated: _____

Place: _____

Yours faithfully,

Name, Signature and Seal of the Bank Authorized Signatory
